

Before the  
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 24-12

20230930-DK-BUTTERFLY-1, INC., F/K/A BED BATH & BEYOND, INC.

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of  
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,  
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., AND  
EVERGREEN MARINE (SINGAPORE) PTE. LTD.

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**COMPLAINANT’S OPPOSITION TO RESPONDENTS’ MOTION TO COMPEL**

Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc.<sup>1</sup> (“BBBY”) hereby responds pursuant to 46 C.F.R. § 502.69 and 46 C.F.R. § 502.71 to the Motion to Compel filed by Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”) (BBBY, collectively with Evergreen, the “Parties”), on August 13, 2025 (the “Motion”).

**I. Introduction.**

Complainant has answered Respondents’ First Set of Interrogatories (“First Interrogatories”) separately and fully to the best of its ability given the scope of each Interrogatory, presently available documents, the theories of Complainant’s claims, the procedural posture of discovery—which is still ongoing—and in accordance with its discovery obligations. The present Motion also ignores that (i)

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<sup>1</sup> BBBY filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023 by and through which Bed Bath & Beyond Inc. changed its corporate name to 20240930-DK-Butterfly-1, Inc.

many of the interrogatory questions at issue limited their scope to the facts *as alleged in the Complaint*, (ii) the responses at issue were drafted to support the statements in the Complaint, (iii) such responses were alongside an additional statement that discovery is still ongoing and (iv) additional documentary or testimonial evidence received during discovery may supplement Complainant's responses. The Motion is nothing more than Respondents' desire for a *different* answer to each interrogatory and should be dismissed as baseless.

Complainant has answered Respondents' Interrogatories through Complainant's Supplemental Objections and Responses to Respondents' First Set of Interrogatories dated July 15, 2025 (the "Supplemental Responses"), and although the Supplemental Responses are complete and sufficient in their own right, Complainant has further answered Respondents' First Supplemental Set of Interrogatories (the "Supplemental Interrogatories") on August 5, 2025 with Complainant's Objections And Responses to Respondents' First Supplemental Set of Interrogatories (the "Responses to Supplemental Interrogatories"). A copy of the Supplemental Interrogatories is attached hereto, through the Declaration of Mohini Priya, as Exhibit A and Complainant's verified Responses to Supplemental Interrogatories is attached hereto, through the Declaration of Mohini Priya, as Exhibit B.

The Responses to Supplemental Interrogatories contain additional context and particularized descriptions of how the documents cited in the Supplemental Responses allow calculation of Complainant's alleged reparations. They also explain Complainant's position regarding Respondents' misconduct with respect to Evergreen's: (1) failure to satisfy its service commitments while preferring higher-priced freight, (2) imposition of extracontractual surcharges for the freight that Evergreen did carry for Complainant, and (3) imposition of detention and demurrage, with descriptive documentation *via appendices*, to the interrogatories posed in the First Interrogatories and the Supplemental Interrogatories. Respondents filed the Motion despite their ongoing review of

the Responses to Supplemental Interrogatories, (*see* Joint Status Report and Motion to Extend Deadlines, Dkt. 43 ¶ 2 filed (stating on August 18, 2025 “BBBY also submitted Responses and Objections to Evergreen’s Second Set of Interrogatories, dated August 5, 2025, which responses Evergreen is reviewing.”)), which are relevant to the First Interrogatories.

## **II. Complainant’s Responses to the First Interrogatories Were Reasonable, Adequate, and Complete.**

Complainant’s Supplemental Responses, alongside the Responses to Supplemental Interrogatories responding to overlapping topics, adequately answered the respective interrogatories. Complainant has not refused to respond to any Interrogatory or to produce relevant documents in its possession. Indeed, although Respondents make much of the use of business records to respond to Interrogatories, Complainant’s response *does not* “avail itself of discovery rules allowing the production of business records in lieu of narratives” (Motion at 1) as claimed by Respondents, because *Complainant’s answers each contain narratives*, explaining how the underlying documents, business records or otherwise, are relevant.

In reference to Interrogatories Nos. 5-16 Respondents make two incorrect assertions, (1) that the spreadsheets Complainant provided in response to these Interrogatories “did not provide the requested information and [(2)] even if they did, which is denied, their number, size and complexity made it impossible for [Respondents] to identify and extract the data within them containing the information requested.” Motion at 2. The first point has no merit: as clearly set forth in the Supplemental Response, the referenced spreadsheets do contain information regarding the containers *actually shipped* by Respondents on behalf of Complainant, containers Complainant actually shipped with other VOCCs, and containers Complainant actually shipped on the spot market with NVOCCs, as well as containing detailed information including shipping lanes, dates, and costs associated with ocean freight, other surcharges, and detention and demurrage charges. As detailed below with respect to each Interrogatory Response that Evergreen claims to be deficient, Complainant’s responses are

wholly adequate.

To the second argument, despite Respondents' claim that the documents produced and referenced in the Supplemental Responses are "impossible" for Respondents to "identify and extract data," Respondents have already proven that they can review and analyze these data sources in this case *by entering each of the three spreadsheets at issue in Paul Pastor's deposition* dated July 28, 2025. See Pastor Exhibit 3, Pastor Exhibit 4, and Pastor Exhibit 6. Respondents' counsel entered and discussed these exhibits on the record before notifying Complainant of any issue regarding the sufficiency of the Supplemental Responses. In the deposition, Respondents' counsel was not impeded by the size of the spreadsheets and was able to access each of these documents from the Bates-stamped, produced version from Complainants' productions and to ask Mr. Pastor about each column in these three exhibits. Mr. Pastor provided his own understanding of the terms in the titles of the columns and walked Respondents' counsel through data that counsel was not familiar with, in order to help Respondents understand the documents. These documents were also discussed within the deposition of Mr. David Kastin, who served as a corporate witness for BBBY, and Mr. Michael Goldberg, who was deposed on August 19, 2025.

Thus, as discussed in greater detail in the Supplemental Responses and Responses to Supplemental Interrogatories, the spreadsheets shared with Respondents represent relevant data from Complainant in response to the Interrogatories. Taken in combination, the produced spreadsheets from Complainant's records show VOCC and NVOCC carriage for Complainant during the 2020 and 2021 shipping years, which is the timeline at issue for Complainants claims. These are the periods where Complainant has alleged violations of the Shipping Act and the documents contain details of the actual carriage during these two shipping years. This data includes information regarding price for freight, shipped date, lanes, carrier, and amounts of detention and demurrage, and are all relevant to the questions being answered. As explained in the Supplemental Responses, much of this

information comes directly from data from Complainant's third-party payment processing provider Berman Blake, demonstrating its reliability. Additionally, despite the number of rows of information, the information can all be sorted based on the characteristics above such as carrier, dates, lanes, or charge types. This highlights the ridiculous position by Evergreen that Complainant, by providing full access to its available shipping data in a format that can be sorted and filtered, has somehow failed to satisfy its discovery obligations. Simply put, the number of rows or columns is irrelevant when the columns have titles, the rows can be sorted and filtered, and where Complainant has explained how to use the documents to come to its answers.

Complainant has also offered numerous times to Respondents (in addition to deponents doing the same) to walk them through the spreadsheets to share how they function and to describe the data therein. Respondents have not agreed to meet and confer to discuss these documents or to otherwise attempt to resolve their alleged inability to analyze key documents in this case. *See Priya Decl. on Good Faith ¶¶ 5-6.*

The documents referenced in the Supplemental Responses are described as follows:

**Pastor Exhibit 3** (BBBY\_EVERGREEN-0000744754), as described in Supplemental Response to Interrogatory No. 5:

contains a pivot table with the volume of cargo, converted to FEUs, shipped by Evergreen for BBBY during the relevant time period, which is far less than the service commitments from Evergreen to BBBY set forth in the Service Contracts. As set forth in the data contained in BBBY\_EVERGREEN-0000744754, for the 2020 Shipping Year, there was a shortfall of 789 FEUS and for the 20201-2022 Shipping Year there was a shortfall of 259.9 FEUs.

As can be seen from the data, Respondents shipped far less than the service commitments from Evergreen to BBBY set forth in the Service Contracts.

**Pastor Exhibit 6** (BBBY\_EVERGREEN-0000271786), as described in Supplemental Response to Interrogatory No. 5:

and its accompanying parent email BBBY\_EVERGREEN-0000271785, were

produced in this proceeding as a part of BBY's third production made on February 25, 2025. The document contained at bates number BBY\_EVERGREEN-0000271786 is a spreadsheet that was sent as an attachment to an email (produced in this action at bates number BBY\_EVERGREEN-0000271785) from Paul Pastor to Ian Pinchuk on May 17, 2023. The subject line of the email was "Berman file v3" and the name of the spreadsheet file at bates number BBY\_EVERGREEN-0000271786 is identified as "Copy of Copy of Berman\_Import 050423 v3.xlsb". This document contains container information data from BBY's third-party payment processing service, Berman Blake.

The relevant data points within this document to Respondents' Interrogatories are listed below:

- Column B PROCESS\_DATE
- Column E CARRIER\_NAME
- Column L BILL\_OF\_LADING
- Column N CONTAINER\_NUMBER
- Column P CARRIER
- Column AD SHIP\_DATE
- Column AE RECEIVE\_DATE
- Column AG INVOICE\_DATE
- Column AM PORT\_CODE\_ORIGIN
- Column AU PORT\_CODE\_DESTINATION
- Column BC CONTAINER\_SIZE
- Column BG ACC\_DESCRIPTION
- Column BH TOTAL\_CHARGED
- Column BI TOTAL\_PAID
- Column BJ Charge Group.

**Pastor Exhibit 4** (BBY\_EVERGREEN-0001380997), as described in Supplemental

Response to Interrogatory No. 5:

supplements the records contained within the Berman data reflected in BBY\_EVERGREEN-0000271786. BBY\_EVERGREEN-0000271786 and BBY\_EVERGREEN-0001380997 together comprise the data necessary to compare the cost of containers shipped with NVOCCs on the shipping lanes that were supposed to have been covered by the 2020 Service Contract and 2021 Service Contract, with the costs for such containers pursuant to each time period to calculate the additional incremental costs incurred by BBY to ship actual containers on the same lanes and in the same shipping year as a result of Evergreen's failure to satisfy its service commitments.

Together, these exhibits provide the data necessary to compare the cost of containers shipped with NVOCCs on the shipping lanes that were supposed to have been carried under the service commitments of the 2020 Service Contract and 2021 Service Contract by Respondents. The data also contains the costs for such containers during the relevant time period in order to calculate the additional incremental costs incurred by BBY to ship *actual containers* on the *same lanes* and in the *same shipping year* as a result of Evergreen's failures to honor its service commitments. Similarly, the data allows the comparison of the ocean freight rates charged by Respondents with the rates provided for by the Service Contracts, and also allows for the sorting of detention and demurrage charges for containers carried by Respondents.

Based on the foregoing and the Supplemental Responses, Complainant has responded to the Interrogatories, *directly*, and has not failed to answer. Specifically:

**Interrogatory Nos. 5, 6 and 14** requested information supporting Complainant's position as alleged in the Verified Complaint (the "Complaint"), that Evergreen failed to satisfy its service commitments in preference of other cargo to maximize Evergreen's profits as alleged in the Complaint.

In response:

- Complainant cited to Pastor Exhibit 4 to show Respondents' failure to satisfy its service commitments.
- Complainant also cited to Pastor Exhibits 6 and 3 to show that Complainant had to turn to the spot market to ship containers that should have been shipped by Respondents on the same lanes and during the time period covered by the relevant Service Contracts.
- Complainant explained that Evergreen enriched itself by prioritizing higher priced freight as evidenced by their immense and gratuitous revenues profits in FY 2020 and 2021, as well as by the higher amounts charged to Complainant for what little ocean cargo Respondents did carry on behalf of Complainant.

Further, the Complaint cites to and quotes multiple communications, all of which have been produced in this proceeding<sup>2</sup>, regarding Respondents' conduct:

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<sup>2</sup> Complainant has provided references to the bates numbers of the quoted documents from within its discovery in this

- In an email dated August 18, 2020, a BBY employee wrote to Evergreen including a chart of bookings for eight different lanes between Asia and the U.S. showing low bookings of less than 10 containers for six out of the nine weeks projected. “EMC team, see below what was reported to us by Yusen origin for confirmed bookings [...] We need more support and we need it out of Shanghai”. BBY\_EVERGREEN-0000008819.
- In an email dated September 2, 2020, a BBY employee wrote to Evergreen: “EMC, as of today we show ‘0’ confirmed bookings for EMC in [week] 37. We need support from Shanghai to [the United States East Coast] next week, please release 6 FEU to BB[Y] based on our MQC allocation”. BBY\_EVERGREEN-0000008763.
- In an email dated October 28, 2020, a BBY employee wrote to Evergreen employee Abdel El-Hely, “our contract is for 1250 FEU therefore our weekly allocation using 52 [weeks] should be 24 FEU’s. your below allocation weekly totals 9 FEU. We need the other 15 FEU’s”. BBY\_EVERGREEN-0000006148.
- In an email dated November 23, 2020, a BBY employee wrote to Evergreen: “EMC team, please advise what is happening in that we are not see the lift in [week] 47 as well as [week] 48[] We need the support”. BBY\_EVERGREEN-0000005993.
- Evergreen’s practice of conditioning service commitments on the payment of extracontractual surcharges such as PSS includes an example where Evergreen told Complainant that “[t]here is no rate that is required (you have rates in the contract) but most people are taking \$7-8000 premiums . . . currently to really stay below market level but above the older signing levels.” BBY\_EVERGREEN-0000006682.
- Evergreen’s solicitation of a “voluntary rate increase” and pressuring Complainant to match the “many accounts requesting increases ranging from \$1200–\$2000 voluntary”. BBY\_EVERGREEN-0000006152; BBY\_EVERGREEN-0000006171.
- Complainant expressly told Evergreen “[w]e are paying a premium which is not a small dollar amount” and that “we need our minimum MQC/52 (24-FEU per week)”, to which Evergreen admitted “there is no way that we can provide MQC/52 right now”. BBY\_EVERGREEN-0000026810.

These documents, quoted in the Complaint and produced in this proceeding during discovery, clearly demonstrate Evergreen’s practice of failing to allocate space while simultaneously seeking to charge higher prices, and the Supplemental Responses fully respond to the Interrogatories that simply ask Complainant to explain the facts supporting the positions as alleged in the Complaint.

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proceeding, but has not included each document as an exhibit hereto because relevant quotes are contained in the Complaint and they are not directly relevant to the present Motion. Complainant will happily provide copies of any documents requested by the Presiding Officer, under seal.

**Interrogatory Nos. 7, 8, and 9** ask for information related to cargo that Evergreen did not carry for Complainant and the costs to cover such failures. Complainant has adequately responded to these interrogatories by providing the Excel sheets set forth above. As reminder, those sheets demonstrate (1) the overall failures by Respondents to carry cargo volumes agreed to under the Service Contracts, and (2) the fact that Complainant *did* have to cover such shortfalls at significantly higher prices through NVOCCs (which naturally it would not have done had Respondents made that space available at the agreed, lower contract cost). On the latter point, Complainant's former employees and deponents have only recently testified to this position, demonstrating that Complainant is continuing to gather additional evidence through the ongoing discovery process to address its claims. Additionally, as shown by the documents quoted in the Complaint that have been produced to Evergreen in this proceeding, Evergreen made clear through its communications and booking behavior in the 2020 and 2021 shipping years that it would not meet its service commitment obligations to Complainant, such that Complainant and its agents knew that they could not even seek to make bookings that might allow Respondents to fulfill their service commitments, as they were told that no such space existed. Furthermore, with respect to booking attempts that were attempted but rejected, Respondents have also acknowledged that Yusen may have such relevant documents that Complainant does not: "Evergreen has learned that this means that all BBY's bookings with ocean carriers were made by and through Yusen Logistics" and "information relevant to BBY's carriage during the 2020 and 2021 shipping years might be available from BBY's Ocean Freight Manager, non-party Yusen Logistics." Joint Status Report and Motion to Extend Deadlines, Dkt. 43 ¶ 4.

**As to Interrogatory Nos. 12 and 15**, which asked for facts concerning Evergreen's practice of imposing premium pricing and extracontractual surcharges, the Excel documents cited in response to those Interrogatories again provide the data showing the amounts that Complainant shipped with Respondents, and at what costs and on what lanes/time periods, which can be cross referenced with the

amounts that *should* have been charged under the Service Contracts to calculate the extracontractual overcharge by Respondent. These facts, in addition to the documents quoted in the Complaint<sup>3</sup>, form the basis for Complainant's allegations and are more than sufficient:

- Evergreen's practice of conditioning service commitments on the payment of extracontractual surcharges such as PSS includes an example where Evergreen told Complainant that "[t]here is no rate that is required (you have rates in the contract) but most people are taking \$7-8000 premiums . . . currently to really stay below market level but above the older signing levels." BBY\_EVERGREEN-0000006682.
- Evergreen's solicitation of a "voluntary rate increase" and pressuring Complainant to match the "many accounts requesting increases ranging from \$1200–\$2000 voluntary". BBY\_EVERGREEN-0000006152; BBY\_EVERGREEN-0000006171.
- Complainant expressly told Evergreen "[w]e are paying a premium which is not a small dollar amount" and that "we need our minimum MQC/52 (24-FEU per week)", to which Evergreen admitted "there is no way that we can provide MQC/52 right now". BBY\_EVERGREEN-0000026810.
- In an email dated November 24, 2020, an Evergreen employee explicitly stated the following: "Taipei is asking if it's OK to move the PSS from your notes section into your rates section. What this means is you currently have a note stating your PSS is valid till end of December under the 'notes tab' in your contract. If we remove this and instead just add the PSS amount into the 'rates tab' than this will allow Taipei to confirm more than the above allocation. I believe this will help on Taipei's end to get confirmations faster since maybe POL will see that you guys are paying a premium in the rate sheet directly and can confirm bookings faster? Anyways I just want to clarify this WILL NOT change anything in your contract currently, just something to help POL side and this would not require a new amendment, just a revision amendment (so no signature required just an e-mail sent with changes made)". BBY\_EVERGREEN-0000005921.

Discovery remains ongoing, and Complainant will identify additional supporting documents as they are obtained and as deponents continue to discuss these issues in their testimony.

**Interrogatory Nos. 10 and 11** request information regarding the additional costs incurred by Evergreen's shortfall. As outlined above in response to Interrogatory Nos. 5, 6, and 14, the three identified excel sheets provide the information necessary regarding the origin of each document, the information contained within, and the methodology used by Complainant to identify containers shipped with NVOCCs on the same lanes covered by the Service Contracts and during the relevant

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<sup>3</sup> All of which have been produced to Respondents in this proceeding.

time periods to compare the cost of such containers with what they should have cost under the Service Contracts. Additionally, as Respondents are aware these calculations have been methodically broken down as reflected in Appendices A-1 through A-8 to Complainant's Responses to Supplemental Interrogatories.

As to **Interrogatory No. 13**, which requested facts supporting Complainant's claim that Complainant made complaints to Evergreen, far from refusing to identify documents, Complainant has consistently detailed the basis for its allegations. First, Complainant cited to the spreadsheet documents demonstrating Respondents' failures and imposition of improper charges and detention and demurrage. Further, the Complaint quotes many such complaints, which have all been produced to Respondents during discovery. Such complaints include, but are not limited to, the following:

- An August 18, 2020 email highlighting low bookings and stating "[w]e need more support and we need it out of Shanghai". BBY\_EVERGREEN-0000020253.
- A September 2, 2020 email noting "EMC, as of today we show '0' confirmed bookings for EMC in [week] 37" and demanding that Evergreen "please release 6 FEU to BB[Y] based on our MQC allocation". BBY\_EVERGREEN-0000008763.
- An October 28, 2020 email calculating that its weekly allocation should be 24 FEUs while Evergreen was only providing 9 FEUs, stating, "We need the other 15 FEU's". BBY\_EVERGREEN-0000006148.
- A November 23, 2020 email asking, "please advise what is happening in that we are not see the lift... We need the support." BBY\_EVERGREEN-0000005993.
- A December 3, 2020 email stating, "we need our minimum MQC /52 ( 24-FEU per week). We are paying a premium which is not a small dollar amount. . . . As mentioned we have cargo backed and part is due to EMC short fall in not loading our minimum's". BBY\_EVERGREEN-0000026810.
- On October 18, 2021, and February 9, 2022, BBY made formal requests for Evergreen to reduce or eliminate demurrage and detention charges, both of which Evergreen refused. Complaint ¶ 59.

Furthermore, the Complaint notes that one of BBY's logistics agents "repeatedly reported in its regular delivery updates that congestion at terminals and lack of equipment impeded its ability to pick up and return containers." Complaint ¶¶ 56-57.

These documented complaints are the basis for the allegations in the Complaint. Discovery is ongoing, and Complainant will identify further complaints and issues as they are developed.

Complainant's responses to **Interrogatory No. 16**, which broadly asked Complainant to explain the facts supporting Complainant's assertion that Evergreen engaged in "numerous unfair and unreasonable practices against Complainant", identifies the basis for Complainant's claims, which, as discussed above, reference Evergreen's failures to satisfy its service commitments, imposition of extracontractual charges, and imposition of detention and demurrage based on the shipping data provided to Respondent. Further, these points are expanded upon in the Complaint itself, in quoted documents (cited above) that have been produced in discovery, and which may be further supplemented through ongoing discovery. This information sufficiently addresses the interrogatory by outlining the basis for the allegations detailed in the Verified Complaint, the exact request in the interrogatory. Discovery is ongoing, and the complainant may supplement its responses as more supporting details are developed either through documentary evidence or depositions.

### **III. Respondents' Motion Must Be Denied Because They Failed to Meet and Confer.**

To the extent that Respondents had any specific issues interpreting any of the Supplemental Responses, Complainant has made itself available to meet and confer on that issue. (Priya Decl. on Good Faith ¶¶ 5-6). Nevertheless, Evergreen has consistently refused such a meeting. *Id.* With discovery ongoing in this case, and continuous productions being made by Evergreen, Complainant maintains that it may uncover additional communications that support its claims. Furthermore, Complainant is conducting an ongoing review of Evergreen's productions and third-party productions to provide additional support for its claims. For this reason, the Motion is clearly premature and must be denied.

### **IV. Respondents Have Not Satisfied the Movant's Burden on a Motion to Compel.**

In Commission proceedings, "[p]arties may obtain discovery regarding any nonprivileged

matter that is relevant to any party's claim or defense." 46 C.F.R. § 502.141(e)(1). When "a party fails to answer an interrogatory", the opposing party may file a motion to compel. 46 CFR § 502.150(a)(1); *see also* Fed. R. Civ. P. 37(a)(3)(B)(iii)). "The party moving to compel discovery has the burden of proving that the opposing party's answers were incomplete." *Williams v. Ct. Servs. & Offender Supervision Agency*, No. 08-CV-1538 (RWR-AK), 2013 WL 12321547, at \*2 (D.D.C. Mar. 25, 2013) (citing *United States, ex rel. El-Amin v. George Washington Univ.*, 2000 WL 1763679, at \*1 (D.D.C. 2000)). In this case, Respondents have not met the standard, as Complainant has not failed to answer and has instead provide ample, targeted information in response to the First Interrogatories.

The D.C. Circuit has approved the production of business records under Fed. R. Civ. P. 33(d) to answer interrogatories. *See Haughton v. D.C.*, 161 F. Supp. 3d 100, 102 (D.D.C. 2014). Further, the D.C. Circuit has only compelled the production of a narrative in situations where the responding party ***did not already include*** such a narrative and instead directed the requesting party to generalized documents, alone. *See, Id.* at \*102 (partially granting a motion to compel because the Magistrate Judge "found several of Defendant's interrogatory responses lacking insofar as they directed Plaintiff to hundreds—if not thousands of pages of documents without including an index of the material or pinpointing a particular range of pages in which the requested information could be found."); *English v. Wash. Metro. Area Transit Auth.*, 323 F.R.D. 1, 18 (D.D.C. 2017) (partially granting a motion to compel where an interrogatory response was incomplete since respondents only referred the interrogating party to an investigative file and video of the incident at issue, but neither provided a complete answer to the interrogatory since they requested a personal description of the incident).

Respondents' Motion *ignores* the fact that Complainant has answered the First Interrogatories fully, utilizing available data and information to support its answers in a narrative form. Respondents' Motion simply nitpicks Complainant's answers without assessing their sufficiency. Respondents

have not met the burden of proving that Complainant has failed to answer an interrogatory, failed to provide narrative responses, or referred Complainant to hundreds or thousands of documents with no guidance on what information is relevant. Complainant's steps of providing narrative responses to the First Interrogatories, with supporting documentation, satisfies Complainant's obligations. Given that Complainant has continued to work with Respondents and responded further to related interrogatories, Complainant's efforts have sufficiently provided the requested information to Respondents in as clear and accurate a format as possible.

Respondents' reliance on *U.S. S.E.C. v. Elfindepan, S.A.*, 206 F.R.D. 574 (M.D.N.C. 2002) is unavailing. There, the defendants met their *prima facie* burden of showing that the use of Rule 33(d) was inadequate because in that case the plaintiff "answered the interrogatories by directing defendants to peruse plaintiff's contempt papers and supporting documents, declarations, affidavits, and deposition excerpts" which were voluminous and made it difficult for defendants to ascertain which documents plaintiff would be relying on. *Elfindepan, S.A.*, 206 F.R.D at 576. This same *prima facie* showing is not met here, as Respondents have not even argued that Complainant has failed to satisfy its obligations with respect to the First Interrogatories by referring to a mass of documents without guidance or specificity, but instead complain that the limited number of documents cited—which were produced in this case as native files from Complainants' records—are too voluminous to understand (despite Respondents' ability to use all such documents in depositions and ask questions of witnesses about how they are structured). Complainant has not asked Respondents to peruse a broad set of documents generally, or directed Respondents to rambling or confusing testimony, as was the case in *Elfindepan, S.A.* Instead, Complainant has cited a concise set of relevant documents and provided substantive, narrative descriptions. Respondents have not shown, at all, that Complainant has failed to answer their First Interrogatories, only that they have responded to them with documents that Respondents allegedly cannot parse through. As discussed above, that is neither

accurate (given the Respondents' apparent usage of the documents) nor the standard at issue. For this reason, the Motion fails.

However, even if Respondents had made a *prima facie* showing of an improper use of business records and the burden had shifted, Complainant still meets its burden of rebutting the Motion. Complainant has provided instructions within the Supplemental Responses and Responses to Supplemental Interrogatories to Respondents for how they may review and understand each document cited, how it fits into the overall analysis of Complainant's claims, and has attempted to provide additional explanation regarding the necessarily large data sets that comprise Complainant's entire ocean freight activities. Complainant has also made available for deposition several former BBY employees with firsthand knowledge of the documents at issue—or who reviewed them as a part of verifying the Interrogatory Responses—and a corporate witness, all of whom have viewed and discussed those documents during questioning by Respondents' counsel. These actions are far more than offered by the deficiently responding parties in the cases Respondents cite, and demonstrate the lengths that Complainant has gone to provide responses to the First Interrogatories that are adequate and full.

Respondents further misconstrue prior precedent within the FMC regarding these disputes. Respondents cite the Presiding Officer's order in *TZ SSE Buyer, LLC v. COSCO Shipping Lines Co., Ltd.*, which cites Respondent COSCO's "document dump" as support for a partial grant of the motion to compel in that case. Motion at 6 citing Docket No. 24-09, 2025 WL 1454511 (ALJ May 15, 2025) (the "*TZ SSE MTC Order*"). In *TZ SSE Buyer*, the conduct of Respondent COSCO differed widely from Complainant's behavior in this case. In the two instances where Your Honor refers to the "document dump," the first concerns generalized hyperlinks to landing webpages with no information about detention and demurrage and a tariff webpage with no information about the responsive tariff rules, respectively. *TZ SSE Buyer*, 2025 WL 1454511, at 7. Complainant in this case

has not provided Respondents with vague or unhelpful weblinks that have no bearing on the case or without specific information to help assess the claims. In contrast, Respondents seem to be arguing that they have received data that is too rich in content for them to analyze and too specific to the claims at issue.

Secondly, the term “document dump” is used to refer to COSCO “bury[ing] the answer” among its document productions and inviting Complaint “to hunt for it.” *Id.* at 10. Complainant has produced tens of thousands of documents in this case, yet has pointed to only a handful of key documents and calculations to provide Respondents with the direct information it has requested. Complainant has provided spreadsheets with container or bill-of-lading level pricing and shipment data, with VOCCs and NVOCCs covering the 2020 and 2021 Shipping Years. In the *TZ SSE MTC Order*, Your Honor suggests that “[i]f COSCO has already produced documents that show payments made on the disputed invoices and identify the payors, it must point Complainant to the specific document or range of documents that contains this information.” *Id.* In this case, Complainant has done *far more* than simply identify specific documents, and instead through its Supplemental Responses and Responses to Supplemental Interrogatories has identified the relevant documents, explained their origin, and provided a detailed walkthrough of how Complainant has calculated its reparations claims and supported its position that Respondents failed to meet their service commitments to Complainant while preferring higher-priced freight.

Respondents similarly misconstrue Chief Administrative Law Judge Wirth’s decision in *MCS Industries, Inc. v. Cosco Shipping Lines Co., Ltd. and MSC Mediterranean Shipping Company SA*, Docket No. 21-05, 2021 WL 5908366 (ALJ December 8, 2021) (the “*MCS MTC Order*”). There, Chief Judge Wirth’s statement that MSC’s discovery responses referred “generally to the parties’ respective document productions” (*MCS Industries, Inc.*, 2021 WL 5908366, at 4) is *literal*, in that the respondent in that case provided responses such as:

Persons who have information relevant to the proceeding are identified in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. The objections contained herein are made by undersigned counsel and are supported by those documents as well.

*MCS Industries, Inc. v. Cosco Shipping Lines Co.*, Complainant's Motion to Compel, Dkt. 21 at 8.

Chief Judge Wirth's decision in the MCS MTC Order was in response to a number of general responses, similar to that quoted above, requiring the moving party to search through the entire document production in order to identify any relevant responses. In that case, the party was compelled to produce discovery after it had essentially not shared any relevant response. To suggest that Complainant has conducted itself similarly in this case is disingenuous. Respondents fail to point to any holding of a single case, before the Commission or otherwise, where a motion to compel was granted where a party identified specific, produced documents by name that had too much detail or were too complex for the receiving party to understand.

#### **V. Complainant Is a Bankrupt Entity with No Ability to Generate New Records or Revise Existing Evidence in this Case**

Respondents have submitted this Motion to Compel to force Complainant to produce different responses to the First Interrogatories, without working with Complainant to understand the data provided or understanding the nuance of being a bankrupt entity solely existing for the purpose of pursuing outstanding claims to the estate. Complainant is no longer a business with a functioning data repository or employees. Complainant archived relevant data years ago to be preserved by the BBY estate in order to litigate these claims. That data exists as is, and there are no longer staff working at BBY to alter or reformat the data in a way that is more targeted towards Respondents Interrogatories.

#### **VI. Conclusion**

Complainant's responses are fully adequate to respond to the First Interrogatories and, in any event, discovery is ongoing in this case and to the extent additional relevant information becomes

available to respond further to the First Interrogatories, then such responses may be amended. The Presiding Officer should therefore deny the Motion.

Dated: August 27, 2025

Respectfully submitted,

HUTH REYNOLDS LLP

*Mohini Priya Banerjee Rarrick*

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Huntington, NY 11743

*Counsel for Complainant 20230930-DK-  
Butterfly-1, Inc., f/k/a Bed Bath & Beyond Inc.*

### **CERTIFICATE OF SERVICE**

I hereby certify that I have this day served the foregoing document upon Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. by emailing a copy to their counsel of record listed below:

Ronald Betancourt  
rbetancourt@bge-law.com  
John Greco  
jgreco@bge-law.com  
Alton J. Evans  
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151 Bodman Place – Suite 200  
Red Bank, New Jersey 07701  
732-530-4646

*Counsel for Respondents Evergreen Line Joint Service Agreement  
(FMC#011982) et al*

Dated: August 27, 2025

*Mohini Priya Banerjee Rarrick*  
Mohini P.B. Rarrick  
Counsel For Complainant Nielsen & Bainbridge,  
LLC.

Before the  
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 24-12

20230930-DK-BUTTERFLY-1, INC., f/k/a BED BATH & BEYOND INC. v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of  
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,  
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., AND  
EVERGREEN MARINE (SINGAPORE) PTE. LTD.

**DECLARATION OF MOHINI PRIYA IN OPPOSITION  
TO RESPONDENTS' MOTION TO COMPEL COMPLAINANT  
TO PROVIDE RESPONSIVE INTERROGATORY ANSWERS**

The undersigned, Mohini Priya a/k/a Mohini P.B. Rarrick, declares and certifies:

1. I represent Complainant ("BBBY") in this proceeding. I am an attorney duly licensed to practice law in the State of New York and the District of Columbia, and I work for the law firm Huth Reynolds LLP. I am fully familiar with the facts of this case and the exhibits attached hereto.
2. I make this Declaration in opposition to Respondents' motion to compel BBBY to provide responsive interrogatory answers to Respondents' First Interrogatories.
3. Attached hereto as Exhibit A is a true and correct copy of Respondents' First Supplemental Interrogatories (the "Supplemental Interrogatories"), served on July 7, 2025.
4. Attached hereto as Exhibit B is a true and correct copy of Complainant's verified Responses and Objections to the Respondents' Supplemental Interrogatories, served on August 5, 2025.

I certify under penalty of perjury that the foregoing is true and correct.

Executed on August 27, 2025.

*Mohini Priya Banerjee Rarrick*  
Mohini P.B. Rarrick  
Counsel for Complainant 20230930-  
DK-BUTTERFLY-1, Inc.

# EXHIBIT A

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH &  
BEYOND INC., *Complainant*,

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT  
(FMC#011982) consisting of EVERGREEN MARINE  
CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK)  
LIMITED, ITALIA MARITTIMA SpA, EVERGREEN  
MARINE (HONG KONG) LTD., AND EVERGREEN  
MARINE (SINGAPORE) PTE. LTD., *Respondents*.

**DOCKET NO. 24-12**

**RESPONDENTS' FIRST SUPPLEMENTAL SET OF INTERROGATORIES**

PLEASE TAKE NOTICE, that pursuant to Rule 141 and 145 of the Federal Maritime Commission Rules of Practice and Procedure, 46 C.F.R. 502.141 and 502.145, and applicable Federal Rules of Civil Procedure, Respondents, Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, "Evergreen" or "Respondents"), by and through their attorneys, Betancourt, Greco & Evans LLC, hereby request that complainant, 20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. ("BBB" or "Complainant"), answer separately and fully in writing, under oath, the interrogatories set forth below ("Interrogatories") within the time prescribed by the Federal Maritime Commission Rules of Practice and Procedure. In answering these Interrogatories, furnish all information available to you, including information possessed by any agent, employee, or attorney representing you.

## **INSTRUCTIONS**

The following instructions apply to all discovery requests:

1. Respondents' First Supplemental Set of Interrogatories to Complainant ("Interrogatories") is directed to 20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH & BEYOND INC. and covers all information in your possession, custody or control, including information in the possession of your officers, employees, agents, servants, representatives, attorneys, or other persons directly or indirectly employed or retained by you, or anyone else acting on your behalf or otherwise subject to your control, and any merged, consolidated, or acquired predecessor or successor, parent, subsidiary, division or affiliate, including, without limitation information in any corporate archives or document collection of any kind over which you exercise any authority to control access to any degree.

2. These Interrogatories are continuing in nature: your response must be supplemented, in accordance with Fed. R. Civ. P. 26(e), if you, your counsel, or your agents obtains further or different information or documents prior to or during trial on the matters alleged in the Complaint.

3. In answering these Interrogatories, please set forth the Interrogatory or subpart thereof to which each answer corresponds immediately prior to your answer.

4. A request for the identification or description of any fact includes, without limitation, a request for the identification and description of all persons with knowledge of such fact, and all documents relating to such fact.

5. Whenever in these Interrogatories there is a request to identify a "document," state or identify:

- a. its date;
- b. its author and signatory;

- c. its addressee and all other persons receiving copies;
- d. the type of document (letter, memorandum, contract, report, accounting record, etc.);
- e. its title;
- f. its substance;
- g. its addressee and all other persons receiving copies;
- h. its custodian;
- i. its present or last known location;
- j. its Bates number or other similar identifying number or label; and
- k. if the document was, but no longer is, in your possession or subject to your control, state where and in whose possession or control it is.

6. Whenever in these Interrogatories there is a request to identify a "person," where the person is a natural person, state or identify the person's:

- a. full name;
- b. current and last known business and residence address;
- c. employer's name and address; and
- d. position and/or or occupation.

7. Whenever in these Interrogatories there is a request to identify a "person," where the person is not a natural person, state or identify the person's:

- a. full name;
- b. the form of its organization (corporation, partnership, etc.);
- c. present or last known principal place of business;
- d. telephone number; and

e. business.

8. Whenever a full and complete answer to any Interrogatory or part of an Interrogatory is contained in a document or documents, the documents, if properly identified as answering a specific numbered interrogatory or part of an interrogatory, may be supplied in place of a written answer provided that the specific sections or pages from the document that are responsive to the Interrogatory are identified.

9. Interrogatories calling for numerical or chronological information shall be deemed, to the extent that precise figures or dates are not known, to call for estimates. In each instance that an estimate is given, it should be identified as such together with the source of information underlying the estimate.

10. If you currently lack information to answer any Interrogatory, please state:

- a. the responsive information currently available;
- b. the responsive information currently unavailable;
- c. efforts which you intend to make to secure the information currently unavailable; and
- d. when you anticipate receiving the information currently unavailable.

11. If you do not know the answer to any Interrogatory, identify the person(s) who know(s) or would be expected to know the answer to such Interrogatory.

12. If anything is deleted from a document produced in response to these Interrogatories, identify each such document in your response and state:

- a. the privilege or other reason asserted for the deletion;
- b. the subject matter of the deletion;
- c. the factual basis giving rise to the privilege or other reason asserted; and

d. the identity of the person responsible for the deletion.

13. If you believe that any information requested by any of the following Interrogatories is privileged, please identify such information, state the privilege asserted, and state the facts giving rise to such privilege.

14. In the event that you object to a particular Interrogatory as vague or burdensome, you should answer that and all other Interrogatories to the best of your ability and in good faith, preserving any bona fide objections if necessary.

15. For each interrogatory set forth herein, identify each and every document and person with knowledge that is relevant to your answer, and each and every person who provided the information upon which each of your answers is based.

16. Unless otherwise specified, the following Interrogatories cover documents from 2016 to the present.

### **DEFINITIONS**

Notwithstanding any definition set forth below, each word, term or phrase used in these Interrogatories is intended to have the broadest meaning permitted under the Federal Rules of Civil Procedure. As used in these Interrogatories, the following terms are to be interpreted in accordance with these definitions:

1. “And” and “or” have both conjunctive and disjunctive meanings as necessary to bring within the scope of each request all documents and information that might otherwise be construed to be outside its scope. “Agreement” means a contract, arrangement, or understanding, formal or informal, oral or written, between two or more persons.

2. “Communication” means the transmittal of information (in the forms of facts, ideas, inquiries or otherwise) by any means, to include all electronic forms of communications.

3. “Concerning” means relating to, referring to, describing, evidencing or constituting.

4. “Describe” means a complete report of all facts known to you about an incident, event, physical object, person, or other subject, together with any expert opinions about the subject matter, the basis for those opinions, and a description of all relevant documents and evidence that supports and/or refutes the fact or opinion.

5. “Document” or “Documents” are defined to be synonymous in meaning and equal in scope to the usage of the term “documents” in Fed. R. Civ. P. 34(a) and include(s) the term “writing.” Documents include Communications, including but not limited to electronic mail and other electronic messages of any kind. A draft or non-identical copy of a Document is a separate document within the meaning of the term “document.”

6. “Each,” “any,” and “all” mean each and every.

7. “Including,” as used in these Interrogatories, shall be construed inclusively and not as a term of limitation.

8. “Person” means any natural person or any business, legal or governmental entity, association, or other entity.

9. Persons upon whom you “rely” for an Interrogatory answer means any and all of the following: (a) persons who are the source of the information upon which the answer is based, and (b) persons who have information which supports the answer.

10. “You/Your” include the person(s) to whom these Interrogatories are addressed, and all of that person’s agents, representatives, attorneys, and any and all merged, consolidated, and

acquired predecessors, including the previous owner or owners of any lines of business acquired through the purchase of assets or similar transaction, or successors, parents, subsidiaries, divisions, and affiliates, wherever located, and each past and present officer, director, employee, agent, servant and representative of each such entity or individual, and each past and present attorney of each such entity or individual.

11. “Identify” (with respect to persons) means to give, to the extent known, the person’s full name, present or last known address, and when referring to a natural person, additionally, the present or last known place of employment. Once a person has been identified in accordance with this paragraph, only the name of that person need be listed in response to a subsequent discovery requesting the identification of that person.

12. “Identify” (with respect to documents) means to give, to the extent known, the (1) type of document, (2) general subject matter, (3) date of the document, (4) author(s), addressee(s) and recipient(s).

13. The present tense includes the past and future tenses. The singular includes the plural, and the plural includes the singular. “All” means “any and all;” “any” means “any and all.” “Including” means “including but not limited to.” “And” and “or” encompasses both “and” and “or.”

14. If the requested documents are maintained in a file, the file folder is included in these Requests for those documents.

15. Parties. The terms “Complainant” and “Respondent” as well as a party’s full or abbreviated name or a pronoun referring to a party mean the party and, where applicable, its officers, directors, employees, partners, corporate parents, subsidiaries or affiliates. This definition is not intended to impose a discovery obligation on any person who is not a party to the litigation.

16. “Relating to” means containing, constituting, considering, compromising, concerning, discussing, regarding, describing, reflecting, studying, commenting or reporting on, mentioning, analyzing, or referring, alluding, or pertaining to, in whole or in part.

### **INTERROGATORIES**

1. Provide a detailed description and computation of the alleged damages sustained by BBB because of “Evergreen’s wrongful imposition of extracontractual surcharges, including PSS, [which] caused [BBB] to overpay for the carriage that it did receive from Evergreen by at least \$247,087.00 during the 2020-2021 shipping year and at least \$70,568.00 during the 2021-2022 shipping year.” (Complaint ¶ 53; *see also* Complaint ¶ 75.)

2. Provide a detailed description and computation of the alleged damages sustained by BBB because of “Evergreen’s wrongful imposition of the Charges...in amounts up to or exceeding \$1,258,708.18 in improper demurrage and detention charges.” (Complaint ¶¶ 76; *see also* Complaint ¶¶ 54, 65, 100.)

3. Provide a detailed description and computation of the alleged damages sustained by BBB because of “excess freight costs of at least \$1,469,697.96” during the term of the 2020 Service Contract. (Complaint ¶ 45; *see also* Complaint ¶¶ 73, 93.)

4. Provide a detailed description and computation of the alleged damages sustained by BBB because of “excess freight costs of at least \$2,501,232.01” during the term of the 2021 Service Contract. (Complaint ¶ 46; *see also* Complaint ¶¶ 74, 94.)

5. Provide a detailed description and computation of the alleged “lost profit damages” sustained by BBB because of “diminished profit offerings.” (Complaint ¶¶ 45, 46.)

6. Provide a detailed description and computation of the alleged “lost profits, and/or other business damage” sustained by BBB because of “Service Contract...shortfall[s]. (Complaint ¶¶ 91, 92.)

7. Provide a detailed description and computation of the alleged “lost profits as a result of the reduction of imported cargo” sustained by BBB “because of Evergreen’s failure to honor its service commitments.” (Complaint ¶ 97.)

8. Provide a detailed description and computation of the alleged “lost profit” damages sustained by BBB because of Evergreen’s “behavior” and “misconduct.” (Complaint ¶¶ 72, 99.)

9. Provide a detailed description and computation of the “per container average profit applicable to Complainant’s cargo during the 2020-2021 shipping year and the 2021-2022 shipping year [in the approximate amount of] \$66,924.07 or more.” (Complaint ¶ 96.)

Dated: July 7, 2025

BETANCOURT, GRECO & EVANS LLC

s/ Ronald Betancourt

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Ronald Betancourt  
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John Greco  
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151 Bodman Place - Suite 200  
Red Bank, New Jersey 07701  
732-530-4646

*Counsel for Evergreen Line Joint Service  
Agreement (FMC # 011982) et al.*

Certificate of Service

I hereby certify that on this day I have served the foregoing document upon Complainant, 20230930-DK-BUTTERFLY-1, Inc. f/k/a Bed, Bath & Beyond Inc. by e-mailing a copy to its counsel of record listed below:

|                                                            |                                                                                |
|------------------------------------------------------------|--------------------------------------------------------------------------------|
| HUTH REYNOLDS LLP                                          |                                                                                |
| Attorneys for Complainant                                  |                                                                                |
| 20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. |                                                                                |
| Karl C. Huth, Esq.                                         | <a href="mailto:huth@huthreynolds.com">huth@huthreynolds.com</a>               |
| Matthew J. Reynolds, Esq.                                  | <a href="mailto:reynolds@huthreynolds.com">reynolds@huthreynolds.com</a>       |
| Gregory A. Crapanzano II, Esq.                             | <a href="mailto:gcrapanzano@huthreynolds.com">gcrapanzano@huthreynolds.com</a> |
| J. Lee Hill, Esq.                                          | <a href="mailto:lhill@huthreynolds.com">lhill@huthreynolds.com</a>             |
| Mohini P.B. Rarrick, Esq.                                  | <a href="mailto:mpriya@huthreynolds.com">mpriya@huthreynolds.com</a>           |

Dated: July 7, 2025

s/ Ronald Betancourt

---

Ronald Betancourt  
Attorneys for Respondents Evergreen Line

# **EXHIBIT B**

**PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED**

Before the  
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 24-12

20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH & BEYOND INC.

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of  
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,  
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., AND  
EVERGREEN MARINE (SINGAPORE) PTE. LTD.

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**COMPLAINANT'S OBJECTIONS AND RESPONSES  
TO RESPONDENTS' FIRST SUPPLEMENTAL SET OF INTERROGATORIES**

Pursuant to 46 C.F.R. Section 502.145 of the Federal Maritime Commission's ("Commission") Rules of Practice and Procedure, 46 C.F.R. Section 502.1 *et seq.* (the "Rules"), Complainant 20230930-DK-BUTTERFLY-1, Inc., formerly known as Bed Bath & Beyond Inc. ("Complainant") hereby provides these objections and responses to the First Supplemental Set of Interrogatories (each an "Interrogatory" collectively, the "Interrogatories") below, served by Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. ("Evergreen" or "Respondents").

**GENERAL OBJECTIONS**

1. Complainant hereby incorporates the following General Objections and limitations into each of its responses to the Interrogatories below. Each response to the Interrogatories is made

**PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED**

without waiving Complainant's General Objections. Complainant is willing to meet and confer with Respondents to attempt to resolve disputes concerning the Interrogatories and Complainant's objections and responses thereto.

2. Complainant objects to the Interrogatories, including each of the Definitions and Instructions, including sub parts, and the Interrogatories, to the extent they seek to impose requirements that are inconsistent with, or beyond those contemplated by the Shipping Act of 1984, as amended (the "Shipping Act"), the Federal Rules of Civil Procedure, the Commission's Rules, any other applicable provisions of the Code of Federal Regulations, and any Order entered in this action.

3. Complainant objects to the Interrogatories, including all Definitions and Instructions contained in the Interrogatories, to the extent they purport to require the production of documents or information that are subject to any privilege, immunity, or obligation of confidentiality, including, without limitation, the attorney-client privilege, the attorney work product doctrine, the common interest privilege, and privileges applicable to settlement communications. Specific objections on the grounds of privilege are provided for emphasis and clarity only, and the absence of a specific objection should not be interpreted to mean that Complainant does not object to a Request based on an applicable privilege.

4. Complainant objects to the Interrogatories, including all Definitions and Instructions contained in the Interrogatories, to the extent they purport to require the production of documents or information that constitute or contain trade secret, proprietary, and/or confidential information not relevant or necessary to the claims or defenses in this action.

5. Any document or information subject to any privilege, immunity, or obligation of confidentiality that is inadvertently produced by Complainant in response to the Interrogatories

**PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED**

shall not constitute a waiver of any privilege, any other doctrine against disclosure, or Complainant's rights to claw back any such inadvertently produced document or information and object to the use of any such inadvertently produced document or information, in this action or otherwise.

6. Complainant reserves all objections that may be available to it at any trial, hearing, or proceeding or on any motion as to the use or admissibility of any document or information produced by Complainant in response to the Interrogatories. Complainant's decision to produce a document or information in response to the Interrogatories does not constitute an admission by Complainant that such document or information is relevant to the claims or defenses in this action, nor does it constitute an agreement that a request for similar documents or information in this action or any other proceedings will be treated in a similar manner.

7. To the extent not objected to herein, Complainant will produce relevant, non-privileged documents and information in response to the Interrogatories based on Complainant's current knowledge and the documents and information currently in Complainant's possession, custody, or control. Further investigation may reveal additional facts or information that could lead to the identification of additional non-privileged documents or information responsive to the Interrogatories. Complainant expressly reserves the right to supplement, amend, correct, or modify its production of documents and information in response to the Interrogatories if or as further documents or information become available.

8. The full text of the definitions and rules of construction set forth in Rule 33 of the Federal Rules of Civil Procedure, as well as 46 C.F.R. Section 502.145 of the Rules are deemed incorporated herein by reference and apply in all respects to these objections and responses to the Interrogatories.

9. Complainant's General Objections apply to Complainant's responses to each and every specific Interrogatory, even where not explicitly stated in the specific response to each Interrogatory, and are incorporated by reference in each of the responses set forth below, which responses are made subject to, and without waiver of, these General Objections.

### **OBJECTIONS TO DEFINITIONS AND INSTRUCTIONS**

1. Complainant objects to the definitions of "You" and "Your" because they are overly broad and unduly burdensome and purport to require disclosure of information and/or production of documents not in the possession, custody, or control of Complainant. In answering the Interrogatories subject to these objections and responses, Complainant will interpret these terms to mean Complainant and Complainant's current parents and subsidiaries implicated in the claims and defenses in this action.

2. Complainant objects to the definitions of "Document", "Documents", "Communication", "Identify", and "Concerning" to the extent those definitions are not consistent with the requirements of the Federal Rules of Civil Procedure or the Commission's Rules.

3. Complainant objects to the definition of "Person" to the extent that definition is overly broad, unduly burdensome, and not consistent with the Federal Rules of Civil Procedure, the Commission's Rules, or any other applicable laws. Specifically, Complainant objects to any interpretation of "Person" that purports to require disclosure of information or production of documents beyond what is required under the governing rules and laws.

4. Complainant objects to the definition of "Describe" to the extent that it is overly broad and is inconsistent with the requirements of the Federal Rules of Civil Procedure, the Commission's Rules, or any other applicable laws and to the extent that it prematurely calls for the disclosure of expert testimony.

**PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED**

5. Complainant objects to Instruction 1 to the extent that its directive to Complainant is overly broad and unduly burdensome and purports to require disclosure of information and/or production of documents not in the possession, custody, or control of Complainant.

6. Complainant objects to Instructions 1 through 16 to the extent they purport to impose duties on Complainant greater than those contemplated by the Commission's Rules, the Federal Rules of Civil Procedure, or any order of the Presiding Officer in this action.

7. Complainant objects to Instructions 1 through 16 to the extent they conflict with the methods or means of production of documents or information contemplated by the Commission's Rules, by separate agreement of Complainant and Respondents, or by any order of the Presiding Officer in this action.

8. Complainant objects to Instructions 1, 4, 5, 6, 7, 10, 11, and 15, to the extent they require disclosure and/or production of documents and information not in the possession, custody, or control of Complainant.

9. Complainant objects to Instruction 15 as unduly burdensome and disproportionate to the needs of the case to the extent it requires Complainant to "identify each and every document and person with knowledge that is relevant to your answer, and each and every person who provided the information" for each of Complainant's responses to the Interrogatories.

10. Complainant objects to Instruction 16 as unduly burdensome and disproportionate to the needs of the case to the extent it requires Complainant to produce documents "from 2016 to the present".

**INTERROGATORIES**

**INTERROGATORY NO. 1:** Provide a detailed description and computation of the alleged damages sustained by BBB because of "Evergreen's wrongful imposition of extracontractual

**PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED**

surcharges, including PSS, [which] caused [BBB] to overpay for the carriage that it did receive from Evergreen by at least \$247,087.00 during the 2020-2021 shipping year and at least \$70,568.00 during the 2021- 2022 shipping year.” (Complaint ¶ 53; *see also* Complaint ¶ 75.)

**ANSWER:** Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 1 to the extent that it seeks disclosure of information protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and Complainant expressly reserves the right to supplement, amend, correct, or modify its production of documents and information in response to Interrogatory No. 1 if, or as further, documents or information become available.

For the 2020 Service Contract, reparations of at least \$255,818.00 have been calculated based on an assessment of additional fees, premiums, surcharges, or other extracontractual amounts charged by Respondents during the 2020-2021 Shipping Year on top of the service contract rates and other agreed charges within the 2020 Service Contract. Complainant’s calculated reparations amount is the difference between the amounts Complainant actually paid for carriage from Respondents minus the contracted-for rates as agreed in the 2020 Service Contract.

Complainant refers to Appendix B-1, attached hereto, showing data for 133 containers shipped by Evergreen on behalf of Complainant during the 2020 Service Contract.<sup>1</sup>

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<sup>1</sup> Complainant refers Respondents to documents bates-stamped BBY\_ EVERGREEN-0001380997 and BBY\_ EVERGREEN-0000271786, produced to Respondent in this action, which form the basis for BBY’s peak season surcharge/extracontractual surcharge reparations. These produced documents, along with Complainant’s written responses to Respondents’ interrogatories, describe in granular detail the calculations underlying Complainant’s PSS reparations claim. Complainant merged container-level data from BBY\_ EVERGREEN-0001380997 and BBY\_ EVERGREEN-0000271786 to demonstrate the amounts charged by Evergreen in excess of what Evergreen should have charged Complainant, well above the amounts agreed within the Service Contracts to ship such containers.

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For these shipments, Complainant was charged \$489,274.00 in total. Appendix B-2 shows the lanes and sizes of containers that are covered by Appendix B-1, which were included in the 2020 Service Contract. Appendix B-3 demonstrates the “but-for” cost of shipping the same 133 containers, broken down by size and shipping lane, at contract rates. The amount that should have been charged for these shipments was \$233,456.00. Appendix B-4 demonstrates the combination of these data, showing the difference between the actually-paid amount and the “but-for” cost, which amounted to a \$255,818.00 difference.

For the 2021 Service Contract, reparations of at least \$327,881.01 have been calculated based on an assessment of additional fees, premiums, surcharges, or other extracontractual amounts charged by Respondents during the 2021-2022 Shipping Year on top of the service contract rates and other agreed charges within the 2021 Service Contract. The calculated reparations amount is the difference between the amounts Complainant actually paid for carriage from Respondents minus the contracted-for rates as agreed in the 2021 Service Contract.

Complainant refers to Appendix B-5, attached hereto, showing data for 242 containers shipped by Evergreen on behalf of Complainant during the 2021 Service Contract. For these shipments, Complainant was charged \$1,047,641.01 in total. Appendix B-6 shows the lanes and sizes of containers that are covered by Appendix B-5, which were included in the 2021 Service Contract. Appendix B-7 demonstrates the “but-for” cost of shipping the same 242 containers, broken down by size and shipping lane, at contract rates. The amount that should have been charged for these shipments was \$719,761.00. Appendix B-8 demonstrates the combination of these data,

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BBBY\_EVERGREEN-0000271786 was produced in this proceeding as a part of BBBY’s third production made on February 25, 2025. BBBY\_EVERGREEN-0001380997 was produced in this proceeding as a part of BBBY’s sixth document production made on July 15, 2025.

showing the difference between the actually-paid amount and the “but-for” cost, which amounted to a \$327,881.01 difference.

**INTERROGATORY NO. 2:** Provide a detailed description and computation of the alleged damages sustained by BBB because of “Evergreen’s wrongful imposition of the Charges...in amounts up to or exceeding \$1,258,708.18 in improper demurrage and detention charges.” (Complaint ¶¶ 76; *see also* Complaint ¶¶ 54, 65, 100.)

**ANSWER:** Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 2 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines.

Subject to and without waiver of the foregoing, Complainant expressly reserves the right to supplement, amend, correct, or modify its production of documents and information in response to Interrogatory No. 2 if or as further documents or information become available.

In response to Interrogatory 2, Complainant refers to Appendix C, attached hereto, to demonstrate the detention and demurrage charges assessed against Complainant during the 2020-2021 Shipping Year and the 2021-2022 Shipping Year on Respondents’ carriage. The total amounts alleged for such Charges are sums of the detention and demurrage charges reflected in BBY\_EVERGREEN-0000271786, and its accompanying parent email BBY\_EVERGREEN-0000271785, both of which were produced in this proceeding as a part of BBY’s third production made on February 25, 2025. The document contained at bates number BBY\_EVERGREEN-0000271786 is a spreadsheet that was sent as an attachment to an email (produced in this action at

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bates number BBY\_EVERGREEN-0000271785) from Paul Pastor to Ian Pinchuk on May 17, 2023. The subject line of the email was “Berman file v3” and the name of the spreadsheet file at bates number BBY\_EVERGREEN-0000271786 is identified as “Copy of Copy of Berman\_Import 050423 v3.xlsb”. This spreadsheet contains container information data from BBY’s third-party payment processing service, Berman Blake, and the detention and demurrage amounts reflected in this document comprise the alleged Charges.

**INTERROGATORY NO. 3:** Provide a detailed description and computation of the alleged damages sustained by BBB because of “excess freight costs of at least \$1,469,697.96” during the term of the 2020 Service Contract. (Complaint ¶ 45; *see also* Complaint ¶¶ 73, 93.)

**ANSWER:** Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 3 to the extent that it seeks disclosure of information protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that, Complainant expressly reserves the right to supplement, amend, correct, or modify its production of documents and information in response to Interrogatory No. 3 if or as further documents or information become available.

In response to Interrogatory No. 3, Complainant calculates its reparations related to Evergreen’s shortfall as follows.

First, BBY\_EVERGREEN-0000744754 was produced in this proceeding as a part of BBY’s fourth production, made on May 2, 2025. BBY\_EVERGREEN-0000744754 contains a pivot table with the volume of cargo, converted to FEUs pursuant to the 2020 and 2021 Service

Contracts, shipped by Evergreen for BBY during the relevant time period, which is far less than the service commitments from Evergreen to BBY set forth in the Service Contracts. As set forth in the data contained in BBY\_EVERGREEN-0000744754, for the 2020-2021 Shipping Year, there was a shortfall of 789 FEUS and for the 2021-2022 Shipping Year there was a shortfall of 259.9 FEUs.

Second, Complainant refers to Appendix A-1 , attached hereto, demonstrating shipments that Complainant booked with NVOCCs during the 2020 Service Contract, created by merging data from BBY\_EVERGREEN-0000271786 and BBY\_EVERGREEN-0001380997 to compare the cost of containers shipped with NVOCCs on the shipping lanes that were supposed to have been covered by the 2020 and 2021 Service Contracts during the respective terms of those Service Contracts with the contracted-for rates for such containers and lanes pursuant to the 2020 and 2021 Service Contracts to calculate the additional incremental costs incurred by BBY to ship actual containers on the same lanes and in the same shipping years as a result of Evergreen's failure to satisfy its service commitments. Each of the shipments depicted on Appendix A-1 was for a container traveling on a lane that was included under the 2020 Service Contract between Complainant and Evergreen.

Third, Appendix A-2 presents a breakdown of containers by size and port pair that were carried by NVOCCs as shown in Appendix A-1. The purpose of Appendix A-2 is to demonstrate that the lanes and sizes of shipments are coextensive with the space sought from Respondents during the 2020 Service Contract. The table shows the total number of containers of each size that were shipped from port pairs, which can be matched to the lanes covered by the 2020 Service Contract.

Thus, the shipments depicted on Appendix A-1 reflect additional incremental costs incurred by BBY for cargo that BBY did ship—on the same port pairs and during the term of the 2020 Service Contract—with NVOCCs at higher prices than had Evergreen satisfied its service commitments and carried the agreed-to quantity of cargo at lower contracted-for rates.

Appendix A-3 demonstrates the “but-for” calculation of ocean freight charges, had Evergreen satisfied its service commitments under the 2020 Service Contract, reflecting how much BBY would have paid if it had shipped each of the loads referenced in Appendices A-1 and A-2 via Evergreen at the freight rates specified in the 2020 Service Contract, instead of via high-priced NVOCCs. This demonstrates that the total cost of carriage under the 2020 Service Contract for these shipments should have been \$1,505,241, had the contract rates between Complainant and Respondent been applied.

Appendix A-4 combines and summarizes Appendices A-1, A-2, and A-3 by showing the FEU service commitment by Respondents in the 2020 Service Contract of 1250 FEUs, the shortfall from that service commitment of 993.16 FEUs, comparable NVOCC carriage on the same lanes of 993.75 FEUs, and a cost differential between the NVOCC carriage and the “but-for” cost that would have been charged had the cargo traveled on agreed contract rates. The NVOCC carriage depicted cost a total of \$5,190,363.00 and the “but-for” cost was \$1,505,241.00, resulting in an excess cost of \$3,685,122.00 that Complainant paid due to Respondents’ failure to satisfy their service commitments.

**INTERROGATORY NO. 4:** Provide a detailed description and computation of the alleged damages sustained by BBB because of “excess freight costs of at least \$2,501,232.01” during the term of the 2021 Service Contract. (Complaint ¶ 46; *see also* Complaint ¶¶ 74, 94.)

**ANSWER:** Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 4 to the extent that it seeks disclosure of information protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines.

Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and Complainant expressly reserves the right to supplement, amend, correct, or modify its production of documents and information in response to Interrogatory No. 5 if or as further documents or information become available.

In response to Interrogatory No. 4, Complainant calculates its reparations related to Evergreen's shortfall as follows.

First, BBY\_EVERGREEN-0000744754 was produced in this proceeding as a part of BBY's fourth production, made on May 2, 2025. BBY\_EVERGREEN-0000744754 contains a pivot table with the volume of cargo, converted to FEUs pursuant to the 2020 and 2021 Service Contracts, shipped by Evergreen for BBY during the relevant time period, which is far less than the service commitments from Evergreen to BBY set forth in the Service Contracts. As set forth in the data contained in BBY\_EVERGREEN-0000744754, for the 2020-2021 Shipping Year, there was a shortfall of 789 FEUs and for the 2021-2022 Shipping Year there was a shortfall of 259.9 FEUs.

Second, Complainant refers to Appendix A-5, attached hereto, demonstrating shipments that Complainant booked with NVOCCs during the 2021 Service Contract, created by merging data from BBY\_EVERGREEN-0000271786 and BBY\_EVERGREEN-0001380997 to compare the cost of containers shipped with NVOCCs on the shipping lanes that were supposed to have been covered by the 2020 and 2021 Service Contracts during the respective terms of those Service

Contracts with the contracted-for rates for such containers and lanes pursuant to the 2020 and 2021 Service Contracts to calculate the additional incremental costs incurred by BBY to ship actual containers on the same lanes and in the same shipping years as a result of Evergreen's failure to satisfy its service commitments. Each of the shipments depicted on Appendix A-5 was for a container traveling on a lane that was included under the 2021 Service Contract between Complainant and Evergreen.

Third, Appendix A-6 presents a breakdown of containers by size and port pair that were carried by NVOCCs as shown in Appendix A-5. The purpose of Appendix A-6 is to demonstrate that the lanes and sizes of shipments are coextensive with the space sought from Respondents during the 2021 Service Contract. The table shows the total number of containers of each size that were shipped from port pairs, which can be matched to the lanes covered by the 2021 Service Contract.

Thus, the shipments depicted on Appendix A-5 reflect additional incremental costs incurred by BBY for cargo that BBY did ship—on the same port pairs and during the term of the 2021 Service Contract—with NVOCCs at higher prices than had Evergreen satisfied its service commitments and carried the agreed-to quantity of cargo at lower contracted-for rates.

Appendix A-7 demonstrates the “but-for” calculation of freight expenses, had carriage been properly allocated and shipments made under the 2021 Service Contract. Appendix A-7 shows a breakdown of what the contracted rates for the same shipments, depicted on Appendices A-5 and A-6 would have been. This demonstrates that the total cost of carriage under the 2021 Service Contract for these shipments should have been \$783,313, had the contract rates between Complainant and Respondent been applied.

Appendix A-8 combines and summarizes Appendices A-5, A-6, and A-7 by showing the FEU service commitment by Respondents in the 2021 Service Contract of 750 FEUs, the shortfall from that service commitment of 294.08 FEUs, comparable NVOCC carriage on the same lanes of 294.125 FEUs, and a cost differential between the NVOCC carriage and the “but-for” cost that would have been charged had the cargo traveled on agreed contract rates. The NVOCC carriage depicted cost a total of \$5,666,458.00 and the “but-for” cost was \$783,313.00, resulting in an excess cost of \$4,883,145.00 that Complainant paid due to Respondents’ failure to satisfy their service commitments.

**INTERROGATORY NO. 5:** Provide a detailed description and computation of the alleged “lost profit damages” sustained by BBB because of “diminished profit offerings.” (Complaint ¶¶ 45, 46.)

**ANSWER:** Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 5 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines. Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that Complainant expressly reserves the right to supplement, amend, correct, or modify its production of documents and information in response to Interrogatory No. 5 if or as further documents or information become available.

During the 2020-2021 Shipping Year and the 2021-2022 Shipping Year, Respondents’ failure to honor its service commitments to BBY under the Service Contracts resulted in cargo space shortfalls totaling 933.16 FEUs and 294.08 FEUs, respectively. In total, across the 2020-

2021 Shipping Year and the 2021-2022 Shipping Year, Respondents' shortfalls amounted to 1227.24 FEUs. BBY's calculations of lost profits are based on actual shipments and profits recorded from May 1, 2020, to April 30, 2022.

As recently recognized by the Commission's Chief Administrative Law Judge and unanimously affirmed by the Commission in *OJ Commerce, LLC v. Hamburg Sud*, Docket No. 21-11, lost profits can be determined by calculating the average profits per container of the shipper's cargo actually carried during the relevant time period multiplied by the shortfall of containers that the carrier failed to carry. This is the methodology used to calculate BBY's alleged lost profits reparations.

In order to determine the profitability of containers that BBY shipped during the 2020 through 2022 period, Rick Cunniff, BBY's former Senior Director of Financial Analysis, along with his team, gathered data from multiple sources including detailed records of shipped containers, product markups, and sales figures, and created a spreadsheet detailing container profitability during the relevant time period. *See* BBY\_EVERGREEN-0001380996, at Tab "Container Receipts with Expenses". BBY\_EVERGREEN-0001380996 was produced in this case in BBY's sixth production on July 15, 2025. This process involved a number of steps gathering data from multiple sources, including the actual containers that were shipped over that window of time, what was on those containers from a product standpoint, what the markup was on those goods with the information that was in the system, and how much those goods sold for over a reasonable window of time.

The BBY calculations of lost profits that Cunniff and his team compiled are based on actual shipments and profits recorded from May 1, 2020 to April 30, 2022. *See* BBY\_EVERGREEN-0001380996 at Tab "Container Receipts with Expenses".

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Cunniff verified the Lost Profits Analysis spreadsheet's accuracy to a reasonable extent by cross-referencing the quantity of goods shipped over time against financial reports on imports.

The Lost Profits Analysis spreadsheet includes data for 14,137 ocean import containers that BBY shipped from May 1, 2020 to April 30, 2022. *See* BBY\_EVERGREEN-0001380996, at Tab "CONTAINER SUMMARY".

The information gathered and relied upon contains detailed data points for each container, including but not limited to item retail value, item cost, extended retail value, extended cost, total paid shipping expense, average retail sold, unit cost, sales, cost of sales, margin percentage (MU%), port of delivery, carrier, purchase order number, product description, and quantity. *See* BBY\_EVERGREEN-0001380996 at Tabs "CONTAINER SUMMARY," "Container Receipts with Expense," "SALES," "SKU RECEIPTS," "Container Receipts – BOL," "Container Receipts – None," "Container Receipts - No Match," "Container Cost," "REMAINING," "Container Receipts," "CANCELLED PO," and "BOL EXPENSE PRE-BERMAN."

As a part of the methodology for calculating average profit per container, the analysis started with an FOB log file from BBY's Logistics Team. *See* BBY\_EVERGREEN-0001451932 at Tab "Steps," Row 21, Columns A-B ("STEP 1. Match FOB and POMRCH files based on PO# to isolate PO's received during window in question."). BBY\_EVERGREEN-0001451932 was produced in this case in BBY's eight production on August 5, 2025. The Step 1, FOB log file was a table that was provided as a source document from the Logistics Team that lists out the containers that were shipped.

BBY then matched this FOB data to a JDA table using purchase order numbers to identify containers received within a specific timeframe. *See* BBY\_EVERGREEN-0001451932 at Tab "Steps," Row 21, Columns A-B ("STEP 1. Match FOB and POMRCH files based on PO# to isolate

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PO's received during window in question."'). The aforementioned FOB table is matched up against a JDA table that has, by PO number, the receipt information in order to isolate the containers in question that were received during that window of time.

Cunniff and his team then pulled shipment details, including containers and SKU information, from the PO shipment report. *See* BBY\_EVERGREEN-0001451932 at Tab "Steps", Row 64, Columns A-B ("STEP 2. Match QryShippedPO's with Container PO Shipment Rpt.").

BBY then matched shipment details with receiver information containing item costs and the items contained within the container. *See* BBY\_EVERGREEN-0001451932 at Tab "Steps," Row 100, Columns A-B ("STEP 3. Match QryContainerShipmentDetails with TBL\_RECEIVER\_DETAILS on PO & SKU.").

BBY then assigned container costs and categorized the data into two groups: items received within 60 days and those received after 60 days, to achieve a more accurate approximation of BBY's profits per container. *See* BBY\_EVERGREEN-0001451932 at Tab "Steps," Row 145, Columns A-B ("STEP 4. Match QryContainerReceiptDetails with QryContainerCost.").

BBY also subtracted the landed costs of goods sold, or Cost of Sales, which covered both costs and freight expenses. *See* BBY\_EVERGREEN-0001380996 at Tab "CONTAINER SUMMARY".

Based on this analysis, the average profit per container shipped during the relevant time period was \$66,924.07 per container.

Lost profits of \$66,924.07 per container for each of the approximately 1227.24 containers that Respondents failed to ship during the 2020 Shipping Year and 2021 Shipping Year is \$82,131,895.66.

**INTERROGATORY NO. 6:** Provide a detailed description and computation of the alleged “lost profits, and/or other business damage” sustained by BBB because of “Service Contract...shortfall[s]. (Complaint ¶¶ 91, 92.)

**ANSWER:** Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 6 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines. Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that Complainant expressly reserves the right to supplement, amend, correct, or modify its production of documents and information in response to Interrogatory No. 6 if or as further documents or information become available.

During the 2020-2021 Shipping Year and the 2021-2022 Shipping Year, Respondents’ failure to honor its service commitments to BBY under the Service Contracts resulted in cargo space shortfalls totaling 933.16 FEUs and 294.08 FEUs, respectively. In total, across the 2020-2021 Shipping Year and the 2021-2022 Shipping Year, Respondents’ shortfalls amounted to 1227.24 FEUs. BBY’s calculations of lost profits are based on actual shipments and profits recorded from May 1, 2020, to April 30, 2022.

As recently recognized by the Commission’s Chief Administrative Law Judge and unanimously affirmed by the Commission in *OJ Commerce, LLC v. Hamburg Sud*, Docket No. 21-11, lost profits can be determined by calculating the average profits per container of the shipper’s cargo actually carried during the relevant time period multiplied by the shortfall of containers that the carrier failed to carry. This is the methodology used to calculate BBY’s alleged lost profits reparations.

In order to determine the profitability of containers that BBY shipped during the 2020 through 2022 period, Rick Cunniff, BBY's former Senior Director of Financial Analysis, along with his team, gathered data from multiple sources including detailed records of shipped containers, product markups, and sales figures, and created a spreadsheet detailing container profitability during the relevant time period. *See* BBY\_EVERGREEN-0001380996, at Tab "Container Receipts with Expenses". BBY\_EVERGREEN-0001380996 was produced in this case in BBY's sixth production on July 15, 2025. This process involved a number of steps gathering data from multiple sources, including the actual containers that were shipped over that window of time, what was on those containers from a product standpoint, what the markup was on those goods with the information that was in the system, and how much those goods sold for over a reasonable window of time.

The BBY calculations of lost profits that Cunniff and his team compiled are based on actual shipments and profits recorded from May 1, 2020 to April 30, 2022. *See* BBY\_EVERGREEN-0001380996 at Tab "Container Receipts with Expenses".

Cunniff verified the Lost Profits Analysis spreadsheet's accuracy to a reasonable extent by cross-referencing the quantity of goods shipped over time against financial reports on imports.

The Lost Profits Analysis spreadsheet includes data for 14,137 ocean import containers that BBY shipped from May 1, 2020 to April 30, 2022. *See* BBY\_EVERGREEN-0001380996, at Tab "CONTAINER SUMMARY".

The information gathered and relied upon contains detailed data points for each container, including but not limited to item retail value, item cost, extended retail value, extended cost, total paid shipping expense, average retail sold, unit cost, sales, cost of sales, margin percentage (MU%), port of delivery, carrier, purchase order number, product description, and quantity. *See*

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BBBY\_EVERGREEN-0001380996 at Tabs “CONTAINER SUMMARY,” “Container Receipts with Expense,” “SALES,” “SKU RECEIPTS,” “Container Receipts – BOL,” “Container Receipts – None,” “Container Receipts - No Match,” “Container Cost,” “REMAINING,” “Container Receipts,” “CANCELLED PO,” and “BOL EXPENSE PRE-BERMAN.”

As a part of the methodology for calculating average profit per container, the analysis started with an FOB log file from BBBY’s Logistics Team. *See* BBBY\_EVERGREEN-0001451932 at Tab “Steps,” Row 21, Columns A-B (“STEP 1. Match FOB and POMRCH files based on PO# to isolate PO’s received during window in question.”). BBBY\_EVERGREEN-0001451932 was produced in this case in BBBY’s eight production on August 5, 2025. The Step 1, FOB log file was a table that was provided as a source document from the Logistics Team that lists out the containers that were shipped.

BBBY then matched this FOB data to a JDA table using purchase order numbers to identify containers received within a specific timeframe. *See* BBBY\_EVERGREEN-0001451932 at Tab “Steps,” Row 21, Columns A-B (“STEP 1. Match FOB and POMRCH files based on PO# to isolate PO’s received during window in question.”). The aforementioned FOB table is matched up against a JDA table that has, by PO number, the receipt information in order to isolate the containers in question that were received during that window of time.

Cunniff and his team then pulled shipment details, including containers and SKU information, from the PO shipment report. *See* BBBY\_EVERGREEN-0001451932 at Tab “Steps,” Row 64, Columns A-B (“STEP 2. Match QryShippedPO’s with Container PO Shipment Rpt.”).

BBBY then matched shipment details with receiver information containing item costs and the items contained within the container. *See* BBBY\_EVERGREEN-0001451932 at Tab “Steps,”

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Row 100, Columns A-B (“STEP 3. Match QryContainerShipmentDetails with TBL\_RECEIVER\_DETAILS on PO & SKU.”).

BBBY then assigned container costs and categorized the data into two groups: items received within 60 days and those received after 60 days, to achieve a more accurate approximation of BBBY’s profits per container. *See* BBBY\_EVERGREEN-0001451932 at Tab “Steps,” Row 145, Columns A-B (“STEP 4. Match QryContainerReceiptDetails with QryContainerCost.”).

BBBY also subtracted the landed costs of goods sold, or Cost of Sales, which covered both costs and freight expenses. *See* BBBY\_EVERGREEN-0001380996 at Tab “CONTAINER SUMMARY”.

Based on this analysis, the average profit per container shipped during the relevant time period was \$66,924.07 per container.

Lost profits of \$66,924.07 per container for each of the approximately 1227.24 containers that Respondents failed to ship during the 2020 Shipping Year and 2021 Shipping Year is \$82,131,895.66.

**INTERROGATORY NO. 7:** Provide a detailed description and computation of the alleged “lost profits as a result of the reduction of imported cargo” sustained by BBB “because of Evergreen’s failure to honor its service commitments.” (Complaint ¶ 97.)

**ANSWER:** Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 7 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines. Subject to and without waiver of the foregoing, Complainant states that document

collection and review is still ongoing, and that Complainant expressly reserves the right to supplement, amend, correct, or modify its production of documents and information in response to Interrogatory No. 7 if or as further documents or information become available.

During the 2020-2021 Shipping Year and the 2021-2022 Shipping Year, Respondents' failure to honor its service commitments to BBY under the Service Contracts resulted in cargo space shortfalls totaling 933.16 FEUs and 294.08 FEUs, respectively. In total, across the 2020-2021 Shipping Year and the 2021-2022 Shipping Year, Respondents' shortfalls amounted to 1227.24 FEUs. BBY's calculations of lost profits are based on actual shipments and profits recorded from May 1, 2020, to April 30, 2022.

As recently recognized by the Commission's Chief Administrative Law Judge and unanimously affirmed by the Commission in *OJ Commerce, LLC v. Hamburg Sud*, Docket No. 21-11, lost profits can be determined by calculating the average profits per container of the shipper's cargo actually carried during the relevant time period multiplied by the shortfall of containers that the carrier failed to carry. This is the methodology used to calculate BBY's alleged lost profits reparations.

In order to determine the profitability of containers that BBY shipped during the 2020 through 2022 period, Rick Cunniff, BBY's former Senior Director of Financial Analysis, along with his team, gathered data from multiple sources including detailed records of shipped containers, product markups, and sales figures, and created a spreadsheet detailing container profitability during the relevant time period. *See* BBY\_EVERGREEN-0001380996, at Tab "Container Receipts with Expenses". BBY\_EVERGREEN-0001380996 was produced in this case in BBY's sixth production on July 15, 2025. This process involved a number of steps gathering data from multiple sources, including the actual containers that were shipped over that window of time, what was on

those containers from a product standpoint, what the markup was on those goods with the information that was in the system, and how much those goods sold for over a reasonable window of time.

The BBY calculations of lost profits that Cunniff and his team compiled are based on actual shipments and profits recorded from May 1, 2020 to April 30, 2022. *See* BBY\_EVERGREEN-0001380996 at Tab “Container Receipts with Expenses”.

Cunniff verified the Lost Profits Analysis spreadsheet’s accuracy to a reasonable extent by cross-referencing the quantity of goods shipped over time against financial reports on imports.

The Lost Profits Analysis spreadsheet includes data for 14,137 ocean import containers that BBY shipped from May 1, 2020 to April 30, 2022. *See* BBY\_EVERGREEN-0001380996, at Tab “CONTAINER SUMMARY”.

The information gathered and relied upon contains detailed data points for each container, including but not limited to item retail value, item cost, extended retail value, extended cost, total paid shipping expense, average retail sold, unit cost, sales, cost of sales, margin percentage (MU%), port of delivery, carrier, purchase order number, product description, and quantity. *See* BBY\_EVERGREEN-0001380996 at Tabs “CONTAINER SUMMARY,” “Container Receipts with Expense,” “SALES,” “SKU RECEIPTS,” “Container Receipts – BOL,” “Container Receipts – None,” “Container Receipts - No Match,” “Container Cost,” “REMAINING,” “Container Receipts,” “CANCELLED PO,” and “BOL EXPENSE PRE-BERMAN.”

As a part of the methodology for calculating average profit per container, the analysis started with an FOB log file from BBY’s Logistics Team. *See* BBY\_EVERGREEN-0001451932 at Tab “Steps,” Row 21, Columns A-B (“STEP 1. Match FOB and POMRCH files based on PO# to isolate PO’s received during window in question.”). BBY\_EVERGREEN-0001451932 was produced in

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this case in BBY's eight production on August 5, 2025. The Step 1, FOB log file was a table that was provided as a source document from the Logistics Team that lists out the containers that were shipped.

BBY then matched this FOB data to a JDA table using purchase order numbers to identify containers received within a specific timeframe. *See BBY\_EVERGREEN-0001451932* at Tab "Steps," Row 21, Columns A-B ("STEP 1. Match FOB and POMRCH files based on PO# to isolate PO's received during window in question."). The aforementioned FOB table is matched up against a JDA table that has, by PO number, the receipt information in order to isolate the containers in question that were received during that window of time.

Cunniff and his team then pulled shipment details, including containers and SKU information, from the PO shipment report. *See BBY\_EVERGREEN-0001451932* at Tab "Steps," Row 64, Columns A-B ("STEP 2. Match QryShippedPO's with Container PO Shipment Rpt.").

BBY then matched shipment details with receiver information containing item costs and the items contained within the container. *See BBY\_EVERGREEN-0001451932* at Tab "Steps," Row 100, Columns A-B ("STEP 3. Match QryContainerShipmentDetails with TBL\_RECEIVER\_DETAILS on PO & SKU.").

BBY then assigned container costs and categorized the data into two groups: items received within 60 days and those received after 60 days, to achieve a more accurate approximation of BBY's profits per container. *See BBY\_EVERGREEN-0001451932* at Tab "Steps," Row 145, Columns A-B ("STEP 4. Match QryContainerReceiptDetails with QryContainerCost.").

BBY also subtracted the landed costs of goods sold, or Cost of Sales, which covered both costs and freight expenses. *See BBY\_EVERGREEN-0001380996* at Tab "CONTAINER SUMMARY".

Based on this analysis, the average profit per container shipped during the relevant time period was \$66,924.07 per container.

Lost profits of \$66,924.07 per container for each of the approximately 1227.24 containers that Respondents failed to ship during the 2020 Shipping Year and 2021 Shipping Year is \$82,131,895.66.

**INTERROGATORY NO. 8:** Provide a detailed description and computation of the alleged “lost profit” damages sustained by BBB because of Evergreen’s “behavior” and “misconduct.” (Complaint ¶¶ 72, 99.)

**ANSWER:** Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 8 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines. Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that Complainant expressly reserves the right to supplement, amend, correct, or modify its production of documents and information in response to Interrogatory No. 8 if or as further documents or information become available.

During the 2020-2021 Shipping Year and the 2021-2022 Shipping Year, Respondents’ failure to honor its service commitments to BBY under the Service Contracts resulted in cargo space shortfalls totaling 933.16 FEUs and 294.08 FEUs, respectively. In total, across the 2020-2021 Shipping Year and the 2021-2022 Shipping Year, Respondents’ shortfalls amounted to 1227.24 FEUs. BBY’s calculations of lost profits are based on actual shipments and profits recorded from May 1, 2020, to April 30, 2022.

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As recently recognized by the Commission's Chief Administrative Law Judge and unanimously affirmed by the Commission in *OJ Commerce, LLC v. Hamburg Sud*, Docket No. 21-11, lost profits can be determined by calculating the average profits per container of the shipper's cargo actually carried during the relevant time period multiplied by the shortfall of containers that the carrier failed to carry. This is the methodology used to calculate BBY's alleged lost profits reparations.

In order to determine the profitability of containers that BBY shipped during the 2020 through 2022 period, Rick Cunniff, BBY's former Senior Director of Financial Analysis, along with his team, gathered data from multiple sources including detailed records of shipped containers, product markups, and sales figures, and created a spreadsheet detailing container profitability during the relevant time period. *See* BBY\_EVERGREEN-0001380996, at Tab "Container Receipts with Expenses". BBY\_EVERGREEN-0001380996 was produced in this case in BBY's sixth production on July 15, 2025. This process involved a number of steps gathering data from multiple sources, including the actual containers that were shipped over that window of time, what was on those containers from a product standpoint, what the markup was on those goods with the information that was in the system, and how much those goods sold for over a reasonable window of time.

The BBY calculations of lost profits that Cunniff and his team compiled are based on actual shipments and profits recorded from May 1, 2020 to April 30, 2022. *See* BBY\_EVERGREEN-0001380996 at Tab "Container Receipts with Expenses".

Cunniff verified the Lost Profits Analysis spreadsheet's accuracy to a reasonable extent by cross-referencing the quantity of goods shipped over time against financial reports on imports.

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The Lost Profits Analysis spreadsheet includes data for 14,137 ocean import containers that BBY shipped from May 1, 2020 to April 30, 2022. *See* BBY\_EVERGREEN-0001380996, at Tab “CONTAINER SUMMARY”.

The information gathered and relied upon contains detailed data points for each container, including but not limited to item retail value, item cost, extended retail value, extended cost, total paid shipping expense, average retail sold, unit cost, sales, cost of sales, margin percentage (MU%), port of delivery, carrier, purchase order number, product description, and quantity. *See* BBY\_EVERGREEN-0001380996 at Tabs “CONTAINER SUMMARY,” “Container Receipts with Expense,” “SALES,” “SKU RECEIPTS,” “Container Receipts – BOL,” “Container Receipts – None,” “Container Receipts - No Match,” “Container Cost,” “REMAINING,” “Container Receipts,” “CANCELLED PO,” and “BOL EXPENSE PRE-BERMAN.”

As a part of the methodology for calculating average profit per container, the analysis started with an FOB log file from BBY’s Logistics Team. *See* BBY\_EVERGREEN-0001451932 at Tab “Steps,” Row 21, Columns A-B (“STEP 1. Match FOB and POMRCH files based on PO# to isolate PO’s received during window in question.”). BBY\_EVERGREEN-0001451932 was produced in this case in BBY’s eighth production on August 5, 2025. The Step 1, FOB log file was a table that was provided as a source document from the Logistics Team that lists out the containers that were shipped.

BBY then matched this FOB data to a JDA table using purchase order numbers to identify containers received within a specific timeframe. *See* BBY\_EVERGREEN-0001451932 at Tab “Steps,” Row 21, Columns A-B (“STEP 1. Match FOB and POMRCH files based on PO# to isolate PO’s received during window in question.”). The aforementioned FOB table is matched up against

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a JDA table that has, by PO number, the receipt information in order to isolate the containers in question that were received during that window of time.

Cunniff and his team then pulled shipment details, including containers and SKU information, from the PO shipment report. *See* BBY\_EVERGREEN-0001451932 at Tab “Steps”, Row 64, Columns A-B (“STEP 2. Match QryShippedPO’s with Container PO Shipment Rpt.”).

BBY then matched shipment details with receiver information containing item costs and the items contained within the container. *See* BBY\_EVERGREEN-0001451932 at Tab “Steps,” Row 100, Columns A-B (“STEP 3. Match QryContainerShipmentDetails with TBL\_RECEIVER\_DETAILS on PO & SKU.”).

BBY then assigned container costs and categorized the data into two groups: items received within 60 days and those received after 60 days, to achieve a more accurate approximation of BBY’s profits per container. *See* BBY\_EVERGREEN-0001451932 at Tab “Steps,” Row 145, Columns A-B (“STEP 4. Match QryContainerReceiptDetails with QryContainerCost.”).

BBY also subtracted the landed costs of goods sold, or Cost of Sales, which covered both costs and freight expenses. *See* BBY\_EVERGREEN-0001380996 at Tab “CONTAINER SUMMARY”.

Based on this analysis, the average profit per container shipped during the relevant time period was \$66,924.07 per container.

Lost profits of \$66,924.07 per container for each of the approximately 1227.24 containers that Respondents failed to ship during the 2020 Shipping Year and 2021 Shipping Year is \$82,131,895.66.

**INTERROGATORY NO. 9:** Provide a detailed description and computation of the “per container

average profit applicable to Complainant's cargo during the 2020-2021 shipping year and the 2021-2022 shipping year [in the approximate amount of] \$66,924.07 or more." (Complaint ¶ 96.)

**ANSWER:** Complainant incorporates its General Objections as though fully set forth herein. Complainant further objects to Interrogatory No. 9 to the extent it purports to require the production of documents or information that are protected by the attorney-client privilege, the attorney work product doctrine, or any other applicable privileges, immunities, or protective doctrines. Subject to and without waiver of the foregoing, Complainant states that document collection and review is still ongoing, and that Complainant expressly reserves the right to supplement, amend, correct, or modify its production of documents and information in response to Interrogatory No. 9 if or as further documents or information become available.

During the 2020-2021 Shipping Year and the 2021-2022 Shipping Year, Respondents' failure to honor its service commitments to BBY under the Service Contracts resulted in cargo space shortfalls totaling 933.16 FEUs and 294.08 FEUs, respectively. In total, across the 2020-2021 Shipping Year and the 2021-2022 Shipping Year, Respondents' shortfalls amounted to 1227.24 FEUs. BBY's calculations of lost profits are based on actual shipments and profits recorded from May 1, 2020, to April 30, 2022.

As recently recognized by the Commission's Chief Administrative Law Judge and unanimously affirmed by the Commission in *OJ Commerce, LLC v. Hamburg Sud*, Docket No. 21-11, lost profits can be determined by calculating the average profits per container of the shipper's cargo actually carried during the relevant time period multiplied by the shortfall of containers that the carrier failed to carry. This is the methodology used to calculate BBY's alleged lost profits reparations.

In order to determine the profitability of containers that BBY shipped during the 2020 through 2022 period, Rick Cunniff, BBY's former Senior Director of Financial Analysis, along with his team, gathered data from multiple sources including detailed records of shipped containers, product markups, and sales figures, and created a spreadsheet detailing container profitability during the relevant time period. *See* BBY\_EVERGREEN-0001380996, at Tab "Container Receipts with Expenses". BBY\_EVERGREEN-0001380996 was produced in this case in BBY's sixth production on July 15, 2025. This process involved a number of steps gathering data from multiple sources, including the actual containers that were shipped over that window of time, what was on those containers from a product standpoint, what the markup was on those goods with the information that was in the system, and how much those goods sold for over a reasonable window of time.

The BBY calculations of lost profits that Cunniff and his team compiled are based on actual shipments and profits recorded from May 1, 2020 to April 30, 2022. *See* BBY\_EVERGREEN-0001380996 at Tab "Container Receipts with Expenses".

Cunniff verified the Lost Profits Analysis spreadsheet's accuracy to a reasonable extent by cross-referencing the quantity of goods shipped over time against financial reports on imports.

The Lost Profits Analysis spreadsheet includes data for 14,137 ocean import containers that BBY shipped from May 1, 2020 to April 30, 2022. *See* BBY\_EVERGREEN-0001380996, at Tab "CONTAINER SUMMARY".

The information gathered and relied upon contains detailed data points for each container, including but not limited to item retail value, item cost, extended retail value, extended cost, total paid shipping expense, average retail sold, unit cost, sales, cost of sales, margin percentage (MU%), port of delivery, carrier, purchase order number, product description, and quantity. *See*

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BBBY\_EVERGREEN-0001380996 at Tabs “CONTAINER SUMMARY,” “Container Receipts with Expense,” “SALES,” “SKU RECEIPTS,” “Container Receipts – BOL,” “Container Receipts – None,” “Container Receipts - No Match,” “Container Cost,” “REMAINING,” “Container Receipts,” “CANCELLED PO,” and “BOL EXPENSE PRE-BERMAN.”

As a part of the methodology for calculating average profit per container, the analysis started with an FOB log file from BBBY’s Logistics Team. *See* BBBY\_EVERGREEN-0001451932 at Tab “Steps,” Row 21, Columns A-B (“STEP 1. Match FOB and POMRCH files based on PO# to isolate PO’s received during window in question.”). BBBY\_EVERGREEN-0001451932 was produced in this case in BBBY’s eight production on August 5, 2025. The Step 1, FOB log file was a table that was provided as a source document from the Logistics Team that lists out the containers that were shipped.

BBBY then matched this FOB data to a JDA table using purchase order numbers to identify containers received within a specific timeframe. *See* BBBY\_EVERGREEN-0001451932 at Tab “Steps,” Row 21, Columns A-B (“STEP 1. Match FOB and POMRCH files based on PO# to isolate PO’s received during window in question.”). The aforementioned FOB table is matched up against a JDA table that has, by PO number, the receipt information in order to isolate the containers in question that were received during that window of time.

Cunniff and his team then pulled shipment details, including containers and SKU information, from the PO shipment report. *See* BBBY\_EVERGREEN-0001451932 at Tab “Steps,” Row 64, Columns A-B (“STEP 2. Match QryShippedPO’s with Container PO Shipment Rpt.”).

BBBY then matched shipment details with receiver information containing item costs and the items contained within the container. *See* BBBY\_EVERGREEN-0001451932 at Tab “Steps,”

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Row 100, Columns A-B (“STEP 3. Match QryContainerShipmentDetails with TBL\_RECEIVER\_DETAILS on PO & SKU.”).

BBBY then assigned container costs and categorized the data into two groups: items received within 60 days and those received after 60 days, to achieve a more accurate approximation of BBBY’s profits per container. *See* BBBY\_EVERGREEN-0001451932 at Tab “Steps,” Row 145, Columns A-B (“STEP 4. Match QryContainerReceiptDetails with QryContainerCost.”).

BBBY also subtracted the landed costs of goods sold, or Cost of Sales, which covered both costs and freight expenses. *See* BBBY\_EVERGREEN-0001380996 at Tab “CONTAINER SUMMARY”.

Based on this analysis, the average profit per container shipped during the relevant time period was \$66,924.07 per container.

Lost profits of \$66,924.07 per container for each of the approximately 1227.24 containers that Respondents failed to ship during the 2020 Shipping Year and 2021 Shipping Year is \$82,131,895.66.

[SIGNATURE PAGES FOLLOW]

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As to the foregoing answers to Respondents' First Supplemental Set of Interrogatories, to the best of my knowledge, information, and belief, including information received from others, I declare under penalty of perjury that the foregoing is true and correct.

Executed on August 5, 2025.

DocuSigned by:



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Michael Goldberg

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As to the foregoing ~~supplemental~~ objections and responses to Respondents' First  
Supplemental Set of Interrogatories:

Dated: August 5, 2025

HUTH REYNOLDS LLP

Signed by:

A blue ink handwritten signature of Mohini Priya.

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*Certificate of Service*

I hereby certify that I have this day caused to be served the foregoing document upon Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. by emailing a copy to their counsel of record listed below:

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*Counsel for Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd.*

Dated: August 5, 2025

Signed by:

*Mohini Priya*

53465C51AEEDB4C6

Mohini P.B. Rarrick

*For Complainant 20230930-DK-Butterfly-1, Inc.  
f/k/a Bed Bath & Beyond Inc.*

**PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED****Appendix A-1: NVO Shipments To Cover Evergreen Shortfall (2020 Service Contract)**

The table below reflects actual shipments undertaken by BBY during the 2020 service contract year on lanes covered by the 2020 Service Contract, using NVOs or freight forwarders.

Evergreen's total shortfall in 2020 was 789 FEUs. The shipments in this chart sum to 788.625 FEUs and would have, if shipped via Evergreen, fulfilled Evergreen's 2020 MQC.

| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| HECNY        | HYSLNSHA20081563      | SHANGHAI  | Newark         | 8/25/2020    | 9/27/2020         | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| Hecny        | HYSLNSHA20090775      | SHANGHAI  | NEWARK         | 9/12/2020    | 10/19/2020        | 4                 | 0    | 2    | 2    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20090135      | SHANGHAI  | NEWARK         | 9/12/2020    | 10/19/2020        | 7                 | 0    | 7    | 0    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20090776      | SHANGHAI  | SAVANNAH       | 9/17/2020    | 10/21/2020        | 8                 | 0    | 0    | 8    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20091270A     | SHANGHAI  | NEWARK         | 9/18/2020    | 10/13/2020        | 6                 | 0    | 0    | 6    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20091270B     | SHANGHAI  | NEWARK         | 9/18/2020    | 10/13/2020        | 5                 | 0    | 0    | 5    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20091271      | SHANGHAI  | NEWARK         | 9/18/2020    | 10/13/2020        | 10                | 0    | 0    | 10   | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20091453      | SHANGHAI  | SAVANNAH       | 9/23/2020    | 11/2/2020         | 7                 | 0    | 0    | 7    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSZX20092323      | YANTIAN   | NEWARK         | 9/24/2020    | 10/31/2020        | 4                 | 0    | 0    | 4    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20091418      | SHANGHAI  | NEWARK         | 9/27/2020    | 10/27/2020        | 7                 | 0    | 0    | 7    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20110852      | SHANGHAI  | Newark         | 11/9/2020    | 12/18/2020        | 5                 | 0    | 5    | 0    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20111467      | SHANGHAI  | SAVANNAH       | 11/19/2020   | 12/27/2020        | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20111837      | SHANGHAI  | Newark         | 11/24/2020   | 1/4/2021          | 5                 | 0    | 0    | 5    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20120021      | SHANGHAI  | SAVANNAH       | 11/27/2020   | 1/2/2021          | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20120022      | SHANGHAI  | SAVANNAH       | 11/27/2020   | 1/2/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSZX20112764      | YANTIAN   | SAVANNAH       | 11/30/2020   | 1/23/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |

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| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| DeWell       | DWCHSQINS0006979      | QINGDAO   | Newark         | 12/2/2020    | 1/8/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0006980      | QINGDAO   | Newark         | 12/2/2020    | 1/8/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0006981      | QINGDAO   | Newark         | 12/2/2020    | 1/8/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0006982      | QINGDAO   | Newark         | 12/2/2020    | 1/8/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20120201      | SHANGHAI  | Newark         | 12/14/2020   | 1/12/2021         | 5                 | 0    | 0    | 5    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA20120199      | SHANGHAI  | Newark         | 12/14/2020   | 1/16/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0007326      | QINGDAO   | SAVANNAH       | 12/14/2020   | 1/13/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0007309      | QINGDAO   | SAVANNAH       | 12/14/2020   | 1/13/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0007327      | QINGDAO   | SAVANNAH       | 12/14/2020   | 1/13/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0007028      | QINGDAO   | LOS ANGELES    | 12/15/2020   | 1/5/2021          | 4                 | 0    | 0    | 0    | 4    | 0    | 0    |               |
| OEC          | OERT201702J09046      | SHANGHAI  | LOS ANGELES    | 12/18/2020   | 1/9/2021          | 5                 | 0    | 0    | 5    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0007195      | QINGDAO   | LOS ANGELES    | 12/20/2020   | 1/14/2021         | 3                 | 0    | 0    | 0    | 3    | 0    | 0    |               |
| DeWell       | DWCHSQINS0007199      | QINGDAO   | LOS ANGELES    | 12/20/2020   | 1/14/2021         | 1                 | 0    | 0    | 0    | 1    | 0    | 0    |               |
| OEC          | OERT201702J09107      | SHANGHAI  | LOS ANGELES    | 12/21/2020   | 1/6/2021          | 1                 | 0    | 0    | 0    | 1    | 0    | 0    |               |
| OEC          | OERT201702J09108      | SHANGHAI  | LOS ANGELES    | 12/21/2020   | 1/6/2021          | 1                 | 0    | 0    | 0    | 1    | 0    | 0    |               |
| DeWell       | DWCHSQINS0007411      | QINGDAO   | SAVANNAH       | 12/23/2020   | 1/26/2021         | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0001915      | YANTIAN   | SAVANNAH       | 12/23/2020   | 1/25/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0007331      | QINGDAO   | LOS ANGELES    | 12/23/2020   | 1/18/2021         | 3                 | 0    | 0    | 0    | 3    | 0    | 0    |               |
| OEC          | OERT202702J07734      | YANTIAN   | Newark         | 12/24/2020   | 1/29/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| OEC          | OERT202702J07735      | YANTIAN   | Newark         | 12/24/2020   | 1/29/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |

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| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| OEC          | OERT202702J07905      | YANTIAN   | Newark         | 12/24/2020   | 1/29/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| OEC          | OERT201702J08960      | SHANGHAI  | LOS ANGELES    | 12/24/2020   | 2/2/2021          | 3                 | 0    | 2    | 1    | 0    | 0    | 0    |               |
| OEC          | OERT201702J08964      | SHANGHAI  | LOS ANGELES    | 12/28/2020   | 1/16/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| OEC          | OERT201702J08965      | SHANGHAI  | LOS ANGELES    | 12/28/2020   | 1/16/2021         | 3                 | 0    | 0    | 2    | 1    | 0    | 0    |               |
| DeWell       | DWCHSQINS0007511      | QINGDAO   | Newark         | 12/29/2020   | 2/3/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| OEC          | OERT202702J07901      | YANTIAN   | SAVANNAH       | 12/30/2020   | 2/21/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| OEC          | OERT202702J07900      | YANTIAN   | SAVANNAH       | 12/30/2020   | 2/21/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| OEC          | OERT202702J07899      | YANTIAN   | SAVANNAH       | 12/30/2020   | 2/21/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| OEC          | OERT202702J07854      | YANTIAN   | SAVANNAH       | 12/30/2020   | 2/21/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0001981       | YANTIAN   | SAVANNAH       | 12/31/2020   | 1/30/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0001984       | YANTIAN   | SAVANNAH       | 12/31/2020   | 1/30/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0001984A      | YANTIAN   | SAVANNAH       | 12/31/2020   | 2/2/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| OEC          | OERT201702J09266      | SHANGHAI  | LOS ANGELES    | 12/31/2020   | 2/7/2021          | 4                 | 0    | 0    | 2    | 2    | 0    | 0    |               |
| OEC          | OERT201702J08966      | SHANGHAI  | LOS ANGELES    | 12/31/2020   | 2/7/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| OEC          | OERT201702J08959      | SHANGHAI  | LOS ANGELES    | 12/31/2020   | 2/2/2021          | 4                 | 0    | 0    | 4    | 0    | 0    | 0    |               |
| OEC          | OERT201702J08962      | SHANGHAI  | LOS ANGELES    | 1/1/2021     | 1/16/2021         | 3                 | 0    | 0    | 2    | 1    | 0    | 0    |               |
| DeWell       | DWCHSQINS0007349      | QINGDAO   | Newark         | 1/1/2021     | 2/20/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0007345      | QINGDAO   | Newark         | 1/1/2021     | 3/2/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0007348      | QINGDAO   | Newark         | 1/1/2021     | 3/2/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| Expeditors   | EXDO61N0677189        | Yantian   | Savannah       | 1/3/2021     | 2/9/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| Expeditors   | EXDO61N0678314        | Yantian   | Savannah       | 1/3/2021     | 2/9/2021          | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| Expeditors   | EXDO61N0678314B       | Yantian   | Savannah       | 1/3/2021     | 2/9/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0007612      | QINGDAO   | Newark         | 1/3/2021     | 2/3/2021          | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| OEC          | OERT201702K00607      | SHANGHAI  | LOS ANGELES    | 1/4/2021     | 1/24/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| OEC          | OERT201702K00614      | SHANGHAI  | LOS ANGELES    | 1/4/2021     | 1/24/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002035      | YANTIAN   | Newark         | 1/5/2021     | 2/6/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002012      | YANTIAN   | SAVANNAH       | 1/5/2021     | 2/4/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002013      | YANTIAN   | SAVANNAH       | 1/5/2021     | 2/4/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002034      | YANTIAN   | Newark         | 1/5/2021     | 2/6/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| OEC          | OERT201702K00606      | SHANGHAI  | LOS ANGELES    | 1/7/2021     | 2/9/2021          | 4                 | 0    | 2    | 2    | 0    | 0    | 0    |               |
| OEC          | OERT201702K00611      | SHANGHAI  | LOS ANGELES    | 1/7/2021     | 2/9/2021          | 4                 | 0    | 2    | 2    | 0    | 0    | 0    |               |
| OEC          | OERT201702K00609      | SHANGHAI  | LOS ANGELES    | 1/7/2021     | 2/9/2021          | 4                 | 0    | 2    | 2    | 0    | 0    | 0    |               |
| OEC          | OERT201702K00613      | SHANGHAI  | LOS ANGELES    | 1/7/2021     | 2/9/2021          | 4                 | 0    | 2    | 2    | 0    | 0    | 0    |               |
| OEC          | OERT201702J09246      | SHANGHAI  | LOS ANGELES    | 1/8/2021     | 1/25/2021         | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| OEC          | OERT201702J08967      | SHANGHAI  | LOS ANGELES    | 1/8/2021     | 1/25/2021         | 5                 | 0    | 0    | 5    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0051805      | SHANGHAI  | Newark         | 1/8/2021     | 2/20/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| OEC          | OERT202702K00524      | YANTIAN   | Newark         | 1/9/2021     | 2/11/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| OEC          | OERT202702K00523      | YANTIAN   | Newark         | 1/9/2021     | 2/11/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| OEC          | OERT202702J07950      | YANTIAN   | Newark         | 1/9/2021     | 2/11/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| OEC          | OERT202702K00522      | YANTIAN   | Newark         | 1/9/2021     | 2/11/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| OEC          | OERT202702K00519      | YANTIAN   | Newark         | 1/9/2021     | 2/11/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002031      | YANTIAN   | Newark         | 1/9/2021     | 2/16/2021         | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| OEC          | OERT201702K00915      | SHANGHAI  | LOS ANGELES    | 1/9/2021     | 2/5/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| OEC          | OERT201702K00914      | SHANGHAI  | LOS ANGELES    | 1/9/2021     | 2/5/2021          | 4                 | 0    | 2    | 2    | 0    | 0    | 0    |               |
| OEC          | OERT202702K00521      | YANTIAN   | SAVANNAH       | 1/11/2021    | 2/21/2021         | 1                 | 0    | 0    | 0    | 1    | 0    | 0    |               |
| Apex         | SXCOSHE21013841       | SHANGHAI  | Los Angeles    | 1/11/2021    | 2/14/2021         | 3                 | 0    | 3    | 0    | 0    | 0    | 0    |               |
| Apex         | SXCOSHE21013839       | SHANGHAI  | Los Angeles    | 1/11/2021    | 2/14/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| Apex         | SXCOSHE21013844       | SHANGHAI  | Los Angeles    | 1/11/2021    | 2/14/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQJNS0007457      | QINGDAO   | Newark         | 1/12/2021    | 2/20/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002109      | YANTIAN   | Newark         | 1/18/2021    | 2/22/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002111      | YANTIAN   | SAVANNAH       | 1/19/2021    | 2/20/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002112      | YANTIAN   | SAVANNAH       | 1/19/2021    | 2/20/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002113      | YANTIAN   | SAVANNAH       | 1/19/2021    | 2/20/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002110      | YANTIAN   | Newark         | 1/19/2021    | 3/2/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002114      | YANTIAN   | SAVANNAH       | 1/19/2021    | 2/20/2021         | 4                 | 0    | 4    | 0    | 0    | 0    | 0    |               |
| Hecny        | HYSLNTAO21010456      | QINGDAO   | Newark         | 1/24/2021    | 3/19/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002146      | YANTIAN   | Newark         | 1/25/2021    | 2/28/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002147      | YANTIAN   | Newark         | 1/25/2021    | 2/28/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002166      | YANTIAN   | SAVANNAH       | 1/27/2021    | 3/2/2021          | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002167      | YANTIAN   | SAVANNAH       | 1/27/2021    | 3/2/2021          | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| Hecny        | HYSLNTAO21010549      | QINGDAO   | Newark         | 1/29/2021    | 3/12/2021         | 1                 | 0    | 0    | 0    | 1    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002212       | YANTIAN   | Newark         | 1/30/2021    | 3/13/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002207       | YANTIAN   | SAVANNAH       | 1/30/2021    | 3/2/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002206       | YANTIAN   | Newark         | 2/1/2021     | 2/28/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002242       | YANTIAN   | Newark         | 2/3/2021     | 3/5/2021          | 1                 | 1    | 0    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002186       | YANTIAN   | LOS ANGELES    | 2/3/2021     | 2/20/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0008370      | QINGDAO   | NEWARK         | 2/4/2021     | 3/19/2021         | 1                 | 0    | 0    | 0    | 1    | 0    | 0    |               |
| Hecny        | HYSLNSZX21012113      | YANTIAN   | LOS ANGELES    | 2/7/2021     | 3/30/2021         | 2                 | 1    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002241       | YANTIAN   | LOS ANGELES    | 2/9/2021     | 2/24/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSZX21020813      | YANTIAN   | LOS ANGELES    | 2/10/2021    | 3/11/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002285       | YANTIAN   | Los ANGELES    | 2/14/2021    | 3/9/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002311       | YANTIAN   | Los ANGELES    | 2/19/2021    | 3/15/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002313       | YANTIAN   | Newark         | 2/20/2021    | 3/24/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002316       | YANTIAN   | Newark         | 2/20/2021    | 3/24/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002317       | YANTIAN   | Newark         | 2/20/2021    | 3/24/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002314       | YANTIAN   | SAVANNAH       | 2/20/2021    | 4/2/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002315       | YANTIAN   | SAVANNAH       | 2/20/2021    | 4/2/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002318       | YANTIAN   | SAVANNAH       | 2/20/2021    | 4/2/2021          | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSZX21012426      | YANTIAN   | Newark         | 2/21/2021    | 3/28/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002302       | YANTIAN   | NEWARK         | 2/21/2021    | 3/27/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| APEX         | SXCOSZOE21020597      | YANTIAN   | LOS ANGELES    | 2/24/2021    | 4/20/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| APEX         | SXCOSZOE21020765      | YANTIAN   | LOS ANGELES    | 2/24/2021    | 4/21/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSZX21020438      | YANTIAN   | LOS ANGELES    | 2/24/2021    | 4/22/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSZX21020439      | YANTIAN   | LOS ANGELES    | 2/24/2021    | 4/22/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSZX21020440      | YANTIAN   | LOS ANGELES    | 2/24/2021    | 4/22/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002319      | YANTIAN   | Los ANGELES    | 2/24/2021    | 3/15/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002321      | YANTIAN   | Los ANGELES    | 2/24/2021    | 3/15/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002322      | YANTIAN   | Los ANGELES    | 2/24/2021    | 3/15/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002323      | YANTIAN   | Los ANGELES    | 2/24/2021    | 3/15/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002324      | YANTIAN   | Los ANGELES    | 2/24/2021    | 3/15/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002325      | YANTIAN   | Los ANGELES    | 2/24/2021    | 3/15/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002326      | YANTIAN   | Los ANGELES    | 2/24/2021    | 3/15/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| Hecny        | HYSLNTP21020352       | KAOHSIUNG | Newark         | 2/27/2021    | 4/14/2021         | 2                 | 1    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002345      | YANTIAN   | NEWARK         | 2/28/2021    | 4/6/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002344      | YANTIAN   | NEWARK         | 2/28/2021    | 4/6/2021          | 2                 | 0    | 1    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002343      | YANTIAN   | NEWARK         | 2/28/2021    | 4/6/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002330      | YANTIAN   | Los Angeles    | 2/28/2021    | 3/20/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002342      | YANTIAN   | NEWARK         | 3/2/2021     | 4/2/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002341      | YANTIAN   | NEWARK         | 3/2/2021     | 4/2/2021          | 2                 | 1    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057376      | SHANGHAI  | NEWARK         | 3/3/2021     | 3/30/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |

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| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| DeWell       | DWCHSSHAS0057378      | SHANGHAI  | NEWARK         | 3/3/2021     | 3/30/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057385      | SHANGHAI  | NEWARK         | 3/3/2021     | 3/30/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057334      | SHANGHAI  | SAVANNAH       | 3/4/2021     | 4/1/2021          | 2                 | 0    | 0    | 1    | 1    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057341      | SHANGHAI  | SAVANNAH       | 3/4/2021     | 4/1/2021          | 2                 | 0    | 0    | 1    | 1    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057353      | SHANGHAI  | SAVANNAH       | 3/4/2021     | 4/1/2021          | 2                 | 0    | 0    | 1    | 1    | 0    | 0    |               |
| Hecny        | HYSLSHA21030148       | SHANGHAI  | Newark         | 3/7/2021     | 4/8/2021          | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057295      | SHANGHAI  | NEWARK         | 3/7/2021     | 4/8/2021          | 3                 | 0    | 3    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009100      | QINGDAO   | NEWARK         | 3/7/2021     | 4/15/2021         | 3                 | 1    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057298      | SHANGHAI  | NEWARK         | 3/8/2021     | 4/6/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057318      | SHANGHAI  | NEWARK         | 3/8/2021     | 4/6/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057362      | SHANGHAI  | Los Angeles    | 3/8/2021     | 3/24/2021         | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057648      | SHANGHAI  | Los Angeles    | 3/8/2021     | 3/24/2021         | 3                 | 0    | 3    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002377       | YANTIAN   | NEWARK         | 3/10/2021    | 4/21/2021         | 4                 | 0    | 2    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002378       | YANTIAN   | NEWARK         | 3/10/2021    | 4/21/2021         | 2                 | 0    | 1    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002376       | YANTIAN   | NEWARK         | 3/10/2021    | 4/21/2021         | 4                 | 0    | 4    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002375       | YANTIAN   | SAVANNAH       | 3/10/2021    | 4/11/2021         | 1                 | 1    | 0    | 0    | 0    | 0    | 0    |               |
| OEC          | OERT201702K02397      | SHANGHAI  | Newark         | 3/11/2021    | 4/10/2021         | 2                 | 0    | 0    | 1    | 1    | 0    | 0    |               |
| OEC          | OERT201702K02395      | SHANGHAI  | Newark         | 3/11/2021    | 4/10/2021         | 3                 | 0    | 1    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057692      | SHANGHAI  | NEWARK         | 3/11/2021    | 4/15/2021         | 1                 | 0    | 0    | 0    | 1    | 0    | 0    |               |
| OEC          | OERT201702K02396      | SHANGHAI  | Newark         | 3/11/2021    | 4/10/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |

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| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| DeWell       | DWCHSSHAS0057693      | SHANGHAI  | NEWARK         | 3/11/2021    | 4/15/2021         | 3                 | 0    | 0    | 1    | 2    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057694      | SHANGHAI  | NEWARK         | 3/11/2021    | 4/15/2021         | 3                 | 0    | 2    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057695      | SHANGHAI  | NEWARK         | 3/11/2021    | 4/15/2021         | 4                 | 0    | 4    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057696      | SHANGHAI  | NEWARK         | 3/11/2021    | 4/15/2021         | 5                 | 0    | 5    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057364      | SHANGHAI  | SAVANNAH       | 3/11/2021    | 4/9/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057367      | SHANGHAI  | SAVANNAH       | 3/11/2021    | 4/9/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21030517      | SHANGHAI  | Newark         | 3/12/2021    | 4/10/2021         | 3                 | 0    | 2    | 1    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21030631      | SHANGHAI  | Newark         | 3/12/2021    | 4/10/2021         | 4                 | 0    | 0    | 4    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21030632      | SHANGHAI  | Newark         | 3/12/2021    | 4/10/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21030633      | SHANGHAI  | Newark         | 3/12/2021    | 4/10/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002374      | YANTIAN   | NEWARK         | 3/12/2021    | 4/25/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009197      | QINGDAO   | Newark         | 3/12/2021    | 5/19/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057653      | SHANGHAI  | LOS ANGELES    | 3/12/2021    | 4/5/2021          | 3                 | 0    | 3    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057654      | SHANGHAI  | LOS ANGELES    | 3/12/2021    | 4/5/2021          | 3                 | 0    | 3    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057656      | SHANGHAI  | LOS ANGELES    | 3/12/2021    | 4/5/2021          | 3                 | 0    | 3    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057657      | SHANGHAI  | LOS ANGELES    | 3/12/2021    | 4/5/2021          | 5                 | 0    | 4    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0058036      | SHANGHAI  | NEWARK         | 3/13/2021    | 4/10/2021         | 4                 | 0    | 0    | 4    | 0    | 0    | 0    |               |
| OEC          | OERT201702K02394      | SHANGHAI  | LOS ANGELES    | 3/13/2021    | 4/9/2021          | 5                 | 0    | 2    | 3    | 0    | 0    | 0    |               |
| OEC          | OERT201702K02419      | SHANGHAI  | LOS ANGELES    | 3/13/2021    | 4/9/2021          | 4                 | 0    | 3    | 1    | 0    | 0    | 0    |               |
| OEC          | OERT201702K02421      | SHANGHAI  | LOS ANGELES    | 3/13/2021    | 4/9/2021          | 4                 | 0    | 3    | 1    | 0    | 0    | 0    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| OEC          | OERT201702K02393      | SHANGHAI  | LOS ANGELES    | 3/13/2021    | 4/9/2021          | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002379      | YANTIAN   | NEWARK         | 3/13/2021    | 4/14/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057661      | SHANGHAI  | LOS ANGELES    | 3/13/2021    | 3/29/2021         | 5                 | 0    | 4    | 1    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21030147      | SHANGHAI  | LOS ANGELES    | 3/14/2021    | 4/1/2021          | 5                 | 0    | 0    | 5    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21030794      | SHANGHAI  | LOS ANGELES    | 3/14/2021    | 4/1/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21030795      | SHANGHAI  | LOS ANGELES    | 3/14/2021    | 4/1/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002403      | YANTIAN   | SAVANNAH       | 3/17/2021    | 4/15/2021         | 2                 | 0    | 1    | 0    | 1    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002402      | YANTIAN   | SAVANNAH       | 3/17/2021    | 4/15/2021         | 3                 | 0    | 2    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002380      | YANTIAN   | NEWARK         | 3/17/2021    | 4/22/2021         | 2                 | 1    | 0    | 1    | 0    | 0    | 0    |               |
| OEC          | OERT201702K02544      | SHANGHAI  | NEWARK         | 3/18/2021    | 4/24/2021         | 4                 | 0    | 0    | 4    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009340      | QINGDAO   | Newark         | 3/18/2021    | 5/19/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009342      | QINGDAO   | Newark         | 3/18/2021    | 5/19/2021         | 5                 | 0    | 0    | 5    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009371      | QINGDAO   | Newark         | 3/18/2021    | 5/19/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057306      | SHANGHAI  | NEWARK         | 3/18/2021    | 4/1/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057311      | SHANGHAI  | NEWARK         | 3/18/2021    | 4/1/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057357      | SHANGHAI  | NEWARK         | 3/18/2021    | 4/1/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057370      | SHANGHAI  | NEWARK         | 3/18/2021    | 4/1/2021          | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057372      | SHANGHAI  | NEWARK         | 3/18/2021    | 4/1/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| OEC          | OERT205702K01705      | QINGDAO   | LOS ANGELES    | 3/21/2021    | 4/12/2021         | 4                 | 0    | 2    | 2    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21030634      | SHANGHAI  | SAVANNAH       | 3/22/2021    | 4/17/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| Hecny        | HYSLNSHA21030635      | SHANGHAI  | SAVANNAH       | 3/22/2021    | 4/17/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21030636      | SHANGHAI  | SAVANNAH       | 3/22/2021    | 4/17/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| Hecny        | HYSLNTAO21030406      | QINGDAO   | LOS ANGELES    | 3/22/2021    | 4/7/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| APEX         | SXCOQDOE21030135      | QINGDAO   | LOS ANGELES    | 3/22/2021    | 4/21/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009206      | QINGDAO   | Newark         | 3/23/2021    | 5/1/2021          | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| OEC          | OERT201702K02549      | SHANGHAI  | NEWARK         | 3/23/2021    | 4/21/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0057658      | SHANGHAI  | LOS ANGELES    | 3/23/2021    | 4/7/2021          | 4                 | 0    | 0    | 3    | 1    | 0    | 0    |               |
| DeWell       | DWCHSGGSZ0002406      | YANTIAN   | SAVANNAH       | 3/24/2021    | 4/28/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGSZ0002401      | YANTIAN   | SAVANNAH       | 3/24/2021    | 4/28/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGSZ0002407      | YANTIAN   | NEWARK         | 3/24/2021    | 4/24/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| Hecny        | HYSLNTAO21030640      | QINGDAO   | LOS ANGELES    | 3/24/2021    | 4/20/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| Hecny        | HYSLNTAO21030676      | QINGDAO   | Newark         | 3/25/2021    | 4/30/2021         | 1                 | 0    | 0    | 0    | 1    | 0    | 0    |               |
| HECNY        | HYSLNTAO21030647      | QINGDAO   | NEWARK         | 3/25/2021    | 5/15/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009205      | QINGDAO   | Newark         | 3/25/2021    | 4/29/2021         | 3                 | 0    | 3    | 0    | 0    | 0    | 0    |               |
| OEC          | OERT201702K02548      | SHANGHAI  | NEWARK         | 3/26/2021    | 4/25/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| Hecny        | HYSLNTAO21030671      | QINGDAO   | LOS ANGELES    | 3/27/2021    | 4/20/2021         | 6                 | 0    | 0    | 6    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21030991      | SHANGHAI  | LOS ANGELES    | 3/27/2021    | 4/15/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009341      | QINGDAO   | LOS ANGELES    | 3/27/2021    | 5/1/2021          | 4                 | 0    | 0    | 4    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009343      | QINGDAO   | LOS ANGELES    | 3/27/2021    | 5/1/2021          | 5                 | 0    | 0    | 5    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009503      | QINGDAO   | LOS ANGELES    | 3/27/2021    | 5/1/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| DeWell       | DWCHSQINS0009510      | QINGDAO   | LOS ANGELES    | 3/27/2021    | 5/1/2021          | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002458       | YANTIAN   | Newark         | 3/28/2021    | 5/6/2021          | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| HECNY        | HYSLNTAO21030463      | QINGDAO   | NEWARK         | 3/28/2021    | 5/8/2021          | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| HECNY        | HYSLNSRG21030066      | YANTIAN   | NEWARK         | 3/28/2021    | 5/6/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| HECNY        | HYSLNSZX21030967      | YANTIAN   | NEWARK         | 3/28/2021    | 5/6/2021          | 5                 | 0    | 5    | 0    | 0    | 0    | 0    |               |
| HECNY        | HYSLNTAO21030799      | QINGDAO   | NEWARK         | 3/28/2021    | 5/8/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| HECNY        | HYSLNTAO21030433      | QINGDAO   | NEWARK         | 3/28/2021    | 5/8/2021          | 3                 | 1    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002454       | YANTIAN   | Newark         | 3/28/2021    | 5/6/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002455       | YANTIAN   | Newark         | 3/28/2021    | 5/6/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002456       | YANTIAN   | Newark         | 3/28/2021    | 5/6/2021          | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002451       | YANTIAN   | Newark         | 3/28/2021    | 5/6/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002452       | YANTIAN   | Newark         | 3/28/2021    | 5/6/2021          | 3                 | 0    | 3    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002453       | YANTIAN   | Newark         | 3/28/2021    | 5/6/2021          | 3                 | 0    | 3    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002457       | YANTIAN   | Newark         | 3/28/2021    | 5/6/2021          | 3                 | 0    | 3    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009497      | QINGDAO   | Newark         | 3/28/2021    | 5/9/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009519      | QINGDAO   | LOS ANGELES    | 3/28/2021    | 4/21/2021         | 4                 | 0    | 0    | 2    | 2    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009410      | QINGDAO   | Newark         | 3/30/2021    | 5/11/2021         | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009490      | QINGDAO   | SAVANNAH       | 3/30/2021    | 5/21/2021         | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| HECNY        | HYSLNTAO21030739      | QINGDAO   | NEWARK         | 3/30/2021    | 5/11/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| HECNY        | HYSLNTAO21030765      | QINGDAO   | NEWARK         | 3/30/2021    | 5/11/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| HECNY        | HYSLNTAO21030411      | QINGDAO   | NEWARK         | 3/30/2021    | 5/11/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| HECNY        | HYSLNTAO21030698      | QINGDAO   | NEWARK         | 3/30/2021    | 5/20/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009605      | QINGDAO   | Newark         | 3/30/2021    | 5/11/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21031481      | SHANGHAI  | Newark         | 3/31/2021    | 5/1/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21031484      | SHANGHAI  | Newark         | 3/31/2021    | 5/1/2021          | 4                 | 0    | 0    | 4    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21031485      | SHANGHAI  | Newark         | 3/31/2021    | 5/1/2021          | 5                 | 0    | 0    | 5    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002461      | YANTIAN   | Newark         | 3/31/2021    | 5/6/2021          | 2                 | 0    | 0    | 1    | 1    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002408      | YANTIAN   | Newark         | 3/31/2021    | 5/6/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002459      | YANTIAN   | Newark         | 3/31/2021    | 5/8/2021          | 3                 | 1    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002460      | YANTIAN   | Newark         | 3/31/2021    | 5/8/2021          | 4                 | 2    | 0    | 2    | 0    | 0    | 0    |               |
| OEC          | OERT201702K02718      | SHANGHAI  | NEWARK         | 3/31/2021    | 5/8/2021          | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| OEC          | OERT201702K02547      | SHANGHAI  | NEWARK         | 3/31/2021    | 5/8/2021          | 5                 | 0    | 5    | 0    | 0    | 0    | 0    |               |
| Hecny        | HYSLNTAO21030782      | QINGDAO   | SAVANNAH       | 4/1/2021     | 5/28/2021         | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| Hecny        | HYSLNSZX21031463      | YANTIAN   | Newark         | 4/1/2021     | 5/25/2021         | 4                 | 0    | 4    | 0    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSZX21031464      | YANTIAN   | Newark         | 4/1/2021     | 5/25/2021         | 5                 | 0    | 0    | 5    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSZX21042162      | YANTIAN   | Newark         | 4/1/2021     | 6/2/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSZX21042161      | YANTIAN   | Newark         | 4/1/2021     | 6/2/2021          | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009610      | QINGDAO   | Newark         | 4/1/2021     | 5/19/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| HECNY        | HYSLNSHA21031657      | SHANGHAI  | NEWARK         | 4/2/2021     | 4/29/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| Hecny        | HYSLNSHA21031657      | SHANGHAI  | Newark         | 4/2/2021     | 4/29/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |

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| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| DeWell       | DWCHSSHAS0058073      | SHANGHAI  | Newark         | 4/3/2021     | 4/29/2021         | 6                 | 0    | 4    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSSHAS0058072      | SHANGHAI  | Newark         | 4/3/2021     | 4/29/2021         | 5                 | 0    | 5    | 0    | 0    | 0    | 0    |               |
| OEC          | OERT205702K01981      | QINGDAO   | LOS ANGELES    | 4/3/2021     | 4/23/2021         | 1                 | 1    | 0    | 0    | 0    | 0    | 0    |               |
| OEC          | OERT205702K02258      | QINGDAO   | NEWARK         | 4/5/2021     | 5/15/2021         | 1                 | 1    | 0    | 0    | 0    | 0    | 0    |               |
| HECNY        | HYSLSNZX21031319      | YANTIAN   | NEWARK         | 4/7/2021     | 5/9/2021          | 3                 | 0    | 3    | 0    | 0    | 0    | 0    |               |
| HECNY        | HYSLNTAO21040179      | QINGDAO   | SAVANNAH       | 4/7/2021     | 5/17/2021         | 4                 | 0    | 0    | 4    | 0    | 0    | 0    |               |
| Hecny        | HYSLNTAO21040095      | QINGDAO   | LOS ANGELES    | 4/7/2021     | 4/26/2021         | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| DeWell       | DWCHSGGSZ0002463      | YANTIAN   | Newark         | 4/7/2021     | 5/9/2021          | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009521      | QINGDAO   | Newark         | 4/9/2021     | 5/16/2021         | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009522      | QINGDAO   | Newark         | 4/9/2021     | 5/16/2021         | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009635      | QINGDAO   | Newark         | 4/9/2021     | 5/16/2021         | 2                 | 0    | 0    | 0    | 2    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009767      | QINGDAO   | Newark         | 4/9/2021     | 5/16/2021         | 2                 | 0    | 1    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGSZ0002464      | YANTIAN   | Newark         | 4/9/2021     | 5/17/2021         | 4                 | 0    | 0    | 3    | 1    | 0    | 0    |               |
| HECNY        | HYSLNTAO21040039      | QINGDAO   | LOS ANGELES    | 4/9/2021     | 5/18/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGSZ0002529      | YANTIAN   | SAVANNAH       | 4/10/2021    | 5/12/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGSZ0002530      | YANTIAN   | SAVANNAH       | 4/10/2021    | 5/12/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGSZ0002531      | YANTIAN   | SAVANNAH       | 4/10/2021    | 5/12/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGSZ0002532      | YANTIAN   | SAVANNAH       | 4/10/2021    | 5/29/2021         | 4                 | 0    | 4    | 0    | 0    | 0    | 0    |               |
| Hecny        | HYSLNTAO21040161      | QINGDAO   | Newark         | 4/10/2021    | 6/11/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009555      | QINGDAO   | Newark         | 4/10/2021    | 5/19/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |

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| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| DeWell       | DWCHSQINS0009654      | QINGDAO   | Newark         | 4/10/2021    | 5/19/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009655      | QINGDAO   | Newark         | 4/10/2021    | 5/19/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009556      | QINGDAO   | Newark         | 4/10/2021    | 5/29/2021         | 1                 | 0    | 0    | 1    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009597      | QINGDAO   | Newark         | 4/10/2021    | 5/19/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| OEC          | OERT205702K02316      | QINGDAO   | NEWARK         | 4/12/2021    | 5/16/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002523       | YANTIAN   | LOS ANGELES    | 4/12/2021    | 5/14/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002528       | YANTIAN   | LOS ANGELES    | 4/12/2021    | 5/14/2021         | 5                 | 0    | 1    | 4    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002524       | YANTIAN   | Newark         | 4/14/2021    | 5/24/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| Hecny        | HYSLNTAO21040329      | QINGDAO   | Newark         | 4/15/2021    | 6/5/2021          | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002586       | YANTIAN   | LOS ANGELES    | 4/16/2021    | 5/10/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009418      | QINGDAO   | SAVANNAH       | 4/19/2021    | 5/21/2021         | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002588       | YANTIAN   | SAVANNAH       | 4/19/2021    | 6/10/2021         | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002589       | YANTIAN   | Newark         | 4/22/2021    | 5/31/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002590       | YANTIAN   | SAVANNAH       | 4/22/2021    | 6/8/2021          | 3                 | 0    | 0    | 3    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002587       | YANTIAN   | Newark         | 4/23/2021    | 5/26/2021         | 2                 | 0    | 0    | 1    | 1    | 0    | 0    |               |
| Hecny        | HYSLNTAO21040435      | QINGDAO   | Newark         | 4/26/2021    | 6/21/2021         | 2                 | 0    | 2    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002582       | YANTIAN   | LOS ANGELES    | 4/26/2021    | 5/25/2021         | 4                 | 0    | 4    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002622       | YANTIAN   | Newark         | 4/30/2021    | 5/31/2021         | 2                 | 0    | 0    | 1    | 1    | 0    | 0    |               |
| DeWell       | DWCHSGGS0002623       | YANTIAN   | Newark         | 4/30/2021    | 5/31/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| APEX         | SXCOSZOE21040919      | YANTIAN   | LOS ANGELES    | 4/30/2021    | 6/5/2021          | 1                 | 0    | 1    | 0    | 0    | 0    | 0    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Port Of Load | Port Of Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | 45HQ | 20RQ | 40RQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|--------------|-------------------|-------------------|------|------|------|------|------|------|---------------|
| APEX         | SXCOSZOE21041232      | YANTIAN   | LOS ANGELES    | 4/30/2021    | 6/5/2021          | 5                 | 0    | 5    | 0    | 0    | 0    | 0    |               |
| DeWell       | DWCHSGGZS0002621      | YANTIAN   | Newark         | 4/30/2021    | 5/26/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| DeWell       | DWCHSQINS0009843      | QINGDAO   | Newark         | 4/30/2021    | 6/13/2021         | 4                 | 0    | 4    | 0    | 0    | 0    | 0    |               |
| OEC          | OERT202702K03322      | YANTIAN   | Los Angeles    | 4/30/2021    | 5/21/2021         | 2                 | 0    | 0    | 2    | 0    | 0    | 0    |               |
| OEC          | OERT202702K03236      | YANTIAN   | Los Angeles    | 4/30/2021    | 5/21/2021         | 3                 | 0    | 3    | 0    | 0    | 0    | 0    |               |
| OEC          | OERT202702K03319      | YANTIAN   | Los Angeles    | 4/30/2021    | 5/21/2021         | 2                 | 1    | 0    | 1    | 0    | 0    | 0    |               |
| APEX-USA     | SXCOSZOE21041719      | YANTIAN   | LOS ANGELES    | 4/30/2021    | 5/29/2021         | 0                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| APEX-USA     | SXCOSZOE21041719      | YANTIAN   | LOS ANGELES    | 4/30/2021    | 5/29/2021         | 0                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| APEX-USA     | SXCOSZOE21041719      | YANTIAN   | LOS ANGELES    | 4/30/2021    | 5/29/2021         | 0                 | 0    | 1    | 0    | 0    | 0    | 0    |               |
| APEX-USA     | SXCOSZOE21041719      | YANTIAN   | LOS ANGELES    | 4/30/2021    | 5/29/2021         | 0                 | 0    | 1    | 0    | 0    | 0    | 0    |               |

**Appendix A-2: Relevant Lanes for Shortfall Analysis**

The 2020 Service Contract covered many lanes, not all of which were actually used. The table below summarizes the number of containers BBY shipped via NVOCCs or freight forwarders on lanes covered by the 2020 Service Contract, as set forth in Appendix A-1.

| Port Discharge    | Port Load | Sum of 20GP | Sum of 40GP | Sum of 40HQ | Sum of 45HQ |
|-------------------|-----------|-------------|-------------|-------------|-------------|
| LOS ANGELES       | QINGDAO   | 1           | 3           | 30          | 15          |
|                   | SHANGHAI  | 0           | 46          | 67          | 11          |
|                   | YANTIAN   | 2           | 28          | 33          | 0           |
| LOS ANGELES Total |           | 3           | 77          | 130         | 26          |
| Newark            | KAOHSIUNG | 1           | 1           | 0           | 0           |
|                   | QINGDAO   | 3           | 14          | 61          | 13          |
|                   | SHANGHAI  | 0           | 60          | 92          | 6           |
|                   | YANTIAN   | 6           | 49          | 63          | 8           |
| Newark Total      |           | 10          | 124         | 216         | 27          |
| SAVANNAH          | QINGDAO   | 0           | 0           | 13          | 6           |
|                   | SHANGHAI  | 0           | 4           | 32          | 3           |
|                   | YANTIAN   | 1           | 32          | 22          | 2           |
| SAVANNAH Total    |           | 1           | 36          | 67          | 11          |
| Grand Total       |           | 14          | 237         | 413         | 64          |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

**Appendix A-3: Calculation of But-For Freight Expense (2020)**

The table below calculates how much BBY would have paid if it had shipped each of the loads referenced in Appendices A-1 and A-2 via Evergreen at the freight rates specified in the 2020 Service Contract, instead of via high-priced NVOCCs.

| Row Labels         | Sum of<br>20GP | 20 cost | Sum of<br>40GP | 40 cost | Sum of<br>40HQ | 40 cost | Sum of<br>45HQ | 45 cost | Cost               |
|--------------------|----------------|---------|----------------|---------|----------------|---------|----------------|---------|--------------------|
| <b>LOS ANGELES</b> | <b>3</b>       |         | <b>77</b>      |         | <b>130</b>     |         | <b>26</b>      |         |                    |
| QINGDAO            | 1              |         | 3              |         | 30             |         | 15             |         | \$61,810           |
| SHANGHAI           |                |         | 46             |         | 67             |         | 11             |         | \$148,625          |
| YANTIAN            | 2              |         | 28             |         | 33             |         | 0              |         | \$73,305           |
| <b>NEWARK</b>      | <b>10</b>      |         | <b>124</b>     |         | <b>216</b>     |         | <b>27</b>      |         | <b>\$0</b>         |
| KAOHSIUNG          | 1              |         | 1              |         | 0              |         | 0              |         | \$3,514            |
| QINGDAO            | 3              |         | 14             |         | 61             |         | 13             |         | \$183,209          |
| SHANGHAI           |                |         | 60             |         | 92             |         | 6              |         | \$311,530          |
| YANTIAN            | 6              |         | 49             |         | 63             |         | 8              |         | \$247,764          |
| <b>SAVANNAH</b>    | <b>1</b>       |         | <b>36</b>      |         | <b>67</b>      |         | <b>11</b>      |         | <b>\$0</b>         |
| QINGDAO            |                |         | 0              |         | 13             |         | 6              |         | \$40,202           |
| SHANGHAI           |                |         | 4              |         | 32             |         | 3              |         | \$77,685           |
| YANTIAN            | 1              |         | 32             |         | 22             |         | 2              |         | \$111,912          |
| <b>Grand Total</b> | <b>14</b>      |         | <b>237</b>     |         | <b>413</b>     |         | <b>64</b>      |         | <b>\$1,259,556</b> |

**Appendix A-4: Summary of Shortfall Damages Calculation (2020)**

The table below summarizes the impact of the data set forth in Appendices A-1 through A-3. As shown below, BBBY was forced to incur additional incremental expenses of \$3,113,076.00 as a result of Evergreen's shortfall during the 2020 service contract year.

|                                                                                    |                       |
|------------------------------------------------------------------------------------|-----------------------|
| Evergreen service commitment (FEU):                                                | 1250                  |
| Evergreen shortfall (FEU):                                                         | 789                   |
| NVO Shipments on impacted Lanes (FEU):                                             | 788.625               |
| Cost of NVO freight on impacted lanes:                                             | \$4,372,632           |
| But-for cost if Evergreen had carried the NVO shipments at Service Contract rates: | \$1,259,566           |
| Excess Cost:                                                                       | \$3,113,076.00        |
| Adjustment factor (Shortfall FEUs/ NVO FEUs used in analysis)                      | 1.000475511           |
|                                                                                    |                       |
| <b>Excess cost to BBBY rising from Evergreen shortfall:</b>                        | <b>\$3,114,556.30</b> |

**PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED****Appendix A-5: NVO Shipments To Cover Evergreen Shortfall (2021 Service Contract)**

The table below reflects actual shipments undertaken by BBY during the 2021 service contract year on lanes covered by the 2021 Service Contract, using NVOs or freight forwarders.

Evergreen's total shortfall in 2021 was 259.90 FEUs. The shipments in this chart sum to 259.25 FEUs and would have, if shipped via Evergreen, fulfilled Evergreen's 2021 MQC.

| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Departure | Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|-----------|-----------|-------------------|------|------|------|---------------|
| Apex         | SZOE21081356          | YANTIAN   | LOS ANGELES    | 8/26/2021 | 9/11/2021 | 4                 | 0    | 0    | 4    |               |
| Apex         | SZOE21081356          | YANTIAN   | LOS ANGELES    | 8/26/2021 | 9/11/2021 | 4                 | 0    | 0    | 4    |               |
| Apex         | SZOE21081356          | YANTIAN   | LOS ANGELES    | 8/26/2021 | 9/11/2021 | 2                 | 0    | 0    | 2    |               |
| DeWell       | DWCHSGGZS0003138      | YANTIAN   | LOS ANGELES    | 8/26/2021 | 9/9/2021  | 2                 | 0    | 0    | 2    |               |
| DeWell       | DWCHSGGZS0003139      | YANTIAN   | LOS ANGELES    | 8/26/2021 | 9/9/2021  | 2                 | 0    | 0    | 2    |               |
| DeWell       | DWCHSGGZS0003140      | YANTIAN   | LOS ANGELES    | 8/26/2021 | 9/9/2021  | 2                 | 0    | 0    | 2    |               |
| DeWell       | DWCHSGGZS0003141      | YANTIAN   | LOS ANGELES    | 8/26/2021 | 9/9/2021  | 2                 | 0    | 0    | 2    |               |
| DeWell       | DWCHSGGZS0003201      | YANTIAN   | LOS ANGELES    | 8/26/2021 | 9/9/2021  | 1                 | 0    | 0    | 1    |               |
| DeWell       | DWCHSGGZS0003202      | YANTIAN   | LOS ANGELES    | 8/26/2021 | 9/9/2021  | 5                 | 0    | 0    | 5    |               |
| DeWell       | DWCHSGGZS0003202      | YANTIAN   | LOS ANGELES    | 8/26/2021 | 9/9/2021  | 2                 | 0    | 0    | 2    |               |
| Apex         | SXCONBOE21081068      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/13/2021 | 1                 | 0    | 0    | 1    |               |
| Apex         | SXCONBOE21081071      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/13/2021 | 1                 | 0    | 0    | 1    |               |
| Apex         | SXCONBOE21081073      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/13/2021 | 1                 | 0    | 0    | 1    |               |
| Apex         | SXCONBOE21081075      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/13/2021 | 1                 | 0    | 0    | 1    |               |
| Apex         | SXCONBOE21081079      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/13/2021 | 1                 | 0    | 0    | 1    |               |
| Apex         | SXCONBOE21081080      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/13/2021 | 1                 | 0    | 1    | 0    |               |
| Apex         | SXCONBOE21081081      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/13/2021 | 1                 | 0    | 0    | 1    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Departure | Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|-----------|-----------|-------------------|------|------|------|---------------|
| Apex         | SXCONBOE21081082      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/13/2021 | 1                 | 0    | 0    | 1    |               |
| APEX-USA     | SXCONBOE21081081      | NINGBO    | LOS ANGELES    | 8/27/2021 | 11/4/2021 | 1                 | 0    | 0    | 1    |               |
| APEX-USA     | SXCONBOE21081081      | NINGBO    | LOS ANGELES    | 8/27/2021 | 11/4/2021 | 1                 | 0    | 0    | 1    |               |
| APEX-USA     | SXCONBOE21081082      | NINGBO    | LOS ANGELES    | 8/27/2021 | 11/4/2021 | 1                 | 0    | 0    | 1    |               |
| APEX-USA     | SXCONBOE21081082      | NINGBO    | LOS ANGELES    | 8/27/2021 | 11/4/2021 | 1                 | 0    | 0    | 1    |               |
| DeWell       | DWCHSNGBS0028880      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 1                 | 0    | 1    | 0    |               |
| DeWell       | DWCHSNGBS0028885      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 2                 | 0    | 1    | 1    |               |
| DeWell       | DWCHSNGBS0028886      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 4                 | 0    | 1    | 3    |               |
| DeWell       | DWCHSNGBS0028886      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 2                 | 0    | 1    | 1    |               |
| DeWell       | DWCHSNGBS0028888      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 1                 | 0    | 1    | 0    |               |
| DeWell       | DWCHSNGBS0028889      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 5                 | 0    | 0    | 5    |               |
| DeWell       | DWCHSNGBS0028942      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 5                 | 0    | 0    | 5    |               |
| DeWell       | DWCHSNGBS0028943      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 4                 | 0    | 0    | 4    |               |
| DeWell       | DWCHSNGBS0028944      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 1                 | 0    | 0    | 1    |               |
| DeWell       | DWCHSNGBS0028946      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 2                 | 0    | 0    | 2    |               |
| DeWell       | DWCHSNGBS0028950      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 1                 | 0    | 1    | 0    |               |
| DeWell       | DWCHSNGBS0028951      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 5                 | 0    | 0    | 5    |               |
| DeWell       | DWCHSNGBS0028951      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 5                 | 0    | 1    | 4    |               |
| DeWell       | DWCHSNGBS0028951      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 1                 | 0    | 0    | 1    |               |
| DeWell       | DWCHSNGBS0029024      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 1                 | 0    | 0    | 1    |               |
| DeWell       | DWCHSNGBS0029025      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021 | 1                 | 0    | 1    | 0    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name | Bill Of Lading Number | Port Load | Port Discharge | Departure | Discharge  | Total No Of Cntrs | 20GP | 40GP | 40HQ | Carrier Total |
|--------------|-----------------------|-----------|----------------|-----------|------------|-------------------|------|------|------|---------------|
| DeWell       | DWCHSNGBS0029026      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021  | 1                 | 0    | 1    | 0    |               |
| DeWell       | DWCHSNGBS0029027      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/12/2021  | 1                 | 0    | 0    | 1    |               |
| Apex         | SXCONBOE21081072      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/13/2021  | 2                 | 1    | 0    | 1    |               |
| Apex         | SXCONBOE21081074      | NINGBO    | LOS ANGELES    | 8/27/2021 | 9/13/2021  | 2                 | 1    | 0    | 1    |               |
| Apex         | SXCOSZOE21091117      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/25/2021  | 3                 | 0    | 0    | 3    |               |
| Apex         | SXCOSZOE21091117      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/25/2021  | 2                 | 0    | 0    | 2    |               |
| Apex         | SXCOSZOE21091112      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/25/2021  | 2                 | 0    | 0    | 2    |               |
| Apex         | SXCOSZOE21091112      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/25/2021  | 3                 | 0    | 0    | 3    |               |
| Apex         | SXCOSZOE21091111      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/25/2021  | 3                 | 0    | 0    | 3    |               |
| Apex         | SXCOSZOE21091118      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/25/2021  | 3                 | 0    | 0    | 3    |               |
| Apex         | SXCOSZOE21091119      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/25/2021  | 3                 | 0    | 0    | 3    |               |
| Apex         | SXCOSZOE21091154      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/25/2021  | 2                 | 0    | 0    | 2    |               |
| Apex         | SXCOSZOE21091156      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/25/2021  | 2                 | 0    | 0    | 2    |               |
| Apex         | SXCOSZOE21091156      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/25/2021  | 3                 | 0    | 0    | 3    |               |
| Apex         | SXCOSZOE21081490      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/25/2021  | 2                 | 0    | 0    | 2    |               |
| Apex         | SXCOSZOE21081490      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/25/2021  | 3                 | 0    | 0    | 3    |               |
| Apex         | SXCOSZOE21091110      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/30/2021  | 4                 | 0    | 0    | 4    |               |
| Apex         | SXCOSZOE21091120      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/30/2021  | 3                 | 0    | 0    | 3    |               |
| Apex         | SXCOSZOE21091120      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 9/30/2021  | 2                 | 0    | 0    | 2    |               |
| APEX-USA     | SXCOSZOE21081490      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 10/24/2021 | 1                 | 0    | 0    | 1    |               |
| APEX-USA     | SXCOSZOE21081490      | YANTIAN   | LOS ANGELES    | 9/11/2021 | 10/24/2021 | 1                 | 0    | 0    | 1    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name                  | Bill Of Lading Number | Port Load | Port Discharge | Departure  | Discharge  | Total No Of Cntrs | 20GP | 40GP | 40HQ | Carrier Total |
|-------------------------------|-----------------------|-----------|----------------|------------|------------|-------------------|------|------|------|---------------|
| APEX-USA                      | SXCOSZOE21081490      | YANTIAN   | LOS ANGELES    | 9/11/2021  | 10/24/2021 | 1                 | 0    | 0    | 1    |               |
| APEX                          | SXCOSHE21083778       | NINGBO    | LOS ANGELES    | 9/20/2021  | 10/4/2021  | 3                 | 0    | 0    | 3    |               |
| APEX                          | SXCOSHE21083778       | NINGBO    | LOS ANGELES    | 9/20/2021  | 10/4/2021  | 2                 | 0    | 0    | 2    |               |
| APEX                          | SXCOSHE21083779       | NINGBO    | LOS ANGELES    | 9/20/2021  | 10/4/2021  | 3                 | 0    | 0    | 3    |               |
| APEX                          | SXCOSHE21083779       | NINGBO    | LOS ANGELES    | 9/20/2021  | 10/4/2021  | 3                 | 0    | 0    | 3    |               |
| APEX                          | SXCOSHE21083776       | NINGBO    | LOS ANGELES    | 9/20/2021  | 10/4/2021  | 3                 | 0    | 0    | 3    |               |
| APEX                          | SXCOSHE21083776       | NINGBO    | LOS ANGELES    | 9/20/2021  | 10/4/2021  | 2                 | 0    | 0    | 2    |               |
| APEX                          | SXCOSHE21083777       | NINGBO    | LOS ANGELES    | 9/20/2021  | 10/4/2021  | 3                 | 0    | 0    | 3    |               |
| APEX                          | SXCOSHE21083777       | NINGBO    | LOS ANGELES    | 9/20/2021  | 10/4/2021  | 2                 | 0    | 0    | 2    |               |
| APEX                          | SXCOSHE21083780       | NINGBO    | LOS ANGELES    | 9/20/2021  | 10/4/2021  | 4                 | 0    | 0    | 4    |               |
| Apex                          | SZOE21091918          | YANTIAN   | LOS ANGELES    | 10/3/2021  | 11/5/2021  | 3                 | 0    | 0    | 3    |               |
| Apex                          | SZOE21091918          | YANTIAN   | LOS ANGELES    | 10/3/2021  | 11/5/2021  | 3                 | 0    | 0    | 3    |               |
| Apex                          | SZOE21092188          | YANTIAN   | LOS ANGELES    | 10/3/2021  | 11/5/2021  | 1                 | 0    | 0    | 1    |               |
| Apex                          | SZOE21092189          | YANTIAN   | LOS ANGELES    | 10/3/2021  | 11/5/2021  | 1                 | 0    | 0    | 1    |               |
| Apex                          | SZOE21092190          | YANTIAN   | LOS ANGELES    | 10/3/2021  | 11/5/2021  | 1                 | 0    | 0    | 1    |               |
| Apex                          | SZOE21092187          | YANTIAN   | LOS ANGELES    | 10/3/2021  | 11/5/2021  | 3                 | 0    | 0    | 3    |               |
| Apex                          | SZOE21092187          | YANTIAN   | LOS ANGELES    | 10/3/2021  | 11/5/2021  | 3                 | 0    | 0    | 3    |               |
| NORMAN KRIEGER INC            | WWLLWLC11119897       | NINGBO    | Long Beach     | 11/26/2021 | 2/8/2022   | 1                 | 0    | 0    | 1    |               |
| NORMAN KRIEGER INC            | WWLLWLC11214617       | NINGBO    | LOS ANGELES    | 12/14/2021 | 1/29/2022  | 1                 | 0    | 0    | 1    |               |
| NORMAN KRIEGER INC            | WWLLWLC11214252       | NINGBO    | LOS ANGELES    | 12/14/2021 | 1/29/2022  | 1                 | 0    | 0    | 1    |               |
| NORMAN KRIEGER INC            | WWLLWLC11214252       | NINGBO    | LOS ANGELES    | 12/14/2021 | 1/29/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBSNGB5756167       | NINGBO    | SAVANNAH       | 12/24/2021 | 2/4/2022   | 1                 | 0    | 0    | 1    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name                  | Bill Of Lading Number | Port Load | Port Discharge | Departure  | Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | Carrier Total |
|-------------------------------|-----------------------|-----------|----------------|------------|-----------|-------------------|------|------|------|---------------|
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5752864      | NINGBO    | New York       | 12/26/2021 | 2/2/2022  | 1                 | 0    | 1    | 0    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5760525      | NINGBO    | New York       | 12/28/2021 | 2/4/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5760525      | NINGBO    | New York       | 12/28/2021 | 2/4/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5760525      | NINGBO    | New York       | 12/28/2021 | 2/4/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5760640      | NINGBO    | New York       | 12/28/2021 | 2/4/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5760640      | NINGBO    | New York       | 12/28/2021 | 2/4/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5760504      | NINGBO    | New York       | 12/28/2021 | 2/4/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5760460      | NINGBO    | New York       | 12/28/2021 | 2/4/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5760460      | NINGBO    | New York       | 12/28/2021 | 2/4/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5760476      | NINGBO    | New York       | 12/28/2021 | 2/4/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5760476      | NINGBO    | New York       | 12/28/2021 | 2/4/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5762701      | NINGBO    | SAVANNAH       | 12/28/2021 | 2/21/2022 | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5762701      | NINGBO    | SAVANNAH       | 12/28/2021 | 2/21/2022 | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5762701      | NINGBO    | SAVANNAH       | 12/28/2021 | 2/21/2022 | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5762701      | NINGBO    | SAVANNAH       | 12/28/2021 | 2/21/2022 | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5762701      | NINGBO    | SAVANNAH       | 12/28/2021 | 2/21/2022 | 1                 | 0    | 0    | 1    |               |
| APEX-USA                      | SXCOQDOE21120124      | QINGDAO   | Newark         | 12/29/2021 | 2/3/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5766959      | NINGBO    | SAVANNAH       | 12/31/2021 | 2/28/2022 | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5766959      | NINGBO    | SAVANNAH       | 12/31/2021 | 2/28/2022 | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5766965      | NINGBO    | SAVANNAH       | 12/31/2021 | 2/28/2022 | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5768748      | NINGBO    | New York       | 1/4/2022   | 2/4/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5768748      | NINGBO    | New York       | 1/4/2022   | 2/4/2022  | 1                 | 0    | 0    | 1    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name                  | Bill Of Lading Number | Port Load | Port Discharge | Departure | Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | Carrier Total |
|-------------------------------|-----------------------|-----------|----------------|-----------|-----------|-------------------|------|------|------|---------------|
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5768748      | NINGBO    | New York       | 1/4/2022  | 2/4/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5771932      | NINGBO    | New York       | 1/5/2022  | 2/9/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5771932      | NINGBO    | New York       | 1/5/2022  | 2/9/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5771958      | NINGBO    | New York       | 1/5/2022  | 2/9/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5771958      | NINGBO    | New York       | 1/5/2022  | 2/9/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5771958      | NINGBO    | New York       | 1/5/2022  | 2/9/2022  | 1                 | 0    | 0    | 1    |               |
| CONSTELLATION LOGISTICS LLC   | SXCONBOE22010089      | NINGBO    | New York       | 1/6/2022  | 2/23/2022 | 1                 | 0    | 0    | 1    |               |
| CONSTELLATION LOGISTICS LLC   | SXCONBOE22010088      | NINGBO    | New York       | 1/6/2022  | 2/23/2022 | 1                 | 0    | 0    | 1    |               |
| CONSTELLATION LOGISTICS LLC   | SXCONBOE22010087      | NINGBO    | New York       | 1/6/2022  | 2/23/2022 | 1                 | 0    | 0    | 1    |               |
| APEX-USA                      | SXCONBOE22010312      | NINGBO    | New York       | 1/6/2022  | 2/9/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5779804      | NINGBO    | New York       | 1/13/2022 | 2/9/2022  | 1                 | 1    | 0    | 0    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5779312      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 1    | 0    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5779312      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 1    | 0    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5779321      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 1    | 0    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5779321      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 1    | 0    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5779321      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 1    | 0    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5779779      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 1    | 0    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5779312      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5779312      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5779321      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5779646      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5779646      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMSBSNGB5779646      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Carrier Name                  | Bill Of Lading Number | Port Load | Port Discharge | Departure | Discharge | Total No Of Cntrs | 20GP | 40GP | 40HQ | Carrier Total |
|-------------------------------|-----------------------|-----------|----------------|-----------|-----------|-------------------|------|------|------|---------------|
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779742      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779742      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779742      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779742      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779755      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779755      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779755      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779755      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779769      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779769      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779769      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779769      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779804      | NINGBO    | New York       | 1/13/2022 | 2/6/2022  | 1                 | 0    | 0    | 1    |               |
| TERRA WORLDWIDE LOGISTICS C/O | SMMBBSNGB5779804      | NINGBO    | New York       | 1/13/2022 | 2/9/2022  | 1                 | 0    | 0    | 1    |               |
| NORMAN KRIEGER INC            | SHRFWLC20125109       | NINGBO    | SAVANNAH       | 1/29/2022 | 3/10/2022 | 1                 | 0    | 0    | 1    |               |
| NORMAN KRIEGER INC            | SHRFWLC20125523       | NINGBO    | SAVANNAH       | 1/29/2022 | 3/10/2022 | 1                 | 0    | 0    | 1    |               |

**Appendix A-6: Relevant Lanes for Shortfall Analysis**

The 2021 Service Contract covered many lanes, not all of which were actually used. The table below summarizes the number of containers BBY shipped via NVOCCs or freight forwarders on lanes covered by the 2021 Service Contract, as set forth in Appendix A-5.

| Port Discharge    | Port Load | Sum of 20GP | Sum of 40GP | Sum of 40HQ |
|-------------------|-----------|-------------|-------------|-------------|
| LOS ANGELES       | NINGBO    | 2           | 10          | 76          |
|                   | YANTIAN   | 0           | 0           | 84          |
| LOS ANGELES Total |           | 2           | 10          | 160         |
| New York          | NINGBO    | 1           | 7           | 42          |
|                   | QINGDAO   | 0           | 0           | 1           |
| New York Total    |           | 1           | 7           | 43          |
| SAVANNAH          | NINGBO    | 0           | 0           | 11          |
| SAVANNAH Total    |           | 0           | 0           | 11          |
| Grand Total       |           | 3           | 17          | 214         |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

**Appendix A-7: Calculation of But-For Freight Expense (2021)**

The table below calculates how much BBY would have paid if it had shipped each of the loads referenced in Appendices A-5 and A-6 via Evergreen at the freight rates specified in the 2021 Service Contract, instead of via high-priced NVOCCs.

| Port Discharge    | Port Load |  | Sum of<br>20GP |  | Sum of<br>40GP |  | Sum of<br>40HQ | Total     |
|-------------------|-----------|--|----------------|--|----------------|--|----------------|-----------|
| LOS ANGELES       | NINGBO    |  | 2              |  | 10             |  | 76             | \$239,762 |
|                   | YANTIAN   |  | 0              |  | 0              |  | 84             | \$229,908 |
| LOS ANGELES Total |           |  | 2              |  | 10             |  | 160            |           |
| New York          | NINGBO    |  | 1              |  | 7              |  | 42             | \$171,013 |
|                   | QINGDAO   |  | 0              |  | 0              |  | 1              | \$3,434   |
| New York Total    |           |  | 1              |  | 7              |  | 43             |           |
| SAVANNAH          | NINGBO    |  | 0              |  | 0              |  | 11             | \$37,774  |
| SAVANNAH Total    |           |  | 0              |  | 0              |  | 11             |           |
| Grand Total       |           |  | 3              |  | 17             |  | 214            | \$681,891 |

**Appendix A-8: Summary of Shortfall Damages Calculation (2021)**

The table below summarizes the impact of the data set forth in Appendices A-5 through A-7. As shown below, BBBY was forced to incur additional incremental expenses of \$4,349,444.80 a result of Evergreen's shortfall during the 2021 service contract year.

|                                                                                    |                       |
|------------------------------------------------------------------------------------|-----------------------|
| Evergreen service commitment (FEU):                                                | 750                   |
| Evergreen shortfall:                                                               | 259.90                |
| NVO Shipments on impacted Lanes (FEU):                                             | 259.25                |
| Cost of NVO freight on impacted lanes:                                             | \$5,020,458.00        |
| Excess Cost:                                                                       | \$4,338,567.00        |
| But-for cost if Evergreen had carried the NVO shipments at Service Contract rates: | \$681,891.00          |
| Adjustment factor (Shortfall FEUs/ NVO FEUs used in analysis)                      | 1.002507232           |
|                                                                                    |                       |
| <b>Excess cost to BBBY rising from Evergreen shortfall:</b>                        | <b>\$4,349,444.80</b> |

**PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED****Appendix B-1: Evergreen Ocean Freight Invoices (2020 Service Contract)**

The table below reflects Evergreen invoices for the shipment of the 133 containers undertaken by BBY during the 2020 service contract. BBY was charged \$489,274 in total.

| Invoice Number   | Carrier Total | 20gp | 40gp | 40hq | 45hq | Invoice Date | Port Load | Port Discharge | POL Date   | POD Date   |
|------------------|---------------|------|------|------|------|--------------|-----------|----------------|------------|------------|
| EGLV140100608006 |               |      |      | 2    |      | 4/12/2021    | QINGDAO   | Newark         | 4/4/2021   | 5/7/2021   |
| EGLV140100608031 |               |      |      | 1    |      | 4/12/2021    | QINGDAO   | Newark         | 4/4/2021   | 5/7/2021   |
| EGLV140100654164 |               | 1    |      |      |      | 4/12/2021    | QINGDAO   | Newark         | 4/4/2021   | 5/7/2021   |
| EGLV140100665913 |               |      |      |      | 1    | 4/12/2021    | QINGDAO   | LALB           | 4/9/2021   | 4/27/2021  |
| EGLV143073606375 |               |      |      | 2    | 1    | 10/18/2020   | NINGBO    | LALB           | 8/16/2020  | 9/5/2020   |
| EGLV143164458042 |               |      | 3    |      |      | 5/26/2021    | NINGBO    | LALB           | 4/29/2021  | 5/17/2021  |
| EGLV143164458051 |               |      |      | 1    |      | 5/26/2021    | NINGBO    | LALB           | 4/29/2021  | 5/17/2021  |
| EGLV149003656615 |               |      |      | 1    |      | 8/24/2020    | YANTIAN   | LALB           | 8/9/2020   | 8/23/2020  |
| EGLV149003656682 |               |      | 1    |      |      | 8/24/2020    | YANTIAN   | LALB           | 8/9/2020   | 8/23/2020  |
| EGLV149003785776 |               |      | 1    |      |      | 10/18/2020   | YANTIAN   | SAVANNAH       | 8/29/2020  | 10/6/2020  |
| EGLV149003839558 |               |      |      |      | 1    | 10/18/2020   | YANTIAN   | LALB           | 8/15/2020  | 8/30/2020  |
| EGLV149003839566 |               | 1    |      |      |      | 10/18/2020   | YANTIAN   | LALB           | 8/15/2020  | 8/30/2020  |
| EGLV149004355805 |               |      |      | 3    |      | 9/30/2020    | YANTIAN   | Newark         | 9/29/2020  | 10/24/2020 |
| EGLV149004356241 |               |      | 2    |      |      | 9/30/2020    | YANTIAN   | Newark         | 9/29/2020  | 10/24/2020 |
| EGLV149004429485 |               |      |      |      | 1    | 9/21/2020    | YANTIAN   | LALB           | 9/12/2020  | 9/27/2020  |
| EGLV149004828983 |               | 1    |      |      |      | 10/16/2020   | YANTIAN   | SAVANNAH       | 10/4/2020  | 11/10/2020 |
| EGLV149004865897 |               |      |      | 2    |      | 9/30/2020    | YANTIAN   | SAVANNAH       | 9/17/2020  | 10/12/2020 |
| EGLV149004919652 |               |      |      | 1    |      | 9/30/2020    | YANTIAN   | SAVANNAH       | 9/26/2020  | 11/1/2020  |
| EGLV149005021609 |               |      |      | 1    |      | 10/16/2020   | YANTIAN   | LALB           | 10/4/2020  | 10/20/2020 |
| EGLV149005125617 |               | 1    |      |      |      | 10/16/2020   | YANTIAN   | SAVANNAH       | 10/3/2020  | 11/1/2020  |
| EGLV149005125625 |               | 1    |      |      |      | 10/16/2020   | YANTIAN   | SAVANNAH       | 10/3/2020  | 11/1/2020  |
| EGLV149005140993 |               |      |      | 3    |      | 10/16/2020   | YANTIAN   | Newark         | 10/3/2020  | 11/4/2020  |
| EGLV149005141868 |               |      |      | 1    | 1    | 10/16/2020   | YANTIAN   | Newark         | 10/3/2020  | 11/4/2020  |
| EGLV149005142066 |               |      |      | 1    | 2    | 10/16/2020   | YANTIAN   | Newark         | 10/16/2020 | 11/13/2020 |
| EGLV149005212650 |               |      | 1    |      | 1    | 10/17/2020   | YANTIAN   | Newark         | 10/16/2020 | 11/13/2020 |

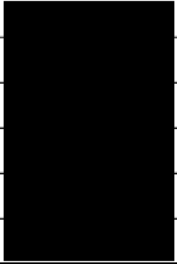
## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Invoice Number   | Carrier Total | 20gp | 40gp | 40hq | 45hq | Invoice Date | Port Load | Port Discharge | POL Date   | POD Date   |
|------------------|---------------|------|------|------|------|--------------|-----------|----------------|------------|------------|
| EGLV149005272709 |               |      |      |      | 1    | 11/19/2020   | YANTIAN   | LALB           | 10/18/2020 | 11/6/2020  |
| EGLV149005297884 |               |      | 1    |      |      | 10/17/2020   | YANTIAN   | Newark         | 10/16/2020 | 11/13/2020 |
| EGLV149005336707 |               |      |      | 1    |      | 10/17/2020   | YANTIAN   | Newark         | 10/16/2020 | 11/13/2020 |
| EGLV149005336731 |               |      | 1    |      |      | 10/17/2020   | YANTIAN   | SAVANNAH       | 10/16/2020 | 11/9/2020  |
| EGLV149005336821 |               |      | 1    |      |      | 10/17/2020   | YANTIAN   | Newark         | 10/16/2020 | 11/13/2020 |
| EGLV149005336839 |               |      |      | 2    |      | 10/17/2020   | YANTIAN   | Newark         | 10/16/2020 | 11/13/2020 |
| EGLV149005336880 |               |      |      | 1    | 1    | 10/17/2020   | YANTIAN   | SAVANNAH       | 10/16/2020 | 11/9/2020  |
| EGLV149005388570 |               |      | 3    |      |      | 12/6/2020    | YANTIAN   | Newark         | 10/22/2020 | 11/23/2020 |
| EGLV149005477386 |               |      |      |      | 1    | 11/17/2020   | YANTIAN   | LALB           | 10/24/2020 | 11/14/2020 |
| EGLV149005477475 |               |      | 1    |      | 1    | 12/4/2020    | YANTIAN   | LALB           | 11/14/2020 | 12/6/2020  |
| EGLV149005876485 |               |      |      | 1    |      | 12/4/2020    | YANTIAN   | LALB           | 11/21/2020 | 12/8/2020  |
| EGLV149005876621 |               |      |      |      | 1    | 11/17/2020   | YANTIAN   | LALB           | 11/7/2020  | 11/30/2020 |
| EGLV149006027996 |               |      | 1    |      |      | 11/17/2020   | YANTIAN   | Newark         | 11/1/2020  | 11/28/2020 |
| EGLV149006028372 |               |      |      |      | 1    | 11/17/2020   | YANTIAN   | SAVANNAH       | 11/13/2020 | 12/20/2020 |
| EGLV149006208109 |               | 1    |      | 1    |      | 11/17/2020   | YANTIAN   | SAVANNAH       | 11/13/2020 | 12/20/2020 |
| EGLV149006208125 |               |      |      | 1    |      | 11/17/2020   | YANTIAN   | SAVANNAH       | 11/13/2020 | 12/20/2020 |
| EGLV149006209261 |               |      |      | 1    |      | 11/17/2020   | YANTIAN   | SAVANNAH       | 11/13/2020 | 12/20/2020 |
| EGLV149006209270 |               | 1    |      |      |      | 11/17/2020   | YANTIAN   | SAVANNAH       | 11/13/2020 | 12/20/2020 |
| EGLV149006209288 |               |      | 2    |      |      | 11/17/2020   | YANTIAN   | SAVANNAH       | 11/13/2020 | 12/20/2020 |
| EGLV149006209369 |               |      |      | 1    |      | 11/17/2020   | YANTIAN   | SAVANNAH       | 11/13/2020 | 12/20/2020 |
| EGLV149006210464 |               |      |      |      | 1    | 11/17/2020   | YANTIAN   | Newark         | 11/13/2020 | 12/15/2020 |
| EGLV149006210472 |               |      |      |      | 3    | 11/17/2020   | YANTIAN   | Newark         | 11/13/2020 | 12/15/2020 |
| EGLV149006249069 |               | 1    |      |      |      | 12/5/2020    | YANTIAN   | SAVANNAH       | 11/28/2020 | 1/3/2021   |
| EGLV149006250385 |               |      |      |      | 1    | 12/5/2020    | YANTIAN   | SAVANNAH       | 11/28/2020 | 1/3/2021   |
| EGLV149006380483 |               |      |      |      | 3    | 11/18/2020   | YANTIAN   | Newark         | 11/13/2020 | 12/15/2020 |
| EGLV149006453294 |               |      |      |      | 1    | 12/5/2020    | YANTIAN   | LALB           | 11/21/2020 | 12/8/2020  |
| EGLV149006453537 |               |      |      |      | 1    | 12/5/2020    | YANTIAN   | LALB           | 11/21/2020 | 12/8/2020  |
| EGLV149006530531 |               |      |      |      | 1    | 12/5/2020    | YANTIAN   | Newark         | 11/25/2020 | 12/28/2020 |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Invoice Number   | Carrier Total | 20gp | 40gp | 40hq | 45hq | Invoice Date | Port Load | Port Discharge | POL Date   | POD Date   |
|------------------|---------------|------|------|------|------|--------------|-----------|----------------|------------|------------|
| EGLV149006643964 |               |      | 1    |      |      | 12/6/2020    | YANTIAN   | LALB           | 11/30/2020 | 12/17/2020 |
| EGLV149006644014 |               |      |      | 1    | 2    | 1/6/2021     | YANTIAN   | LALB           | 12/16/2020 | 1/6/2021   |
| EGLV149006644111 |               |      |      |      | 1    | 12/16/2020   | YANTIAN   | LALB           | 12/9/2020  | 12/27/2020 |
| EGLV149006644251 |               |      | 1    |      |      | 1/16/2021    | YANTIAN   | LALB           | 12/28/2020 | 1/21/2021  |
| EGLV149007349148 |               |      |      |      | 1    | 1/16/2021    | YANTIAN   | LALB           | 12/28/2020 | 1/21/2021  |
| EGLV149007349199 |               |      |      |      | 1    | 1/16/2021    | YANTIAN   | LALB           | 12/28/2020 | 1/21/2021  |
| EGLV149007349407 |               |      | 1    |      |      | 1/16/2021    | YANTIAN   | LALB           | 1/1/2021   | 1/25/2021  |
| EGLV149008098581 |               |      | 2    |      |      | 1/16/2021    | YANTIAN   | LALB           | 1/4/2021   | 1/31/2021  |
| EGLV149009062997 |               |      |      | 4    |      | 2/4/2021     | YANTIAN   | Newark         | 1/16/2021  | 2/25/2021  |
| EGLV149009063047 |               |      |      | 1    |      | 2/4/2021     | YANTIAN   | Newark         | 1/16/2021  | 2/25/2021  |
| EGLV149100196801 |               |      |      |      |      | 2/18/2021    | YANTIAN   | Newark         | 2/11/2021  | 3/16/2021  |
| EGLV149100196810 |               |      |      | 4    |      | 2/18/2021    | YANTIAN   | Newark         | 2/11/2021  | 3/16/2021  |
| EGLV149101305418 |               |      | 1    |      |      | 5/12/2021    | YANTIAN   | LALB           | 3/3/2021   | 4/2/2021   |
| EGLV149101306023 |               |      | 1    |      |      | 5/12/2021    | YANTIAN   | LALB           | 3/3/2021   | 4/2/2021   |
| EGLV149101405510 |               |      | 2    |      |      | 5/12/2021    | YANTIAN   | SAVANNAH       | 3/1/2021   | 4/9/2021   |
| EGLV149101424565 |               |      | 1    |      |      | 5/12/2021    | YANTIAN   | Newark         | 3/1/2021   | 4/1/2021   |
| EGLV149101424573 |               |      | 1    |      |      | 5/12/2021    | YANTIAN   | Newark         | 3/1/2021   | 4/1/2021   |
| EGLV149101424581 |               |      | 1    |      |      | 5/12/2021    | YANTIAN   | Newark         | 3/1/2021   | 4/1/2021   |
| EGLV149101424603 |               |      | 1    |      |      | 5/12/2021    | YANTIAN   | Newark         | 3/1/2021   | 4/1/2021   |
| EGLV149101425740 |               |      |      | 5    |      | 5/12/2021    | YANTIAN   | Newark         | 3/1/2021   | 4/1/2021   |
| EGLV149101425791 |               |      |      | 1    |      | 5/12/2021    | YANTIAN   | Newark         | 3/1/2021   | 4/1/2021   |
| EGLV149101425804 |               |      |      | 1    |      | 5/12/2021    | YANTIAN   | Newark         | 3/1/2021   | 4/1/2021   |
| EGLV149101425812 |               |      |      | 2    |      | 5/12/2021    | YANTIAN   | Newark         | 3/1/2021   | 4/1/2021   |
| EGLV149101503341 |               |      |      | 4    |      | 5/12/2021    | YANTIAN   | LALB           | 3/3/2021   | 4/2/2021   |
| EGLV149101534298 |               |      | 1    |      |      | 5/12/2021    | YANTIAN   | LALB           | 3/3/2021   | 4/2/2021   |
| EGLV149101534654 |               |      | 1    |      |      | 5/12/2021    | YANTIAN   | LALB           | 3/3/2021   | 4/2/2021   |
| EGLV149101534701 |               |      | 1    |      |      | 5/12/2021    | YANTIAN   | LALB           | 3/3/2021   | 4/2/2021   |
| EGLV149101534719 |               |      |      |      |      | 5/12/2021    | YANTIAN   | LALB           | 3/3/2021   | 4/2/2021   |

**PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED**

| Invoice Number   | Carrier Total                                                                     | 20gp | 40gp | 40hq | 45hq | Invoice Date | Port Load | Port Discharge | POL Date  | POD Date  |
|------------------|-----------------------------------------------------------------------------------|------|------|------|------|--------------|-----------|----------------|-----------|-----------|
| EGLV149101534760 |  |      | 2    |      |      | 3/18/2021    | YANTIAN   | LALB           | 3/3/2021  | 4/1/2021  |
| EGLV149101578317 |                                                                                   | 1    |      |      |      | 3/18/2021    | YANTIAN   | LALB           | 3/3/2021  | 4/1/2021  |
| EGLV149101654501 |                                                                                   |      |      |      | 4    | 4/12/2021    | YANTIAN   | SAVANNAH       | 4/15/2021 | 5/3/2021  |
| EGLV149102135877 |                                                                                   |      | 1    |      |      | 5/26/2021    | YANTIAN   | LALB           | 4/16/2021 | 5/10/2021 |
| EGLV149102135915 |                                                                                   |      | 2    |      |      | 5/26/2021    | YANTIAN   | LALB           | 4/16/2021 | 5/10/2021 |
| EGLV149102136423 |                                                                                   |      |      |      |      | 5/26/2021    | YANTIAN   | LALB           | 4/16/2021 | 5/10/2021 |

**Appendix B-2: Relevant Lanes for PSS Analysis**

The table below summarizes the number of containers BBY shipped via Evergreen under the 2020 Service Contract, as set forth in Appendix B-1.

| Row Labels         | Sum of 20gp | Sum of 40gp | Sum of 40hq | Sum of 45hq |
|--------------------|-------------|-------------|-------------|-------------|
| LALB               | 2           | 20          | 11          | 15          |
| Newark             | 1           | 13          | 32          | 12          |
| SAVANNAH           | 6           | 6           | 8           | 7           |
| <b>Grand Total</b> | <b>9</b>    | <b>39</b>   | <b>51</b>   | <b>34</b>   |

**PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED****Appendix B-3: Calculation of But-For Freight Expense (2020)**

The table below calculates how much BBY would have paid if it had shipped each of the loads referenced in Appendices B-1 and B-2 at the freight rates specified in the 2020 Service Contract.

| Row Labels         | 20 Rate | Sum of<br>20gp | 40 Rate | Sum of<br>40gp | 40H Rate | Sum of<br>40hq | 45 Rate | Sum of<br>45hq | Total               |
|--------------------|---------|----------------|---------|----------------|----------|----------------|---------|----------------|---------------------|
| LALB               |         | 2              |         | 20             |          | 11             |         | 15             | \$60,405.00         |
| Newark             |         | 1              |         | 13             |          | 32             |         | 12             | \$119,054.00        |
| SAVANNAH           |         | 6              |         | 6              |          | 8              |         | 7              | \$53,997.00         |
| <b>Grand Total</b> |         | <b>9</b>       |         | <b>39</b>      |          | <b>51</b>      |         | <b>34</b>      | <b>\$233,456.00</b> |

**Appendix B-4: Summary of PSS Damages Calculation (2020)**

The table below summarizes the impact of the data set forth in Appendices B-1 through B-3. As shown below, BBBY was forced to incur additional incremental expenses of \$255,818.00 as a result of Evergreen PSS charges during the 2020 service contract year.

| <b>Details (2020 contract year)</b>                                |                     |
|--------------------------------------------------------------------|---------------------|
| What BBBY should have paid had Evergreen followed contracted rates | \$233,456.00        |
| What BBBY actually paid to Evergreen                               | \$489,274.00        |
| <b>PSS Damages</b>                                                 | <b>\$255,818.00</b> |

**PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED****Appendix B-5: Evergreen Ocean Freight Invoices (2021 Service Contract)**

The table below reflects Evergreen invoices for the shipment of the 242 containers undertaken by BBY during the 2021 service contract. BBY was charged \$1,047,642.01 in total.

| Invoice Number   | Carrier Total | 20gp | 40gp | 40hq | Invoice Date | Port Load | Port Discharge | POL Date   | POD Date   |
|------------------|---------------|------|------|------|--------------|-----------|----------------|------------|------------|
| EGLV010101207287 |               |      |      | 4    | 8/5/2021     | HONG KONG | SAVANNAH       | 6/30/2021  | 7/26/2021  |
| EGLV140101698238 |               |      |      | 1    | 8/5/2021     | QINGDAO   | Newark         | 7/1/2021   | 8/14/2021  |
| EGLV140101698467 |               |      |      | 1    | 8/5/2021     | QINGDAO   | SAVANNAH       | 7/1/2021   | 8/5/2021   |
| EGLV140102293029 |               |      |      | 1    | 8/26/2021    | QINGDAO   | Newark         | 8/4/2021   | 9/11/2021  |
| EGLV140102293045 |               |      | 1    |      | 9/24/2021    | QINGDAO   | Newark         | 8/12/2021  | 9/24/2021  |
| EGLV140102397690 |               |      |      | 1    | 9/24/2021    | QINGDAO   | Newark         | 8/23/2021  | 10/7/2021  |
| EGLV140102520939 |               |      |      | 2    | 9/24/2021    | QINGDAO   | Newark         | 9/7/2021   | 10/17/2021 |
| EGLV140102710321 |               |      |      | 2    | 9/24/2021    | QINGDAO   | Newark         | 9/9/2021   | 10/16/2021 |
| EGLV140102710339 |               |      |      | 1    | 9/24/2021    | QINGDAO   | Newark         | 9/15/2021  | 10/15/2021 |
| EGLV140103667925 |               |      |      | 2    | 1/3/2022     | QINGDAO   | Newark         | 12/25/2021 | 1/25/2022  |
| EGLV140104184448 |               |      |      | 3    | 4/5/2022     | QINGDAO   | Newark         | 3/25/2022  | 4/27/2022  |
| EGLV142156132208 |               |      |      |      | 11/1/2021    | SHANGHAI  | Newark         | 10/11/2021 | 11/16/2021 |
| EGLV142156132283 |               |      | 2    |      | 11/1/2021    | SHANGHAI  | Newark         | 10/11/2021 | 11/16/2021 |
| EGLV149102719127 |               |      |      |      | 5/26/2021    | YANTIAN   | LALB           | 5/4/2021   | 5/25/2021  |
| EGLV149102719755 |               |      |      | 2    | 5/26/2021    | YANTIAN   | LALB           | 5/6/2021   | 5/31/2021  |
| EGLV149102719771 |               |      |      | 1    | 5/26/2021    | YANTIAN   | LALB           | 5/6/2021   | 5/31/2021  |
| EGLV149102719780 |               |      |      | 2    | 5/26/2021    | YANTIAN   | LALB           | 5/6/2021   | 5/31/2021  |
| EGLV149103903355 |               |      |      | 2    | 7/20/2021    | YANTIAN   | Newark         | 5/24/2021  | 6/27/2021  |
| EGLV149104513623 |               |      |      | 1    | 7/20/2021    | YANTIAN   | LALB           | 6/21/2021  | 7/14/2021  |
| EGLV149104514182 |               |      |      | 3    | 7/20/2021    | YANTIAN   | LALB           | 6/21/2021  | 7/14/2021  |
| EGLV149104514221 |               |      |      | 1    | 7/20/2021    | YANTIAN   | LALB           | 6/21/2021  | 7/14/2021  |
| EGLV149104936788 |               |      | 4    |      | 8/5/2021     | YANTIAN   | LALB           | 7/6/2021   | 8/9/2021   |
| EGLV149104936826 |               |      | 1    |      | 8/5/2021     | YANTIAN   | LALB           | 7/6/2021   | 8/9/2021   |
| EGLV149107828862 |               |      | 3    |      | 8/26/2021    | YANTIAN   | LALB           | 8/9/2021   | 8/26/2021  |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Invoice Number   | Carrier Total | 20gp | 40gp | 40hq | Invoice Date | Port Load | Port Discharge | POL Date  | POD Date   |
|------------------|---------------|------|------|------|--------------|-----------|----------------|-----------|------------|
| EGLV149107828897 |               |      |      |      | 8/26/2021    | YANTIAN   | LALB           | 8/9/2021  | 8/26/2021  |
| EGLV149107828901 |               |      |      |      | 8/26/2021    | YANTIAN   | LALB           | 8/9/2021  | 8/26/2021  |
| EGLV149107941774 |               |      |      | 1    | 8/26/2021    | YANTIAN   | Newark         | 8/2/2021  | 9/9/2021   |
| EGLV149107941782 |               |      |      | 1    | 8/26/2021    | YANTIAN   | Newark         | 8/2/2021  | 9/9/2021   |
| EGLV149107941804 |               |      |      | 1    | 8/26/2021    | YANTIAN   | Newark         | 8/7/2021  | 9/14/2021  |
| EGLV149107941812 |               |      |      | 1    | 8/26/2021    | YANTIAN   | Newark         | 8/7/2021  | 9/14/2021  |
| EGLV149107942177 |               |      | 1    |      | 9/24/2021    | YANTIAN   | SAVANNAH       | 8/25/2021 | 10/7/2021  |
| EGLV149107942185 |               |      |      | 1    | 9/24/2021    | YANTIAN   | SAVANNAH       | 8/7/2021  | 10/1/2021  |
| EGLV149108426571 |               |      | 1    |      | 8/26/2021    | YANTIAN   | LALB           | 8/15/2021 | 8/29/2021  |
| EGLV149108426580 |               |      |      |      | 8/26/2021    | YANTIAN   | LALB           | 8/15/2021 | 8/29/2021  |
| EGLV149108426610 |               |      |      | 2    | 8/26/2021    | YANTIAN   | LALB           | 8/15/2021 | 8/29/2021  |
| EGLV149108426628 |               |      |      | 1    | 9/24/2021    | YANTIAN   | LALB           | 9/1/2021  | 9/21/2021  |
| EGLV149108426661 |               |      |      | 1    | 8/26/2021    | YANTIAN   | LALB           | 8/15/2021 | 8/29/2021  |
| EGLV149108426741 |               |      | 1    |      | 8/26/2021    | YANTIAN   | LALB           | 8/15/2021 | 8/29/2021  |
| EGLV149108426750 |               |      | 1    |      | 8/26/2021    | YANTIAN   | LALB           | 8/15/2021 | 8/29/2021  |
| EGLV149108426768 |               |      | 1    |      | 8/26/2021    | YANTIAN   | LALB           | 8/15/2021 | 8/29/2021  |
| EGLV149108426822 |               |      | 2    |      | 8/26/2021    | YANTIAN   | LALB           | 8/15/2021 | 8/29/2021  |
| EGLV149108632350 |               |      |      | 1    | 9/24/2021    | YANTIAN   | Newark         | 8/17/2021 | 10/3/2021  |
| EGLV149108632384 |               |      | 1    |      | 9/24/2021    | YANTIAN   | Newark         | 8/17/2021 | 10/3/2021  |
| EGLV149109998081 |               |      |      | 2    | 9/24/2021    | YANTIAN   | SAVANNAH       | 8/29/2021 | 10/18/2021 |
| EGLV149109999443 |               |      |      |      | 9/24/2021    | YANTIAN   | SAVANNAH       | 9/19/2021 | 10/23/2021 |
| EGLV149110242725 |               |      |      | 2    | 8/26/2021    | YANTIAN   | LALB           | 8/27/2021 | 9/11/2021  |
| EGLV149110242768 |               |      |      |      | 8/26/2021    | YANTIAN   | LALB           | 8/27/2021 | 9/11/2021  |
| EGLV149111640449 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 10/7/2021 | 10/24/2021 |
| EGLV149111640457 |               |      |      | 2    | 4/5/2022     | YANTIAN   | LALB           | 10/7/2021 | 10/24/2021 |
| EGLV149111640473 |               |      |      | 3    | 4/5/2022     | YANTIAN   | LALB           | 10/7/2021 | 10/24/2021 |
| EGLV149111640503 |               |      |      | 3    | 4/5/2022     | YANTIAN   | LALB           | 10/7/2021 | 10/24/2021 |
| EGLV149111640511 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 10/7/2021 | 10/24/2021 |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Invoice Number   | Carrier Total | 20gp | 40gp | 40hq | Invoice Date | Port Load | Port Discharge | POL Date   | POD Date   |
|------------------|---------------|------|------|------|--------------|-----------|----------------|------------|------------|
| EGLV149111729601 |               |      |      | 3    | 11/1/2021    | YANTIAN   | Newark         | 10/15/2021 | 11/23/2021 |
| EGLV149111729636 |               |      |      | 1    | 11/1/2021    | YANTIAN   | Newark         | 10/15/2021 | 11/23/2021 |
| EGLV149111729644 |               |      |      | 1    | 11/1/2021    | YANTIAN   | Newark         | 10/15/2021 | 11/23/2021 |
| EGLV149111730545 |               |      | 2    |      | 11/1/2021    | YANTIAN   | Newark         | 10/15/2021 | 11/23/2021 |
| EGLV149111730561 |               |      | 1    |      | 11/1/2021    | YANTIAN   | Newark         | 10/15/2021 | 11/23/2021 |
| EGLV149111730570 |               |      |      |      | 11/1/2021    | YANTIAN   | Newark         | 10/15/2021 | 11/23/2021 |
| EGLV149112443442 |               |      |      | 1    | 11/1/2021    | YANTIAN   | LALB           | 10/17/2021 | 11/4/2021  |
| EGLV149112443451 |               |      | 1    |      | 11/1/2021    | YANTIAN   | LALB           | 10/17/2021 | 11/4/2021  |
| EGLV149112443469 |               | 1    |      |      | 11/1/2021    | YANTIAN   | LALB           | 10/17/2021 | 11/4/2021  |
| EGLV149112443477 |               |      |      | 1    | 11/1/2021    | YANTIAN   | LALB           | 10/17/2021 | 11/4/2021  |
| EGLV149112443485 |               |      |      |      | 11/1/2021    | YANTIAN   | LALB           | 10/17/2021 | 11/4/2021  |
| EGLV149112443515 |               |      |      |      | 11/1/2021    | YANTIAN   | LALB           | 10/17/2021 | 11/4/2021  |
| EGLV149112557367 |               |      |      | 1    | 11/1/2021    | YANTIAN   | Newark         | 10/21/2021 | 12/1/2021  |
| EGLV149112557375 |               |      |      | 2    | 11/1/2021    | YANTIAN   | Newark         | 10/21/2021 | 12/1/2021  |
| EGLV149112557391 |               |      | 1    |      | 11/1/2021    | YANTIAN   | Newark         | 10/21/2021 | 12/1/2021  |
| EGLV149112557405 |               |      | 1    |      | 11/1/2021    | YANTIAN   | Newark         | 10/21/2021 | 12/1/2021  |
| EGLV149112557928 |               |      |      | 1    | 11/1/2021    | YANTIAN   | SAVANNAH       | 10/23/2021 | 11/27/2021 |
| EGLV149112557936 |               |      |      | 1    | 11/1/2021    | YANTIAN   | SAVANNAH       | 10/23/2021 | 11/27/2021 |
| EGLV149112557944 |               |      |      | 3    | 11/1/2021    | YANTIAN   | SAVANNAH       | 10/23/2021 | 11/27/2021 |
| EGLV149112605230 |               |      | 6    |      | 11/1/2021    | YANTIAN   | Newark         | 10/19/2021 | 11/16/2021 |
| EGLV149112605299 |               | 1    |      |      | 11/1/2021    | YANTIAN   | Newark         | 11/3/2021  | 11/27/2021 |
| EGLV149112754405 |               |      |      | 5    | 11/1/2021    | YANTIAN   | LALB           | 10/27/2021 | 11/12/2021 |
| EGLV149113151313 |               |      | 1    |      | 11/19/2021   | YANTIAN   | LALB           | 11/13/2021 | 12/5/2021  |
| EGLV149113151321 |               |      | 1    |      | 11/19/2021   | YANTIAN   | LALB           | 11/13/2021 | 12/5/2021  |
| EGLV149113151330 |               |      |      |      | 11/19/2021   | YANTIAN   | LALB           | 11/13/2021 | 12/5/2021  |
| EGLV149113151364 |               | 1    |      |      | 11/19/2021   | YANTIAN   | LALB           | 11/13/2021 | 12/5/2021  |
| EGLV149113151372 |               |      | 1    |      | 11/19/2021   | YANTIAN   | LALB           | 11/13/2021 | 12/5/2021  |
| EGLV149113151437 |               |      |      | 1    | 11/19/2021   | YANTIAN   | LALB           | 11/13/2021 | 12/5/2021  |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Invoice Number   | Carrier Total | 20gp | 40gp | 40hq | Invoice Date | Port Load | Port Discharge | POL Date   | POD Date   |
|------------------|---------------|------|------|------|--------------|-----------|----------------|------------|------------|
| EGLV149113151445 |               |      |      | 3    | 11/19/2021   | YANTIAN   | LALB           | 11/13/2021 | 12/5/2021  |
| EGLV149113151470 |               |      |      | 1    | 11/19/2021   | YANTIAN   | LALB           | 11/13/2021 | 12/5/2021  |
| EGLV149113153766 |               |      |      | 3    | 11/19/2021   | YANTIAN   | Newark         | 11/4/2021  | 11/30/2021 |
| EGLV149113153774 |               |      |      | 1    | 12/17/2021   | YANTIAN   | Newark         | 11/24/2021 | 12/20/2021 |
| EGLV149113153804 |               |      |      | 1    | 11/19/2021   | YANTIAN   | Newark         | 11/4/2021  | 11/30/2021 |
| EGLV149113153812 |               |      |      | 2    | 11/19/2021   | YANTIAN   | Newark         | 11/4/2021  | 11/30/2021 |
| EGLV149113153821 |               |      |      | 3    | 11/19/2021   | YANTIAN   | Newark         | 11/4/2021  | 11/30/2021 |
| EGLV149113594592 |               |      |      | 1    | 11/19/2021   | YANTIAN   | SAVANNAH       | 11/16/2021 | 12/29/2021 |
| EGLV149113594614 |               |      |      | 1    | 11/19/2021   | YANTIAN   | SAVANNAH       | 11/16/2021 | 12/29/2021 |
| EGLV149113594622 |               |      |      | 1    | 11/19/2021   | YANTIAN   | SAVANNAH       | 11/16/2021 | 12/29/2021 |
| EGLV149113594649 |               |      |      | 2    | 11/19/2021   | YANTIAN   | SAVANNAH       | 11/16/2021 | 12/29/2021 |
| EGLV149113615735 |               |      | 1    |      | 11/19/2021   | YANTIAN   | LALB           | 11/16/2021 | 12/14/2021 |
| EGLV149113615743 |               |      |      |      | 11/19/2021   | YANTIAN   | LALB           | 11/16/2021 | 12/14/2021 |
| EGLV149113615808 |               |      |      | 1    | 11/19/2021   | YANTIAN   | LALB           | 11/16/2021 | 12/14/2021 |
| EGLV149113615816 |               |      |      | 2    | 11/19/2021   | YANTIAN   | LALB           | 11/16/2021 | 12/14/2021 |
| EGLV149113927613 |               | 1    |      |      | 11/19/2021   | YANTIAN   | LALB           | 11/13/2021 | 12/5/2021  |
| EGLV149114482844 |               |      |      | 1    | 12/17/2021   | YANTIAN   | SAVANNAH       | 11/30/2021 | 1/10/2022  |
| EGLV149114482879 |               |      |      | 1    | 12/17/2021   | YANTIAN   | SAVANNAH       | 11/30/2021 | 1/10/2022  |
| EGLV149114715423 |               |      | 1    |      | 12/17/2021   | YANTIAN   | Newark         | 12/8/2021  | 1/10/2022  |
| EGLV149114715431 |               |      | 1    |      | 12/17/2021   | YANTIAN   | Newark         | 12/8/2021  | 1/10/2022  |
| EGLV149114769159 |               |      |      |      | 1/3/2022     | YANTIAN   | LALB           | 12/22/2021 | 1/15/2022  |
| EGLV149114769167 |               | 1    |      |      | 1/3/2022     | YANTIAN   | LALB           | 12/22/2021 | 1/15/2022  |
| EGLV149114769175 |               |      | 1    |      | 1/3/2022     | YANTIAN   | LALB           | 12/22/2021 | 1/15/2022  |
| EGLV149114769183 |               |      | 4    |      | 1/3/2022     | YANTIAN   | LALB           | 12/22/2021 | 1/15/2022  |
| EGLV149114769230 |               |      |      | 1    | 1/3/2022     | YANTIAN   | LALB           | 12/22/2021 | 1/15/2022  |
| EGLV149114769248 |               |      |      | 1    | 1/3/2022     | YANTIAN   | LALB           | 12/22/2021 | 1/15/2022  |
| EGLV149115469574 |               |      |      | 7    | 1/3/2022     | YANTIAN   | LALB           | 12/28/2021 | 1/27/2022  |
| EGLV149115469647 |               |      |      | 2    | 1/3/2022     | YANTIAN   | LALB           | 12/28/2021 | 1/27/2022  |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Invoice Number   | Carrier Total | 20gp | 40gp | 40hq | Invoice Date | Port Load | Port Discharge | POL Date   | POD Date  |
|------------------|---------------|------|------|------|--------------|-----------|----------------|------------|-----------|
| EGLV149115469663 |               |      |      | 1    | 1/3/2022     | YANTIAN   | LALB           | 12/28/2021 | 1/27/2022 |
| EGLV149115620361 |               |      |      | 1    | 1/3/2022     | YANTIAN   | Newark         | 1/3/2022   | 1/29/2022 |
| EGLV149115620370 |               |      |      | 1    | 1/3/2022     | YANTIAN   | Newark         | 1/3/2022   | 1/29/2022 |
| EGLV149115968040 |               |      |      | 4    | 4/5/2022     | YANTIAN   | LALB           | 1/11/2022  | 2/11/2022 |
| EGLV149115968091 |               |      |      | 3    | 4/5/2022     | YANTIAN   | LALB           | 1/11/2022  | 2/11/2022 |
| EGLV149115968121 |               |      | 1    |      | 4/5/2022     | YANTIAN   | LALB           | 1/11/2022  | 2/11/2022 |
| EGLV149115968139 |               |      |      | 2    | 4/5/2022     | YANTIAN   | LALB           | 1/11/2022  | 2/11/2022 |
| EGLV149116649801 |               |      | 1    |      | 4/5/2022     | YANTIAN   | Newark         | 1/21/2022  | 3/14/2022 |
| EGLV149116649819 |               |      | 1    |      | 4/5/2022     | YANTIAN   | Newark         | 1/21/2022  | 3/14/2022 |
| EGLV149200344528 |               |      | 1    |      | 4/5/2022     | YANTIAN   | LALB           | 1/31/2022  | 3/12/2022 |
| EGLV149200344536 |               |      | 1    |      | 4/5/2022     | YANTIAN   | LALB           | 1/31/2022  | 3/12/2022 |
| EGLV149200344544 |               |      | 1    |      | 4/5/2022     | YANTIAN   | LALB           | 1/31/2022  | 3/12/2022 |
| EGLV149200663942 |               |      |      | 5    | 4/5/2022     | YANTIAN   | LALB           | 2/27/2022  | 3/14/2022 |
| EGLV149200663992 |               |      |      | 3    | 4/5/2022     | YANTIAN   | LALB           | 2/27/2022  | 3/14/2022 |
| EGLV149200664026 |               |      |      |      | 4/5/2022     | YANTIAN   | LALB           | 2/27/2022  | 3/14/2022 |
| EGLV149200826603 |               |      |      |      | 4/5/2022     | YANTIAN   | SAVANNAH       | 3/3/2022   | 4/14/2022 |
| EGLV149200826620 |               |      |      | 2    | 4/5/2022     | YANTIAN   | SAVANNAH       | 3/3/2022   | 4/14/2022 |
| EGLV149200826999 |               | 1    |      |      | 4/5/2022     | YANTIAN   | Newark         | 3/1/2022   | 4/20/2022 |
| EGLV149200887173 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 3/2/2022   | 3/20/2022 |
| EGLV149200887297 |               |      | 2    |      | 4/5/2022     | YANTIAN   | LALB           | 3/2/2022   | 3/20/2022 |
| EGLV149200887301 |               |      | 1    |      | 4/5/2022     | YANTIAN   | LALB           | 3/2/2022   | 3/20/2022 |
| EGLV149201014882 |               |      |      | 2    | 4/5/2022     | YANTIAN   | LALB           | 3/7/2022   | 3/27/2022 |
| EGLV149201014904 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 3/7/2022   | 3/27/2022 |
| EGLV149201014912 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 3/7/2022   | 3/27/2022 |
| EGLV149201014921 |               |      |      |      | 4/5/2022     | YANTIAN   | LALB           | 3/7/2022   | 3/27/2022 |
| EGLV149201014963 |               |      | 5    |      | 4/5/2022     | YANTIAN   | LALB           | 3/7/2022   | 3/27/2022 |
| EGLV149201164124 |               |      | 1    |      | 4/5/2022     | YANTIAN   | SAVANNAH       | 3/17/2022  | 4/15/2022 |
| EGLV149201164132 |               |      |      | 1    | 4/5/2022     | YANTIAN   | SAVANNAH       | 3/17/2022  | 4/15/2022 |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| Invoice Number   | Carrier Total | 20gp | 40gp | 40hq | Invoice Date | Port Load | Port Discharge | POL Date  | POD Date  |
|------------------|---------------|------|------|------|--------------|-----------|----------------|-----------|-----------|
| EGLV149201234662 |               | 1    |      |      | 4/5/2022     | YANTIAN   | Newark         | 3/1/2022  | 4/20/2022 |
| EGLV149201234670 |               | 1    |      |      | 4/5/2022     | YANTIAN   | Newark         | 3/1/2022  | 4/20/2022 |
| EGLV149201242249 |               |      |      | 1    | 4/5/2022     | YANTIAN   | SAVANNAH       | 4/3/2022  | 4/29/2022 |
| EGLV149201242257 |               | 1    |      |      | 4/5/2022     | YANTIAN   | SAVANNAH       | 4/3/2022  | 4/29/2022 |
| EGLV149201242265 |               |      |      | 1    | 4/5/2022     | YANTIAN   | SAVANNAH       | 4/3/2022  | 4/29/2022 |
| EGLV149201320665 |               | 1    |      |      | 4/5/2022     | YANTIAN   | LALB           | 3/24/2022 | 4/8/2022  |
| EGLV149201320673 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 3/24/2022 | 4/8/2022  |
| EGLV149201653354 |               |      |      |      | 4/5/2022     | YANTIAN   | LALB           | 3/27/2022 | 4/14/2022 |
| EGLV149201653362 |               |      |      |      | 4/5/2022     | YANTIAN   | LALB           | 3/27/2022 | 4/14/2022 |
| EGLV149201653435 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 3/27/2022 | 4/14/2022 |
| EGLV149201653443 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 3/27/2022 | 4/14/2022 |
| EGLV149201965828 |               |      |      |      | 4/5/2022     | YANTIAN   | LALB           | 4/4/2022  | 4/19/2022 |
| EGLV149201965861 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 4/4/2022  | 4/19/2022 |
| EGLV149201965879 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 4/4/2022  | 4/19/2022 |
| EGLV149201965887 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 4/4/2022  | 4/19/2022 |
| EGLV149201965895 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 4/4/2022  | 4/19/2022 |
| EGLV149201965909 |               |      |      | 2    | 4/5/2022     | YANTIAN   | LALB           | 4/4/2022  | 4/19/2022 |
| EGLV149201966085 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 4/4/2022  | 4/19/2022 |
| EGLV149201966093 |               |      |      | 1    | 4/5/2022     | YANTIAN   | LALB           | 4/4/2022  | 4/19/2022 |
| EGLV149202094146 |               |      |      | 3    | 6/15/2022    | YANTIAN   | LALB           | 4/16/2022 | 5/2/2022  |
| EGLV149202094154 |               |      |      | 2    | 6/15/2022    | YANTIAN   | LALB           | 4/16/2022 | 5/2/2022  |
| EGLV149202094197 |               |      |      | 1    | 6/15/2022    | YANTIAN   | LALB           | 4/16/2022 | 5/2/2022  |
| EGLV149202094201 |               |      |      | 1    | 6/15/2022    | YANTIAN   | LALB           | 4/16/2022 | 5/2/2022  |
| EGLV149202094219 |               |      |      | 1    | 6/15/2022    | YANTIAN   | LALB           | 4/16/2022 | 5/2/2022  |
| EGLV149202094227 |               |      |      | 2    | 6/15/2022    | YANTIAN   | LALB           | 4/16/2022 | 5/2/2022  |
| EGLV149202094243 |               |      |      | 2    | 6/15/2022    | YANTIAN   | LALB           | 4/16/2022 | 5/2/2022  |
| EGLV149202107728 |               |      |      | 1    | 6/15/2022    | YANTIAN   | Newark         | 4/13/2022 | 5/26/2022 |
| EGLV149202480542 |               |      |      |      | 6/15/2022    | YANTIAN   | LALB           | 4/22/2022 | 5/11/2022 |

**PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED**

| Invoice Number   | Carrier Total | 20gp | 40gp | 40hq | Invoice Date | Port Load | Port Discharge | POL Date  | POD Date  |
|------------------|---------------|------|------|------|--------------|-----------|----------------|-----------|-----------|
| EGLV149202480577 |               |      |      |      | 6/15/2022    | YANTIAN   | LALB           | 4/22/2022 | 5/11/2022 |
| EGLV149202480607 |               |      |      |      | 6/15/2022    | YANTIAN   | LALB           | 4/22/2022 | 5/11/2022 |
| EGLV149202480632 |               |      |      |      | 6/15/2022    | YANTIAN   | LALB           | 4/22/2022 | 5/11/2022 |
| EGLV149202567826 |               |      |      |      | 6/15/2022    | YANTIAN   | LALB           | 4/15/2022 | 5/25/2022 |
| EGLV149202567842 |               |      |      |      | 6/15/2022    | YANTIAN   | LALB           | 4/15/2022 | 5/25/2022 |
| EGLV149202785742 |               |      | 1    |      | 6/15/2022    | YANTIAN   | LALB           | 4/28/2022 | 5/18/2022 |
| EGLV149202785751 |               |      |      |      | 6/15/2022    | YANTIAN   | LALB           | 4/28/2022 | 5/18/2022 |
| EGLV149202785785 |               | 1    |      |      | 6/15/2022    | YANTIAN   | LALB           | 4/28/2022 | 5/18/2022 |
| EGLV149202785840 |               |      |      | 3    | 6/15/2022    | YANTIAN   | LALB           | 4/28/2022 | 5/18/2022 |
| EGLV149202785874 |               |      |      | 1    | 6/15/2022    | YANTIAN   | LALB           | 4/28/2022 | 5/18/2022 |
| EGLV149202785882 |               |      |      | 1    | 6/15/2022    | YANTIAN   | LALB           | 4/28/2022 | 5/18/2022 |
| EGLV149202785904 |               |      |      | 1    | 6/15/2022    | YANTIAN   | LALB           | 4/28/2022 | 5/18/2022 |
| EGLV149202785912 |               |      |      | 1    | 6/15/2022    | YANTIAN   | LALB           | 4/28/2022 | 5/18/2022 |
| EGLV149202785921 |               |      |      | 1    | 6/15/2022    | YANTIAN   | LALB           | 4/28/2022 | 5/18/2022 |
| EGLV149202785939 |               |      |      | 1    | 6/15/2022    | YANTIAN   | LALB           | 4/28/2022 | 5/18/2022 |

**Appendix B-6: Relevant Lanes for PSS Analysis**

The table below summarizes the number of containers BBY shipped via Evergreen under the 2021 Service Contract, as set forth in Appendix B-5.

| Row Labels         | Sum of 20gp | Sum of 40gp | Sum of 40hq |  |
|--------------------|-------------|-------------|-------------|--|
| LALB               | 6           | 37          | 107         |  |
| Newark             | 4           | 19          | 41          |  |
| SAVANNAH           | 1           | 2           | 25          |  |
| <b>Grand Total</b> | <b>11</b>   | <b>58</b>   | <b>173</b>  |  |

PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

**Appendix B-7: Calculation of But-For Freight Expense (2021)**

The table below calculates how much BBY would have paid if it had shipped each of the loads referenced in Appendices B-5 and B-6 at the freight rates specified in the 2021 Service Contract.

| Row Labels         | 20 Rate | Sum of 20gp | 40 Rate | Sum of 40gp | 40h Rate | Sum of x40hq | Total               |
|--------------------|---------|-------------|---------|-------------|----------|--------------|---------------------|
| LALB               |         | 6           |         | 37          |          | 107          | \$407,268.00        |
| Newark             |         | 4           |         | 19          |          | 41           | \$217,028.00        |
| SAVANNAH           |         | 1           |         | 2           |          | 25           | \$95,465.00         |
| <b>Grand Total</b> |         | <b>11</b>   |         | <b>58</b>   |          | <b>173</b>   | <b>\$719,761.00</b> |

**Appendix B-8: Summary of PSS Damages Calculation (2021)**

The table below summarizes the impact of the data set forth in Appendices B-5 through B-7. As shown below, BBY was forced to incur additional incremental expenses of \$327,881.01 as a result of Evergreen PSS charges during the 2021 service contract year.

| <b>Details (2021 contract year)</b>                               |                     |
|-------------------------------------------------------------------|---------------------|
| What BBY should have paid had Evergreen followed contracted rates | \$719,761.00        |
| What BBY actually paid to Evergreen                               | \$1,047,642.01      |
| <b>PSS Damages</b>                                                | <b>\$327,881.01</b> |

**PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED****Appendix C: Detention and Demurrage Charges**

The table below reflects payments made by BBBY for detention and demurrage charges charged by Evergreen for Evergreen shipments.

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA   | GATE OUT (OA) | DC                                   | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|-----------|---------------|--------------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| BEAU2143517      | EGLV149101534719 | 4/2/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 6/12/2022 | 8/22/2022    |                  |                       | 2090       | Detention    |
| EGHU1038786      | EGLV149102135877 | 5/10/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 5/15/2022 | 8/22/2022    |                  |                       | 330        | Detention    |
| DRYU9444288      | EGLV149102719780 | 5/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 5/9/2022  | 8/22/2022    |                  |                       | 165        | Detention    |
| BMOU5433290      | EGLV149104514221 | 7/14/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 7/19/2021 | 4/21/2022    | YTN              | LAX                   | 220        | Detention    |
| BMOU5433290      | EGLV149104514221 | 7/14/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 7/19/2021 | 4/21/2022    | YTN              | LAX                   | 1265       | Detention    |
| EISU1648702      | EGLV149104936826 | 8/9/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 8/19/2021 | 4/21/2022    | YTN              | LAX                   | 385        | Detention    |
| TLLU7692870      | EGLV140102293029 | 9/17/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 9/14/2021 | 11/1/2021    | TAO              | NYC                   | 1650       | Detention    |
| TLLU7692870      | EGLV140102293029 | 9/17/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 8/4/2021  | 11/15/2021   | TAO              | NYC                   | 110        | Detention    |
| EGHU9113335      | EGLV149107941804 | 9/20/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 8/7/2021  | 1/15/2021    | YTN              | NYC                   | 440        | Detention    |
| TCKU6123960      | EGLV149107941812 | 9/20/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 9/24/2021 | 10/15/2021   | YTN              | NYC                   | 495        | Detention    |
| EISU1635069      | EGLV149107828862 | 8/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/20/2021 | 4/21/2022    | YTN              | LAX                   | 715        | Detention    |
| EMCU1410590      | EGLV149107828862 | 8/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/13/2021 | 4/21/2022    | YTN              | LAX                   | 1100       | Detention    |
| EISU1639803      | EGLV149107828862 | 8/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/13/2021 | 4/21/2022    | YTN              | LAX                   | 990        | Detention    |
| EISU1639803      | EGLV149107828862 | 8/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/9/2021  | 12/21/2021   |                  |                       | 693        | Demurrage    |
| EMCU1410590      | EGLV149107828862 | 8/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/9/2021  | 12/21/2021   |                  |                       | 693        | Demurrage    |
| EISU1635069      | EGLV149107828862 | 8/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/9/2021  | 12/21/2021   |                  |                       | 2252.25    | Demurrage    |
| EISU1883430      | EGLV149107828897 | 8/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/9/2021  | 12/21/2021   |                  |                       | 909.56     | Demurrage    |
| TCLU8897238      | EGLV149107828897 | 8/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/10/2021 | 12/21/2021   |                  |                       | 1394.66    | Demurrage    |
| TRHU4472236      | EGLV149107828897 | 8/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/10/2021 | 12/21/2021   |                  |                       | 1394.66    | Demurrage    |
| EISU1723663      | EGLV149107828897 | 8/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/10/2021 | 12/21/2021   |                  |                       | 2122.31    | Demurrage    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA   | GATE OUT (OA) | DC                                   | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|-----------|---------------|--------------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| EISU8063638      | EGLV149107828901 | 8/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/10/2021 | 12/21/2021   |                  |                       | 2364.86    | Demurrage    |
| GAOU6414797      | EGLV149107828901 | 8/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/7/2021  | 12/21/2021   |                  |                       | 3092.51    | Demurrage    |
| EISU8036205      | EGLV149107828901 | 8/31/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/10/2021 | 12/21/2021   |                  |                       | 3092.51    | Demurrage    |
| EISU1735448      | EGLV140102293045 | 9/24/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 9/27/2021 | 11/1/2021    | TAO              | NYC                   | 825        | Detention    |
| EGHU8252064      | EGLV146101621072 | 9/20/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 8/14/2021 | 1/15/2021    | XMN              | NYC                   | 495        | Detention    |
| FSCU8554076      | EGLV146101621072 | 9/20/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 11/4/2021 | 1/15/2021    | XMN              | NYC                   | 440        | Detention    |
| EGHU8300250      | EGLV235101836550 | 9/18/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/29/2021 | 12/21/2021   |                  |                       | 3407.25    | Demurrage    |
| TCLU4316438      | EGLV149108426571 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/15/2021 | 12/21/2021   |                  |                       | 2607.41    | Demurrage    |
| EISU8021822      | EGLV149108426580 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/14/2021 | 12/21/2021   |                  |                       | 1394.66    | Demurrage    |
| EMCU8044300      | EGLV149108426580 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/14/2021 | 12/21/2021   |                  |                       | 1394.66    | Demurrage    |
| TGBU4565021      | EGLV149108426580 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/10/2021 | 12/21/2021   |                  |                       | 2607.41    | Demurrage    |
| TXGU5551719      | EGLV149108426580 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/14/2021 | 12/21/2021   |                  |                       | 1637.21    | Demurrage    |
| BSIU5009184      | EGLV149108426580 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/14/2021 | 12/21/2021   |                  |                       | 1637.21    | Demurrage    |
| TGBU6722808      | EGLV149108426610 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/14/2021 | 12/21/2021   |                  |                       | 1152.11    | Demurrage    |
| EGHU9409076      | EGLV149108426661 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/13/2021 | 12/21/2021   |                  |                       | 1940.4     | Demurrage    |
| TCLU4294447      | EGLV149108426741 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/15/2021 | 12/21/2021   |                  |                       | 1637.21    | Demurrage    |
| HMCU1029816      | EGLV149108426750 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/17/2021 | 4/21/2022    | YTN              | LAX                   | 385        | Detention    |
| HMCU1029816      | EGLV149108426750 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/15/2021 | 12/21/2021   |                  |                       | 385.88     | Demurrage    |
| BMOU3107313      | EGLV149108426768 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/20/2021 | 4/21/2022    | YTN              | LAX                   | 495        | Detention    |
| BMOU3107313      | EGLV149108426768 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/14/2021 | 12/21/2021   |                  |                       | 1097.25    | Demurrage    |
| EGHU1022959      | EGLV149108426822 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/14/2021 | 12/21/2021   |                  |                       | 3335.06    | Demurrage    |
| EISU1830867      | EGLV149108426822 | 9/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA       | 9/13/2021 | 12/21/2021   |                  |                       | 1940.4     | Demurrage    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                                    | SHIP DATE  | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID   | Charge Group |
|------------------|------------------|------------|---------------|---------------------------------------|------------|--------------|------------------|-----------------------|--------------|--------------|
| EGHU9575544      | EGLV149108632350 | 10/4/2021  |               | 682 - 682 FLORENCE, NJ                | 8/17/2021  | 11/15/2021   | YTN              | NYC                   | 770          | Detention    |
| TGHU5136002      | EGLV149108632384 | 10/4/2021  |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 10/6/2021  | 11/15/2021   | YTN              | NYC                   | 935          | Detention    |
| HMCU1069640      | EGLV149107942177 | 10/21/2021 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 10/29/2021 | 12/2/2022    |                  |                       | 605          | Detention    |
| TGBU9977823      | EGLV149109998081 | 11/3/2021  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/2/2021  | 2/3/2022     |                  |                       | 330          | Detention    |
| DRYU9901764      | EGLV149109998081 | 11/3/2021  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/2/2021  | 2/3/2022     |                  |                       | 385          | Detention    |
| TGBU9977823      | EGLV149109998081 | 11/3/2021  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/2/2021  | 1/14/2022    |                  |                       | 1650         | Detention    |
| DRYU9901764      | EGLV149109998081 | 11/3/2021  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/2/2021  | 1/14/2022    |                  |                       | 1650         | Detention    |
| EGHU3332059      | EGLV235101979920 | 10/11/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 6/14/2022  | 8/22/2022    |                  |                       | 2365         | Detention    |
| EGHU3332059      | EGLV235101979920 | 10/11/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 2/11/2022  | 2/14/2022    |                  |                       | 1989.9       | Demurrage    |
| EGHU3332059      | EGLV235101979920 | 10/11/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 2/9/2022   | 2/10/2022    |                  |                       | 1547.7       | Demurrage    |
| EGHU3332059      | EGLV235101979920 | 10/11/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 2/2/2022   | 2/3/2022     |                  |                       | 23160.2<br>2 | Demurrage    |
| EGHU3332059      | EGLV235101979920 | 10/11/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 2/24/2022  | 2/25/2022    |                  |                       | 663.3        | Demurrage    |
| EGHU3332059      | EGLV235101979920 | 10/11/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 2/18/2022  | 3/25/2022    |                  |                       | 335          | Demurrage    |
| EGHU3332059      | EGLV235101979920 | 10/11/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 2/18/2022  | 4/1/2022     |                  |                       | 242.5        | Demurrage    |
| EGHU3332059      | EGLV235101979920 | 10/11/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 2/18/2022  | 6/1/2022     | SGN              | LAX                   | 949          | Detention    |
| EITU1041559      | EGLV146101684911 | 10/8/2021  |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 10/21/2021 | 11/15/2021   | XMN              | NYC                   | 935          | Detention    |
| EGHU8514101      | EGLV140102520939 | 10/17/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 9/7/2021   | 12/1/2021    | TAO              | NYC                   | 1045         | Detention    |
| EGHU8515181      | EGLV140102520939 | 10/17/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 9/7/2021   | 12/1/2021    | TAO              | NYC                   | 935          | Detention    |
| SEGU5986543      | EGLV146101831085 | 10/21/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 10/26/2021 | 11/15/2021   | XMN              | NYC                   | 385          | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                                      | SHIP DATE  | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|-----------------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| EGHU9271726      | EGLV146101831093 | 10/21/2021 |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 9/14/2021  | 12/1/2021    | XMN              | NYC                   | 880        | Detention    |
| TLLU5421858      | EGLV146101831107 | 10/21/2021 |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 10/22/2021 | 11/15/2021   | XMN              | NYC                   | 550        | Detention    |
| EGHU9740232      | EGLV140102710339 | 10/30/2021 |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 11/3/2021  | 12/1/2021    | TAO              | NYC                   | 935        | Detention    |
| FCIU9301350      | EGLV146101685003 | 10/9/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 6/19/2022  | 8/22/2022    |                  |                       | 4785       | Detention    |
| FCIU9301350      | EGLV146101685003 | 10/9/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 2/10/2022  | 2/14/2022    |                  |                       | 221.1      | Demurrage    |
| FCIU9301350      | EGLV146101685003 | 10/9/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 2/2/2022   | 2/3/2022     |                  |                       | 22939.12   | Demurrage    |
| FCIU9301350      | EGLV146101685003 | 10/9/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 2/9/2022   | 2/10/2022    |                  |                       | 221.1      | Demurrage    |
| FCIU9301350      | EGLV146101685003 | 10/9/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 3/11/2022  | 3/14/2022    |                  |                       | 770.12     | Demurrage    |
| FCIU9301350      | EGLV146101685003 | 10/9/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 3/15/2022  | 3/17/2022    |                  |                       | 921.62     | Demurrage    |
| OCGU8059054      | EGLV146101685003 | 10/9/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/29/2022  | 4/15/2022    | XMN              | LAX                   | 335        | Demurrage    |
| FCIU9301350      | EGLV146101685003 | 10/9/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 2/8/2022   | 2/23/2022    |                  |                       | 3401       | Demurrage    |
| OCGU8059054      | EGLV146101685003 | 10/9/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/29/2022  | 5/3/2022     | XMN              | LAX                   | 528        | Detention    |
| FCIU9301350      | EGLV146101685003 | 10/9/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 2/8/2022   | 6/3/2022     | XMN              | LAX                   | 462        | Detention    |
| OCGU8059054      | EGLV146101685003 | 10/9/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/29/2022  | 6/1/2022     | XMN              | LAX                   | 966        | Detention    |
| EMCU5532826      | EGLV236100396708 | 11/13/2021 |               | 666 - 666 WORLD DISTRIBUTION SERVICES   | 12/6/2021  | 1/14/2022    |                  |                       | 10300      | Detention    |
| EGSU5016048      | EGLV236100396708 | 11/13/2021 |               | 666 - 666 WORLD DISTRIBUTION SERVICES   | 11/26/2021 | 1/4/2022     |                  |                       | 7500       | Detention    |
| EMCU5348974      | EGLV236100396708 | 11/13/2021 |               | 666 - 666 WORLD DISTRIBUTION SERVICES   | 11/24/2021 | 1/4/2022     |                  |                       | 10300      | Detention    |
| EMCU5348974      | EGLV236100396708 | 11/13/2021 |               | 666 - 666 WORLD DISTRIBUTION SERVICES   | 11/24/2021 | 2/3/2022     |                  |                       | 6300       | Detention    |
| EMCU5532826      | EGLV236100396708 | 11/13/2021 |               | 666 - 666 WORLD DISTRIBUTION SERVICES   | 12/6/2021  | 1/14/2022    |                  |                       | 1400       | Detention    |
| EMCU5311492      | EGLV236100443781 | 11/1/2021  |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 12/2/2021  | 10/4/2022    | HPH              | NYC                   | 7150       | Detention    |

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|------------------|------------------|------------|---------------|---------------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| FCIU4459019      | EGLV149109999443 | 11/8/2021  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/6/2021  | 2/3/2022     |                  |                       | 1650       | Detention    |
| DRYU9801580      | EGLV149109999443 | 11/8/2021  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/3/2021  | 2/3/2022     |                  |                       | 275        | Detention    |
| FCIU4459019      | EGLV149109999443 | 11/8/2021  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/6/2021  | 2/16/2022    |                  |                       | 1595       | Detention    |
| FCIU4459019      | EGLV149109999443 | 11/8/2021  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/6/2021  | 4/1/2022     |                  |                       | 80         | Detention    |
| FCIU4459019      | EGLV149109999443 | 11/8/2021  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/6/2021  | 4/1/2022     |                  |                       | 220        | Detention    |
| FCIU4459019      | EGLV149109999443 | 11/8/2021  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/6/2021  | 4/1/2022     |                  |                       | 1650       | Detention    |
| FCIU4459019      | EGLV149109999443 | 11/8/2021  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/6/2021  | 4/1/2022     |                  |                       | 600        | Detention    |
| DRYU9801580      | EGLV149109999443 | 11/8/2021  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/3/2021  | 1/14/2022    |                  |                       | 1650       | Detention    |
| EITU1017906      | EGLV235102039874 | 11/8/2021  |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/7/2021  | 2/7/2022     |                  |                       | 1694       | Demurrage    |
| IMTU1100309      | EGLV081100331501 | 11/22/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 2/11/2022  | 4/15/2022    | SUB              | NYC                   | 1210       | Detention    |
| IMTU1100309      | EGLV081100331501 | 11/22/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 1/11/2022  | 4/1/2022     |                  |                       | 1650       | Detention    |
| IMTU1100309      | EGLV081100331501 | 11/22/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 2/11/2022  | 2/14/2022    |                  |                       | 31156      | Demurrage    |
| EGHU8311212      | EGLV149111640449 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 1/17/2022  | 4/21/2022    | YTN              | LAX                   | 55         | Detention    |
| EGHU8311212      | EGLV149111640449 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 11/18/2021 | 2/8/2022     |                  |                       | 13860      | Demurrage    |
| EITU1406765      | EGLV149111640457 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 1/17/2022  | 4/21/2022    | YTN              | LAX                   | 1100       | Detention    |
| GCXU5324432      | EGLV149111640457 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 6/5/2022   | 8/22/2022    |                  |                       | 935        | Detention    |
| GCXU5324432      | EGLV149111640457 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 11/15/2021 | 2/8/2022     |                  |                       | 15015      | Demurrage    |
| EITU1406765      | EGLV149111640457 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 11/8/2021  | 2/8/2022     |                  |                       | 16170      | Demurrage    |
| GAOU6150272      | EGLV149111640473 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 6/17/2022  | 8/22/2022    |                  |                       | 3300       | Detention    |

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|------------------|------------------|------------|---------------|--------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| DFSU6941152      | EGLV149111640473 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 10/7/2021  | 10/6/2022    |                  |                       | 3300       | Detention    |
| EITU1601139      | EGLV149111640473 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 11/9/2021  | 2/8/2022     |                  |                       | 16401      | Demurrage    |
| DFSU6941152      | EGLV149111640473 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 11/10/2021 | 2/8/2022     |                  |                       | 15939      | Demurrage    |
| GAOU6150272      | EGLV149111640473 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 11/11/2021 | 2/8/2022     |                  |                       | 15708      | Demurrage    |
| DRYU9549355      | EGLV149111640503 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 1/17/2022  | 4/21/2022    | YTN              | LAX                   | 1155       | Detention    |
| TCNU2128193      | EGLV149111640503 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 6/13/2022  | 8/22/2022    |                  |                       | 2200       | Detention    |
| BEAU4406926      | EGLV149111640503 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 10/7/2021  | 10/6/2022    |                  |                       | 2200       | Detention    |
| BEAU4406926      | EGLV149111640503 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 11/10/2021 | 2/8/2022     |                  |                       | 15939      | Demurrage    |
| TCNU2128193      | EGLV149111640503 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 11/10/2021 | 2/8/2022     |                  |                       | 15939      | Demurrage    |
| DRYU9549355      | EGLV149111640503 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 11/10/2021 | 2/8/2022     |                  |                       | 14553      | Demurrage    |
| EGHU9154463      | EGLV149111640511 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 1/17/2022  | 4/21/2022    | YTN              | LAX                   | 110        | Detention    |
| EGHU9154463      | EGLV149111640511 | 10/24/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 11/16/2021 | 2/17/2022    |                  |                       | 14322      | Demurrage    |
| MAGU5408319      | EGLV235102064712 | 11/17/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 12/27/2021 | 4/21/2022    | SGN              | LAX                   | 1155       | Detention    |
| MAGU5408319      | EGLV235102064712 | 11/17/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 6/20/2022  | 8/22/2022    |                  |                       | 6655       | Detention    |
| MAGU540831       | EGLV235102064712 | 11/17/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 12/27/2021 | 7/3/2022     |                  |                       | 567        | Detention    |
| MAGU540831       | EGLV235102064712 | 11/17/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 12/27/2021 | 7/3/2022     |                  |                       | 525        | Detention    |
| MAGU540831       | EGLV235102064712 | 11/17/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 12/27/2021 | 7/3/2022     |                  |                       | 168        | Detention    |
| MAGU540831       | EGLV235102064712 | 11/17/2021 |               | 680 - 680 SANTA FE SPRINGS, CA | 12/27/2021 | 7/3/2022     |                  |                       | 525        | Detention    |

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| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                                   | SHIP DATE  | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|--------------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| MAGU540831       | EGLV235102064712 | 11/17/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 12/27/2021 | 7/3/2022     |                  |                       | 588        | Detention    |
| MAGU5408319      | EGLV235102064712 | 11/17/2021 |               | 680 - 680 SANTA FE SPRINGS, CA       | 11/26/2021 | 1/19/2022    |                  |                       | 7099.4     | Demurrage    |
| TXGU6564578      | EGLV142156132208 | 11/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 12/16/2021 | 1/14/2022    | SHA              | NYC                   | 880        | Detention    |
| HMCU1002754      | EGLV142156132208 | 11/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 12/16/2021 | 1/14/2022    | SHA              | NYC                   | 1045       | Detention    |
| EISU1656816      | EGLV142156132208 | 11/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 12/16/2021 | 1/14/2022    | SHA              | NYC                   | 825        | Detention    |
| TXGU6564562      | EGLV142156132208 | 11/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 11/23/2021 | 12/16/2021   | SHA              | NYC                   | 385        | Detention    |
| TXGU6561310      | EGLV142156132208 | 11/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 11/23/2021 | 12/16/2021   | SHA              | NYC                   | 385        | Detention    |
| EISU1848439      | EGLV142156132283 | 11/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 12/16/2021 | 1/14/2022    | SHA              | NYC                   | 990        | Detention    |
| EISU1695469      | EGLV142156132283 | 11/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 12/16/2021 | 2/1/2022     | SHA              | NYC                   | 1100       | Detention    |
| EGHU9734190      | EGLV149111729601 | 11/23/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 8/17/2021  | 12/16/2021   | YAT              | NYC                   | 165        | Detention    |
| MAGU5389435      | EGLV149111729601 | 11/23/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 10/15/2021 | 12/16/2021   | YAT              | NYC                   | 275        | Detention    |
| EGHU9227678      | EGLV149111729601 | 11/23/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 10/15/2021 | 1/4/2022     | YAT              | NYC                   | 825        | Detention    |
| EITU9204380      | EGLV149111729636 | 11/23/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 11/26/2021 | 10/4/2022    | YAT              | NYC                   | 880        | Detention    |
| TRHU6285018      | EGLV149111729644 | 11/23/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 10/15/2021 | 1/4/2022     | YAT              | NYC                   | 935        | Detention    |
| EISU1893058      | EGLV149111730545 | 11/23/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 11/26/2021 | 12/16/2021   | YAT              | NYC                   | 385        | Detention    |
| HMCU1099069      | EGLV149111730545 | 11/23/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 11/27/2021 | 1/14/2022    | YAT              | NYC                   | 1595       | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                                      | SHIP DATE  | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|-----------------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| EISU1751330      | EGLV149111730561 | 11/23/2021 |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 11/27/2021 | 10/4/2022    | YAT              | NYC                   | 825        | Detention    |
| OCCU2020395      | EGLV149111730570 | 11/23/2021 |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 10/15/2021 | 12/16/2021   | YAT              | NYC                   | 550        | Detention    |
| EISU1815230      | EGLV149111730570 | 11/23/2021 |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 10/15/2021 | 12/16/2021   | YAT              | NYC                   | 385        | Detention    |
| TCNU4506076      | EGLV149112443442 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/14/2021 | 4/21/2022    | YAT              | LAX                   | 495        | Detention    |
| TCNU4506076      | EGLV149112443442 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/14/2021 | 4/21/2022    | YAT              | LAX                   | 1210       | Detention    |
| TCNU4506076      | EGLV149112443442 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/14/2021 | 1/3/2022     |                  |                       | 4840       | Demurrage    |
| EMCU1429131      | EGLV149112443451 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/14/2021 | 4/21/2022    | YAT              | LAX                   | 55         | Detention    |
| EMCU1429131      | EGLV149112443451 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/14/2021 | 3/1/2022     |                  |                       | 5082       | Demurrage    |
| TEMU3921719      | EGLV149112443469 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/3/2022   | 4/21/2022    | YAT              | LAX                   | 935        | Detention    |
| TEMU3921719      | EGLV149112443469 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/3/2022   | 3/1/2022     |                  |                       | 9922       | Demurrage    |
| HMCU9027229      | EGLV149112443477 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/16/2021 | 4/21/2022    | YAT              | LAX                   | 330        | Detention    |
| HMCU9027229      | EGLV149112443477 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/17/2021 | 3/1/2022     |                  |                       | 6594.5     | Demurrage    |
| EMCU1432876      | EGLV149112443485 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/13/2021 | 4/21/2022    | YAT              | LAX                   | 110        | Detention    |
| EMCU1337890      | EGLV149112443485 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/14/2021 | 4/21/2022    | YAT              | LAX                   | 55         | Detention    |
| EGSU9195759      | EGLV149112443485 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/15/2021 | 4/21/2022    | YAT              | LAX                   | 825        | Detention    |
| IMTU1097170      | EGLV149112443485 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/13/2021 | 4/21/2022    | YAT              | LAX                   | 165        | Detention    |
| EMCU1337890      | EGLV149112443485 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/14/2021 | 3/1/2022     |                  |                       | 6050       | Demurrage    |
| IMTU1097170      | EGLV149112443485 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/13/2021 | 3/1/2022     |                  |                       | 4840       | Demurrage    |
| EGSU9195759      | EGLV149112443485 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/15/2021 | 3/1/2022     |                  |                       | 5337       | Demurrage    |
| EMCU1432876      | EGLV149112443485 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/13/2021 | 3/1/2022     |                  |                       | 4598       | Demurrage    |
| EGHU1044114      | EGLV149112443515 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/13/2021 | 4/21/2022    | YAT              | LAX                   | 220        | Detention    |
| EITU1719230      | EGLV149112443515 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/16/2021 | 3/1/2022     |                  |                       | 5566       | Demurrage    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                                    | SHIP DATE  | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|---------------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| EGHU1044114      | EGLV149112443515 | 11/4/2021  |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/13/2021 | 3/1/2022     |                  |                       | 4840       | Demurrage    |
| DRYU4159170      | EGLV149112605230 | 11/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 11/23/2021 | 12/16/2021   | YAT              | NYC                   | 220        | Detention    |
| HMCU1094534      | EGLV149112605230 | 11/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 11/23/2021 | 12/16/2021   | YAT              | NYC                   | 220        | Detention    |
| EGHU1029450      | EGLV149112605230 | 11/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 11/23/2021 | 12/16/2021   | YAT              | NYC                   | 275        | Detention    |
| EISU1881479      | EGLV149112605230 | 11/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 11/23/2021 | 12/16/2021   | YAT              | NYC                   | 220        | Detention    |
| EISU1746479      | EGLV149112605230 | 11/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 11/23/2021 | 12/16/2021   | YAT              | NYC                   | 220        | Detention    |
| HMCU1055991      | EGLV149112605230 | 11/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 11/23/2021 | 12/16/2021   | YAT              | NYC                   | 220        | Detention    |
| TGBU5944713      | EGLV149112557367 | 12/1/2021  |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 12/6/2021  | 1/14/2022    | YAT              | NYC                   | 1155       | Detention    |
| EGSU9085134      | EGLV149112557375 | 12/1/2021  |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 12/2/2021  | 10/4/2022    | YAT              | NYC                   | 990        | Detention    |
| EMCU8380753      | EGLV149112557375 | 12/1/2021  |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 12/6/2021  | 10/4/2022    | YAT              | NYC                   | 110        | Detention    |
| EGHU1046652      | EGLV149112557391 | 12/1/2021  |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 10/21/2021 | 1/4/2022     | YAT              | NYC                   | 550        | Detention    |
| HMCU1010220      | EGLV149112557405 | 12/1/2021  |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 12/7/2021  | 10/4/2022    | YAT              | NYC                   | 330        | Detention    |
| EGHU8262566      | EGLV149112557928 | 11/27/2021 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/3/2021  | 2/3/2022     |                  |                       | 715        | Detention    |
| EGHU8262566      | EGLV149112557928 | 11/27/2021 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/3/2021  | 1/14/2022    |                  |                       | 1650       | Detention    |
| EMCU8236052      | EGLV149112557936 | 11/27/2021 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/3/2021  | 1/14/2022    |                  |                       | 1650       | Detention    |
| FCIU9251820      | EGLV149112557944 | 11/27/2021 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 2/4/2022   | 3/2/2022     |                  |                       | 165        | Detention    |
| TEMU6175172      | EGLV149112557944 | 11/27/2021 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/4/2021  | 2/3/2022     |                  |                       | 330        | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                                    | SHIP DATE  | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|---------------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| TEMU6175172      | EGLV149112557944 | 11/27/2021 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 12/4/2021  | 1/14/2022    |                  |                       | 1650       | Detention    |
| EGSU9129470      | EGLV149112557944 | 11/27/2021 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 2/18/2022  | 2/18/2022    |                  |                       | 23014.5    | Demurrage    |
| EITU1964047      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/8/2021  | 4/21/2022    | YAT              | LAX                   | 880        | Detention    |
| TCNU3150801      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/2/2021  | 4/21/2022    | YAT              | LAX                   | 1265       | Detention    |
| TCNU3741949      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/6/2021  | 4/21/2022    | YAT              | LAX                   | 935        | Detention    |
| TEMU8379262      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/16/2021 | 4/21/2022    | YAT              | LAX                   | 1320       | Detention    |
| TCNU3150801      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/2/2021  | 4/21/2022    | YAT              | LAX                   | 1155       | Detention    |
| TEMU8379262      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/16/2021 | 4/21/2022    | YAT              | LAX                   | 1320       | Detention    |
| BEAU5165850      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/16/2021 | 4/21/2022    | YAT              | LAX                   | 1320       | Detention    |
| BEAU5165850      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/16/2021 | 4/21/2022    | YAT              | LAX                   | 1320       | Detention    |
| TEMU8379262      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 6/18/2022  | 8/22/2022    |                  |                       | 3905       | Detention    |
| BEAU5165850      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 10/27/2021 | 10/6/2022    |                  |                       | 3905       | Detention    |
| EITU1964047      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/8/2021  | 3/1/2022     |                  |                       | 1907       | Demurrage    |
| TCNU3150801      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/2/2021  | 2/25/2022    |                  |                       | 423.5      | Demurrage    |
| TCNU3741949      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/6/2021  | 3/1/2022     |                  |                       | 968        | Demurrage    |
| TCNU3150801      | EGLV149112754405 | 11/12/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/2/2021  | 3/8/2022     |                  |                       | 528        | Detention    |
| EISU9386527      | EGLV146102314076 | 12/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 2/11/2022  | 4/15/2022    |                  |                       | 495        | Detention    |
| EISU9386527      | EGLV146102314076 | 12/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 1/11/2022  | 4/1/2022     | XMN              | NYC                   | 1650       | Detention    |
| EISU9386527      | EGLV146102314076 | 12/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 2/10/2022  | 2/10/2022    |                  |                       | 20543.2    | Demurrage    |
| EMCU9563893      | EGLV146102314131 | 12/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 1/11/2022  | 4/1/2022     | XMN              | NYC                   | 1650       | Detention    |
| EMCU9563893      | EGLV146102314131 | 12/16/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 6/26/2022  | 8/22/2022    |                  |                       | 1705       | Detention    |

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| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                                      | SHIP DATE  | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|-----------------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| EMCU9563893      | EGLV146102314131 | 12/16/2021 |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 2/10/2022  | 2/10/2022    |                  |                       | 20543.2    | Demurrage    |
| EITU1300069      | EGLV146102314149 | 12/16/2021 |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 2/10/2022  | 4/15/2022    |                  |                       | 1155       | Detention    |
| EITU1300069      | EGLV146102314149 | 12/16/2021 |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 2/10/2022  | 4/1/2022     | XMN              | NYC                   | 1650       | Detention    |
| EITU1300069      | EGLV146102314149 | 12/16/2021 |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 6/22/2022  | 8/22/2022    |                  |                       | 660        | Detention    |
| EITU1300069      | EGLV146102314149 | 12/16/2021 |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 2/10/2022  | 2/10/2022    |                  |                       | 20543.2    | Demurrage    |
| TGBU4274999      | EGLV082100309296 | 12/16/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/6/2022   | 4/21/2022    |                  |                       | 1155       | Detention    |
| TLLU7620550      | EGLV082100309296 | 12/16/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/3/2022   | 4/21/2022    |                  |                       | 935        | Detention    |
| TGBU4274999      | EGLV082100309296 | 12/16/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/4/2022   | 3/22/2022    |                  |                       | 462        | Detention    |
| EGHU9462717      | EGLV082100309326 | 12/16/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/30/2021 | 4/21/2022    |                  |                       | 550        | Detention    |
| EITU1317009      | EGLV082100309326 | 12/16/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/31/2021 | 4/21/2022    |                  |                       | 440        | Detention    |
| EGHU3437949      | EGLV149112605299 | 1/4/2022   |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 11/4/2021  | 2/1/2022     | YAT              | NYC                   | 605        | Detention    |
| TCLU7920035      | EGLV149113153766 | 1/4/2022   |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 8/7/2021   | 2/1/2022     | YAT              | NYC                   | 440        | Detention    |
| BEAU4379564      | EGLV149113153766 | 1/4/2022   |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 11/4/2021  | 2/1/2022     | YAT              | NYC                   | 385        | Detention    |
| CAAU6001322      | EGLV149113153766 | 1/4/2022   |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 11/4/2021  | 2/1/2022     | YAT              | NYC                   | 440        | Detention    |
| EGHU9421600      | EGLV149113153804 | 1/4/2022   |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 11/4/2021  | 2/1/2022     | YAT              | NYC                   | 495        | Detention    |
| EITU1306766      | EGLV149113153812 | 1/4/2022   |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 1/11/2022  | 3/1/2022     | YAT              | NYC                   | 495        | Detention    |
| EITU1306766      | EGLV149113153812 | 1/4/2022   |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 1/11/2022  | 3/1/2022     | YAT              | NYC                   | 1650       | Detention    |
| FCIU7539714      | EGLV149113153812 | 1/4/2022   |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 12/16/2021 | 2/1/2022     | YAT              | NYC                   | 660        | Detention    |

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| CONTAINER NUMBER | BL NUMBER REF    | POD ATA   | GATE OUT (OA) | DC                                      | SHIP DATE  | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|-----------|---------------|-----------------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| TCNU6095230      | EGLV149113153821 | 1/4/2022  |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 11/4/2021  | 2/1/2022     | YAT              | NYC                   | 330        | Detention    |
| BEAU6310649      | EGLV149113153821 | 1/4/2022  |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 11/4/2021  | 2/1/2022     | YAT              | NYC                   | 385        | Detention    |
| TGBU6520999      | EGLV149113153821 | 1/4/2022  |               | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 11/24/2021 | 2/1/2022     | YAT              | NYC                   | 385        | Detention    |
| EMCU1362589      | EGLV149113151313 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/11/2022  | 4/21/2022    | YAT              | LAX                   | 275        | Detention    |
| EISU8245680      | EGLV149113151330 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/28/2021 | 4/21/2022    | YAT              | LAX                   | 770        | Detention    |
| BMOU5304306      | EGLV149113151330 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/30/2021 | 4/21/2022    | YAT              | LAX                   | 715        | Detention    |
| EGHU9011565      | EGLV149113151330 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/29/2021 | 4/21/2022    | YAT              | LAX                   | 770        | Detention    |
| EITU1390144      | EGLV149113151330 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/28/2021 | 4/21/2022    | YAT              | LAX                   | 825        | Detention    |
| EGHU1053796      | EGLV149113151330 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/4/2022   | 4/21/2022    | YAT              | LAX                   | 605        | Detention    |
| BEAU2137983      | EGLV149113151364 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/21/2021 | 2/8/2022     |                  |                       | 6237       | Demurrage    |
| HMCU1006261      | EGLV149113151372 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/11/2022  | 4/21/2022    | YAT              | LAX                   | 55         | Detention    |
| HMCU1006261      | EGLV149113151372 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/17/2021 | 2/8/2022     |                  |                       | 5544       | Demurrage    |
| TCKU6127858      | EGLV149113151437 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/10/2022  | 4/21/2022    | YAT              | LAX                   | 110        | Detention    |
| TCKU6127858      | EGLV149113151437 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/16/2021 | 2/8/2022     |                  |                       | 5486.25    | Demurrage    |
| EISU8332001      | EGLV149113151445 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/11/2022  | 4/21/2022    | YAT              | LAX                   | 1210       | Detention    |
| EITU1590918      | EGLV149113151445 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/12/2022  | 4/21/2022    | YAT              | LAX                   | 1210       | Detention    |
| EGHU9181480      | EGLV149113151445 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/10/2022  | 4/21/2022    | YAT              | LAX                   | 1320       | Detention    |
| EGHU9181480      | EGLV149113151445 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 6/21/2022  | 8/22/2022    |                  |                       | 7205       | Detention    |
| EGHU9181480      | EGLV149113151445 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/14/2021 | 2/8/2022     |                  |                       | 6179.25    | Demurrage    |
| EISU8332001      | EGLV149113151445 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/15/2021 | 2/17/2022    |                  |                       | 5948.25    | Demurrage    |
| EITU1590918      | EGLV149113151445 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 12/22/2021 | 2/17/2022    |                  |                       | 4851       | Demurrage    |
| TCNU6764784      | EGLV149113151470 | 12/5/2021 |               | 680 - 680 SANTA FE SPRINGS, CA          | 1/12/2022  | 4/21/2022    | YAT              | LAX                   | 1210       | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                                    | SHIP DATE  | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|---------------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| TCNU6764784      | EGLV149113151470 | 12/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA        | 5/29/2022  | 8/22/2022    |                  |                       | 605        | Detention    |
| TCNU6764784      | EGLV149113151470 | 12/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA        | 3/11/2022  | 3/14/2022    |                  |                       | 542.88     | Demurrage    |
| TCNU6764784      | EGLV149113151470 | 12/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA        | 3/15/2022  | 3/17/2022    |                  |                       | 921.62     | Demurrage    |
| TCNU6764784      | EGLV149113151470 | 12/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA        | 2/22/2021  | 2/17/2022    |                  |                       | 4851       | Demurrage    |
| DRYU2382353      | EGLV149113927613 | 12/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA        | 1/13/2022  | 4/21/2022    | YAT              | LAX                   | 165        | Detention    |
| DRYU2382353      | EGLV149113927613 | 12/5/2021  |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/21/2021 | 2/8/2022     |                  |                       | 5082       | Demurrage    |
| EITU1792400      | EGLV082100309288 | 12/29/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 1/4/2022   | 2/1/2022     |                  |                       | 935        | Detention    |
| HMCU1032867      | EGLV149113615735 | 12/14/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 1/10/2022  | 4/21/2022    | YAT              | LAX                   | 550        | Detention    |
| EGHU9130219      | EGLV149113615743 | 12/14/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 1/11/2022  | 4/21/2022    | YAT              | LAX                   | 220        | Detention    |
| TRHU7086556      | EGLV149113615816 | 12/14/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 1/17/2022  | 4/21/2022    | YAT              | LAX                   | 110        | Detention    |
| TCLU7975974      | EGLV149113615816 | 12/14/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 1/12/2022  | 4/21/2022    | YAT              | LAX                   | 660        | Detention    |
| TRHU7086556      | EGLV149113615816 | 12/14/2021 |               | 680 - 680 SANTA FE SPRINGS, CA        | 1/17/2022  | 2/7/2022     |                  |                       | 200        | Demurrage    |
| EISU9066729      | EGLV149113594614 | 1/7/2022   |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/12/2022  | 2/3/2022     |                  |                       | 165        | Detention    |
| TLLU4852151      | EGLV149113594622 | 1/7/2022   |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/14/2022  | 3/2/2022     |                  |                       | 1650       | Detention    |
| TLLU4852151      | EGLV149113594622 | 1/7/2022   |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/14/2022  | 4/1/2022     |                  |                       | 1265       | Detention    |
| EMCU8296299      | EGLV149113594649 | 1/7/2022   |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/15/2022  | 2/3/2022     |                  |                       | 385        | Detention    |
| TGBU6300700      | EGLV149113153774 | 12/20/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 12/28/2021 | 2/1/2022     | YAT              | NYC                   | 770        | Detention    |
| TRHU8296330      | EGLV235102278062 | 12/29/2021 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 1/4/2022   | 2/1/2022     | SGN              | NYC                   | 440        | Detention    |
| TLLU4044169      | EGLV149114482844 | 1/22/2022  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 2/17/2022  | 3/16/2022    |                  |                       | 160        | Detention    |
| TLLU4044169      | EGLV149114482844 | 1/22/2022  |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 2/17/2022  | 3/16/2022    |                  |                       | 440        | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA   | GATE OUT (OA) | DC                                    | SHIP DATE  | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|-----------|---------------|---------------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| EITU1362409      | EGLV149114482844 | 1/22/2022 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 2/18/2022  | 3/2/2022     |                  |                       | 55         | Detention    |
| EITU1408080      | EGLV149114482844 | 1/22/2022 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 2/18/2022  | 2/18/2022    |                  |                       | 2889.37    | Demurrage    |
| EITU1362409      | EGLV149114482844 | 1/22/2022 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 2/18/2022  | 2/18/2022    |                  |                       | 2889.37    | Demurrage    |
| TLLU4044169      | EGLV149114482844 | 1/22/2022 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 2/18/2022  | 2/18/2022    |                  |                       | 2889.37    | Demurrage    |
| TCLU7980380      | EGLV149114482879 | 1/22/2022 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 2/17/2022  | 3/16/2022    |                  |                       | 660        | Detention    |
| HMCU1001830      | EGLV149114482879 | 1/22/2022 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 2/17/2022  | 3/16/2022    |                  |                       | 660        | Detention    |
| TCLU7980380      | EGLV149114482879 | 1/22/2022 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 2/18/2022  | 2/18/2022    |                  |                       | 2889.37    | Demurrage    |
| HMCU1001830      | EGLV149114482879 | 1/22/2022 |               | 666 - 666 WORLD DISTRIBUTION SERVICES | 2/18/2022  | 2/18/2022    |                  |                       | 2889.37    | Demurrage    |
| HMCU1029800      | EGLV149114715423 | 2/4/2022  | 4/25/2022     | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 4/9/2022   | 4/8/2022     |                  |                       | 22756.03   | Demurrage    |
| HMCU1029800      | EGLV149114715423 | 2/4/2022  | 4/25/2022     | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 4/25/2022  | 7/15/2022    |                  |                       | 9922       | Demurrage    |
| HMCU1029800      | EGLV149114715423 | 2/4/2022  | 4/25/2022     | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 4/5/2022   | 8/19/2022    |                  |                       | 437.5      | Detention    |
| EMCU1462572      | EGLV149114715431 | 2/4/2022  | 4/4/2022      | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 6/28/2022  | 8/22/2022    |                  |                       | 5225       | Detention    |
| EMCU1462572      | EGLV149114715431 | 2/4/2022  | 4/4/2022      | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 4/4/2022   | 7/15/2022    |                  |                       | 22305.03   | Demurrage    |
| EMCU8396111      | EGLV149114769159 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA        | 6/16/2022  | 8/22/2022    |                  |                       | 3245       | Detention    |
| EMCU8012319      | EGLV149114769159 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA        | 12/22/2021 | 10/6/2022    |                  |                       | 3245       | Detention    |
| EMCU8012319      | EGLV149114769159 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA        | 2/1/2022   | 5/3/2022     | YAT              | LAX                   | 140        | Detention    |
| EMCU8396111      | EGLV149114769159 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA        | 2/1/2022   | 5/3/2022     | YAT              | LAX                   | 160        | Detention    |
| EMCU8012319      | EGLV149114769159 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA        | 2/1/2022   | 4/1/2022     | YAT              | LAX                   | 127.5      | Detention    |

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| CONTAINER NUMBER | BL NUMBER REF    | POD ATA   | GATE OUT (OA) | DC                                   | SHIP DATE  | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|-----------|---------------|--------------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| EMCU8396111      | EGLV149114769159 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 2/1/2022   | 6/3/2022     | YAT              | LAX                   | 484        | Detention    |
| EMCU8012319      | EGLV149114769159 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 2/1/2022   | 6/3/2022     | YAT              | LAX                   | 484        | Detention    |
| TCLU4343367      | EGLV149114769175 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 6/9/2022   | 8/22/2022    |                  |                       | 1100       | Detention    |
| TCLU4343367      | EGLV149114769175 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 2/1/2022   | 6/3/2022     | YAT              | LAX                   | 440        | Detention    |
| EMCU1395710      | EGLV149114769183 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 2/1/2022   | 4/21/2022    | YAT              | LAX                   | 275        | Detention    |
| FSCU5001966      | EGLV149114769183 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 1/31/2022  | 4/21/2022    | YAT              | LAX                   | 330        | Detention    |
| EMCU1356740      | EGLV149114769183 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 2/1/2022   | 4/21/2022    | YAT              | LAX                   | 385        | Detention    |
| EGSU1003628      | EGLV149114769183 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 1/31/2022  | 4/21/2022    | YAT              | LAX                   | 440        | Detention    |
| EMCU1395710      | EGLV149114769183 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 2/1/2022   | 3/22/2022    | YAT              | LAX                   | 135        | Detention    |
| FSCU5001966      | EGLV149114769183 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 2/1/2022   | 3/22/2022    |                  |                       | 155        | Detention    |
| EMCU1356740      | EGLV149114769183 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 1/31/2022  | 3/22/2022    | YAT              | LAX                   | 175        | Detention    |
| EGSU1003628      | EGLV149114769183 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 2/1/2022   | 3/22/2022    | YAT              | LAX                   | 195        | Detention    |
| EGHU9843035      | EGLV149114769230 | 1/23/2022 |               | 3601 - 3601 IMPORTS/SOUTHWEST        | 5/19/2022  | 8/22/2022    |                  |                       | 385        | Detention    |
| EGHU9843035      | EGLV149114769230 | 1/23/2022 |               | 3601 - 3601 IMPORTS/SOUTHWEST        | 2/9/2022   | 6/3/2022     | YAT              | LAX                   | 175        | Detention    |
| TGBU6894561      | EGLV149114769248 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 6/10/2022  | 8/22/2022    |                  |                       | 1100       | Detention    |
| TGBU6894561      | EGLV149114769248 | 1/23/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 2/1/2022   | 6/3/2022     | YAT              | LAX                   | 440        | Detention    |
| TEMU8419940      | EGLV140103667925 | 2/11/2022 | 4/6/2022      | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 6/25/2022  | 8/22/2022    |                  |                       | 1430       | Detention    |
| EISU9301453      | EGLV140103667925 | 2/11/2022 | 4/6/2022      | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 4/6/2022   | 4/8/2022     |                  |                       | 20050.03   | Demurrage    |
| TEMU8419940      | EGLV140103667925 | 2/11/2022 | 4/6/2022      | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 4/6/2022   | 4/8/2022     |                  |                       | 20050.03   | Demurrage    |
| TCNU2898471      | EGLV149115469574 | 2/3/2022  |               | 680 - 680 SANTA FE SPRINGS, CA       | 6/15/2022  | 8/22/2022    |                  |                       | 2695       | Detention    |
| EGHU9320604      | EGLV149115469574 | 2/3/2022  |               | 680 - 680 SANTA FE SPRINGS, CA       | 12/28/2021 | 10/6/2022    |                  |                       | 2695       | Detention    |

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|------------------|------------------|-----------|---------------|--------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| FCIU7060207      | EGLV149115469647 | 2/3/2022  |               | 680 - 680 SANTA FE SPRINGS, CA | 6/4/2022   | 8/22/2022    |                  |                       | 880        | Detention    |
| EISU9005596      | EGLV149115469647 | 2/3/2022  |               | 680 - 680 SANTA FE SPRINGS, CA | 12/28/2021 | 10/6/2022    |                  |                       | 880        | Detention    |
| EGHU9409918      | EGLV149115469663 | 2/3/2022  |               | 3601 - 3601 IMPORTS/SOUTHWEST  | 6/8/2022   | 8/22/2022    |                  |                       | 1045       | Detention    |
| TEMU6061170      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 1/11/2022  | 10/6/2022    |                  |                       | 110        | Detention    |
| FFAU1528401      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 5/10/2022  | 8/22/2022    |                  |                       | 165        | Detention    |
| TEMU8697957      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/22/2022  | 2/25/2022    |                  |                       | 663.3      | Demurrage    |
| FFAU1528401      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/25/2022  | 2/28/2022    |                  |                       | 168.61     | Demurrage    |
| TEMU6061170      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/25/2022  | 2/28/2022    |                  |                       | 223.88     | Demurrage    |
| TEMU8697957      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/25/2022  | 2/28/2022    |                  |                       | 223.88     | Demurrage    |
| TEMU8697957      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 3/18/2022  | 3/18/2022    |                  |                       | 4666.2     | Demurrage    |
| TGBU6492710      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/25/2022  | 2/28/2022    |                  |                       | 223.88     | Demurrage    |
| TEMU6061170      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/22/2022  | 2/25/2022    |                  |                       | 663.3      | Demurrage    |
| TGBU6492710      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 3/18/2022  | 3/18/2022    |                  |                       | 4666.2     | Demurrage    |
| FFAU1528401      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 3/18/2022  | 3/18/2022    |                  |                       | 4555.1     | Demurrage    |
| TGBU6492710      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/22/2022  | 2/25/2022    |                  |                       | 663.3      | Demurrage    |
| TEMU8697957      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/24/2022  | 2/25/2022    |                  |                       | 396.46     | Demurrage    |
| FFAU1528401      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/24/2022  | 2/25/2022    |                  |                       | 341.19     | Demurrage    |
| TGBU6492710      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/24/2022  | 2/25/2022    |                  |                       | 396.46     | Demurrage    |
| TEMU6061170      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/24/2022  | 2/25/2022    |                  |                       | 396.46     | Demurrage    |
| TEMU6061170      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 3/18/2022  | 3/18/2022    |                  |                       | 4666.2     | Demurrage    |
| TEMU6061170      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 3/21/2022  | 3/29/2022    |                  |                       | 672.65     | Demurrage    |
| TEMU8697957      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 3/21/2022  | 3/29/2022    |                  |                       | 672.65     | Demurrage    |
| TGBU6492710      | EGLV149115968040 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 3/21/2022  | 3/29/2022    |                  |                       | 672.65     | Demurrage    |

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| CONTAINER NUMBER | BL NUMBER REF    | POD ATA   | GATE OUT (OA) | DC                             | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|-----------|---------------|--------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| EISU9427523      | EGLV149115968091 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 5/23/2022 | 8/22/2022    |                  |                       | 440        | Detention    |
| EISU9450035      | EGLV149115968091 | 2/11/2022 | 3/28/2022     | 680 - 680 SANTA FE SPRINGS, CA | 2/22/2022 | 2/25/2022    |                  |                       | 663.3      | Demurrage    |
| SEGU6033567      | EGLV149115968091 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/24/2022 | 2/25/2022    |                  |                       | 396.46     | Demurrage    |
| EISU9427523      | EGLV149115968091 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 3/18/2022 | 3/18/2022    |                  |                       | 4666.2     | Demurrage    |
| EISU9450035      | EGLV149115968091 | 2/11/2022 | 3/28/2022     | 680 - 680 SANTA FE SPRINGS, CA | 2/25/2022 | 2/28/2022    |                  |                       | 223.88     | Demurrage    |
| EISU9427523      | EGLV149115968091 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/25/2022 | 2/28/2022    |                  |                       | 223.88     | Demurrage    |
| EISU9450035      | EGLV149115968091 | 2/11/2022 | 3/28/2022     | 680 - 680 SANTA FE SPRINGS, CA | 3/18/2022 | 3/18/2022    |                  |                       | 4666.2     | Demurrage    |
| SEGU6033567      | EGLV149115968091 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/25/2022 | 2/28/2022    |                  |                       | 223.88     | Demurrage    |
| EISU9427523      | EGLV149115968091 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/22/2022 | 2/25/2022    |                  |                       | 663.3      | Demurrage    |
| SEGU6033567      | EGLV149115968091 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/22/2022 | 2/25/2022    |                  |                       | 663.3      | Demurrage    |
| EISU9450035      | EGLV149115968091 | 2/11/2022 | 3/28/2022     | 680 - 680 SANTA FE SPRINGS, CA | 2/24/2022 | 2/25/2022    |                  |                       | 396.46     | Demurrage    |
| EISU9427523      | EGLV149115968091 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/24/2022 | 2/25/2022    |                  |                       | 396.46     | Demurrage    |
| SEGU6033567      | EGLV149115968091 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 3/18/2022 | 3/18/2022    |                  |                       | 4666.2     | Demurrage    |
| SEGU6033567      | EGLV149115968091 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 3/21/2022 | 3/29/2022    |                  |                       | 672.65     | Demurrage    |
| EISU9450035      | EGLV149115968091 | 2/11/2022 | 3/28/2022     | 680 - 680 SANTA FE SPRINGS, CA | 3/21/2022 | 3/29/2022    |                  |                       | 666.6      | Demurrage    |
| EISU9450035      | EGLV149115968091 | 2/11/2022 | 3/28/2022     | 680 - 680 SANTA FE SPRINGS, CA | 3/25/2022 | 3/29/2022    |                  |                       | 453.04     | Demurrage    |
| EISU9450035      | EGLV149115968091 | 2/11/2022 | 3/28/2022     | 680 - 680 SANTA FE SPRINGS, CA | 3/28/2022 | 3/29/2022    |                  |                       | 682.57     | Demurrage    |
| FSCU4997564      | EGLV149115968121 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 6/2/2022  | 8/22/2022    |                  |                       | 715        | Detention    |
| FSCU4997564      | EGLV149115968121 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 3/18/2022 | 3/18/2022    |                  |                       | 4388.45    | Demurrage    |
| TGBU6610644      | EGLV149115968139 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 5/25/2022 | 8/22/2022    |                  |                       | 495        | Detention    |
| EGHU9463380      | EGLV149115968139 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 1/11/2022 | 10/6/2022    |                  |                       | 495        | Detention    |
| TGBU6610644      | EGLV149115968139 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 3/18/2022 | 3/18/2022    |                  |                       | 4555.1     | Demurrage    |
| TGBU6610644      | EGLV149115968139 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/25/2022 | 2/28/2022    |                  |                       | 168.61     | Demurrage    |
| TGBU6610644      | EGLV149115968139 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA | 2/24/2022 | 2/25/2022    |                  |                       | 341.19     | Demurrage    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA   | GATE OUT (OA) | DC                                   | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|-----------|---------------|--------------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| EGHU9463380      | EGLV149115968139 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 3/18/2022 | 3/18/2022    |                  |                       | 4388.45    | Demurrage    |
| TGBU6610644      | EGLV149115968139 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 3/21/2022 | 3/29/2022    |                  |                       | 672.65     | Demurrage    |
| EGHU9463380      | EGLV149115968139 | 2/11/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 3/21/2022 | 3/29/2022    |                  |                       | 666.6      | Demurrage    |
| EGHU9342183      | EGLV141101378592 | 2/16/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 6/7/2022  | 8/22/2022    |                  |                       | 1045       | Detention    |
| EGHU9342183      | EGLV141101378592 | 2/16/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 3/11/2022 | 3/14/2022    |                  |                       | 919.1      | Demurrage    |
| EITU1462840      | EGLV141101378592 | 2/16/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 3/8/2022  | 3/14/2022    |                  |                       | 1111       | Demurrage    |
| EGHU9342183      | EGLV141101378592 | 2/16/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 3/8/2022  | 3/14/2022    |                  |                       | 2166.45    | Demurrage    |
| EITU1462840      | EGLV141101378592 | 2/16/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 3/11/2022 | 3/14/2022    |                  |                       | 868.6      | Demurrage    |
| EGHU9342183      | EGLV141101378592 | 2/16/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 3/14/2022 | 3/17/2022    |                  |                       | 1070.6     | Demurrage    |
| EGHU9342183      | EGLV141101378592 | 2/16/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 3/16/2022 | 3/17/2022    |                  |                       | 766.19     | Demurrage    |
| EITU1462840      | EGLV141101378592 | 2/16/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 3/16/2022 | 3/17/2022    |                  |                       | 614.69     | Demurrage    |
| EITU1462840      | EGLV141101378592 | 2/16/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 3/14/2022 | 3/17/2022    |                  |                       | 919.1      | Demurrage    |
| EGHU1017130      | EGLV149116649801 | 3/14/2022 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 3/17/2022 | 4/15/2022    | YAT              | NYC                   | 220        | Detention    |
| EGHU1017130      | EGLV149116649801 | 3/14/2022 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 3/17/2022 | 4/15/2022    | YAT              | NYC                   | 605        | Detention    |
| EGHU1017130      | EGLV149116649801 | 3/14/2022 |               | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 3/17/2022 | 4/22/2022    | YAT              | NYC                   | 220        | Detention    |
| HMCU1100750      | EGLV149200344528 | 3/12/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 6/1/2022  | 8/22/2022    |                  |                       | 660        | Detention    |
| HMCU1100750      | EGLV149200344528 | 3/12/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 3/22/2022 | 3/25/2022    | YAT              | LAX                   | 907.5      | Demurrage    |
| EISU1876791      | EGLV149200344544 | 3/12/2022 | 3/26/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 3/24/2022 | 3/29/2022    |                  |                       | 166.45     | Demurrage    |
| TCNU2092064      | EGLV149200663942 | 3/14/2022 |               | 680 - 680 SANTA FE SPRINGS, CA       | 5/12/2022 | 8/22/2022    |                  |                       | 220        | Detention    |
| EGSU9170350      | EGLV149200663942 | 3/14/2022 | 4/19/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/8/2022  | 4/25/2022    |                  |                       | 3523.67    | Demurrage    |
| EGHU9324071      | EGLV149200663942 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/14/2022 | 4/25/2022    |                  |                       | 446.6      | Demurrage    |
| EGSU9170350      | EGLV149200663942 | 3/14/2022 | 4/19/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/14/2022 | 4/25/2022    |                  |                       | 669.9      | Demurrage    |

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| CONTAINER NUMBER | BL NUMBER REF    | POD ATA   | GATE OUT (OA) | DC                                   | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|-----------|---------------|--------------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| BMOU5450933      | EGLV149200663942 | 3/14/2022 | 4/12/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/11/2022 | 4/25/2022    |                  |                       | 4186.88    | Demurrage    |
| EGSU9170350      | EGLV149200663942 | 3/14/2022 | 4/19/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/11/2022 | 4/25/2022    |                  |                       | 669.9      | Demurrage    |
| BMOU5450933      | EGLV149200663942 | 3/14/2022 | 4/12/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/12/2022 | 4/25/2022    |                  |                       | 223.3      | Demurrage    |
| EGHU9324071      | EGLV149200663942 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/12/2022 | 4/25/2022    |                  |                       | 223.3      | Demurrage    |
| EGSU9170350      | EGLV149200663942 | 3/14/2022 | 4/19/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/18/2022 | 4/25/2022    |                  |                       | 893.2      | Demurrage    |
| EGHU9324071      | EGLV149200663942 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/18/2022 | 4/25/2022    |                  |                       | 893.2      | Demurrage    |
| EGHU9324071      | EGLV149200663942 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/8/2022  | 4/25/2022    |                  |                       | 3523.67    | Demurrage    |
| EGHU9324071      | EGLV149200663942 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/11/2022 | 4/25/2022    |                  |                       | 669.9      | Demurrage    |
| TGBU9975672      | EGLV149200663992 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/15/2022 | 4/25/2022    |                  |                       | 5082.68    | Demurrage    |
| BSIU9965573      | EGLV149200663992 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/11/2022 | 4/25/2022    |                  |                       | 4186.88    | Demurrage    |
| BSIU9965573      | EGLV149200663992 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/14/2022 | 4/25/2022    |                  |                       | 446.6      | Demurrage    |
| TRHU4939784      | EGLV149200663992 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/18/2022 | 4/25/2022    |                  |                       | 669.9      | Demurrage    |
| TGBU9975672      | EGLV149200663992 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/18/2022 | 4/25/2022    |                  |                       | 669.9      | Demurrage    |
| BSIU9965573      | EGLV149200663992 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/12/2022 | 4/25/2022    |                  |                       | 223.3      | Demurrage    |
| BSIU9965573      | EGLV149200663992 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/18/2022 | 4/25/2022    |                  |                       | 893.2      | Demurrage    |
| TRHU4939784      | EGLV149200663992 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/15/2022 | 4/25/2022    |                  |                       | 5082.68    | Demurrage    |
| HMCU1010908      | EGLV149200664026 | 3/14/2022 | 4/20/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/20/2022 | 4/25/2022    |                  |                       | 447.23     | Demurrage    |
| HMCU1010908      | EGLV149200664026 | 3/14/2022 | 4/20/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/18/2022 | 4/25/2022    |                  |                       | 5526.67    | Demurrage    |
| GLDU9756324      | EGLV149200664026 | 3/14/2022 | 4/18/2022     | 680 - 680 SANTA FE SPRINGS, CA       | 4/18/2022 | 4/25/2022    |                  |                       | 6643.17    | Demurrage    |
| EGHU3661835      | EGLV149200826999 | 4/20/2022 | 5/9/2022      | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 5/9/2022  | 7/15/2022    |                  |                       | 3363.03    | Demurrage    |
| OCCU2031635      | EGLV149201234662 | 4/20/2022 | 5/9/2022      | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 5/10/2022 | 5/10/2022    |                  |                       | 3927.51    | Demurrage    |
| TGCU2016730      | EGLV149201234670 | 4/20/2022 | 5/10/2022     | 1590 - 1590 NE IMPORT TRANSLOAD VIRT | 5/10/2022 | 5/10/2022    |                  |                       | 3927.51    | Demurrage    |

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| CONTAINER NUMBER | BL NUMBER REF    | POD ATA   | GATE OUT (OA)  | DC                                    | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|-----------|----------------|---------------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| EGHU1044979      | EGLV149200887301 | 3/20/2022 | 3/29/2022<br>2 | 680 - 680 SANTA FE SPRINGS, CA        | 6/3/2022  | 8/22/2022    |                  |                       | 715        | Detention    |
| DFSU7002903      | EGLV149200826603 | 4/19/2022 | 5/7/2022       | 666 - 666 WORLD DISTRIBUTION SERVICES | 5/11/2022 | 5/10/2022    |                  |                       | 2213.97    | Demurrage    |
| FFAU1119677      | EGLV149200826603 | 4/19/2022 | 5/7/2022       | 666 - 666 WORLD DISTRIBUTION SERVICES | 5/11/2022 | 5/10/2022    |                  |                       | 2213.97    | Demurrage    |
| EGHU9007457      | EGLV149200826620 | 4/19/2022 | 5/11/2022<br>2 | 666 - 666 WORLD DISTRIBUTION SERVICES | 5/13/2022 | 5/10/2022    |                  |                       | 2569.22    | Demurrage    |
| BMOU4826841      | EGLV149200826620 | 4/19/2022 | 5/11/2022<br>2 | 666 - 666 WORLD DISTRIBUTION SERVICES | 5/13/2022 | 5/10/2022    |                  |                       | 2569.22    | Demurrage    |
| TXGU6060108      | EGLV149201014882 | 3/27/2022 | 3/30/2022<br>2 | 680 - 680 SANTA FE SPRINGS, CA        | 5/1/2022  | 8/22/2022    |                  |                       | 55         | Detention    |
| TRHU7775792      | EGLV149201014904 | 3/27/2022 | 3/31/2022<br>2 | 680 - 680 SANTA FE SPRINGS, CA        | 1/1/1991  | 8/15/2022    | YAT              | LAX                   | 85         | Detention    |
| EITU1562109      | EGLV149201014912 | 3/27/2022 | 4/4/2022       | 680 - 680 SANTA FE SPRINGS, CA        | 5/24/2022 | 8/22/2022    |                  |                       | 440        | Detention    |
| HMCU1107647      | EGLV149201014921 | 3/27/2022 | 4/1/2022       | 680 - 680 SANTA FE SPRINGS, CA        | 5/2/2022  | 8/22/2022    |                  |                       | 55         | Detention    |
| TGHU5102466      | EGLV149201014963 | 3/27/2022 | 3/31/2022<br>2 | 680 - 680 SANTA FE SPRINGS, CA        | 5/6/2022  | 8/22/2022    |                  |                       | 110        | Detention    |
| EGHU9589260      | EGLV146200161496 | 4/25/2022 | 5/9/2022       | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 6/27/2022 | 8/22/2022    |                  |                       | 3740       | Detention    |
| EGHU9589260      | EGLV146200161496 | 4/25/2022 | 5/9/2022       | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 5/9/2022  | 7/15/2022    |                  |                       | 1827.58    | Demurrage    |
| EISU8518552      | EGLV146200182418 | 4/18/2022 | 5/2/2022       | 680 - 680 SANTA FE SPRINGS, CA        | 5/2/2022  | 5/10/2022    |                  |                       | 837.37     | Demurrage    |
| DFSU7311179      | EGLV146200182418 | 4/18/2022 | 5/2/2022       | 680 - 680 SANTA FE SPRINGS, CA        | 5/2/2022  | 5/10/2022    |                  |                       | 837.37     | Demurrage    |
| DRYU2384952      | EGLV149201320665 | 4/8/2022  | 5/2/2022       | 680 - 680 SANTA FE SPRINGS, CA        | 5/13/2022 | 8/22/2022    |                  |                       | 220        | Detention    |
| DRYU2384952      | EGLV149201320665 | 4/8/2022  | 5/2/2022       | 680 - 680 SANTA FE SPRINGS, CA        | 4/18/2022 | 4/25/2022    |                  |                       | 669.9      | Demurrage    |
| DRYU2384952      | EGLV149201320665 | 4/8/2022  | 5/2/2022       | 680 - 680 SANTA FE SPRINGS, CA        | 5/2/2022  | 5/13/2022    | YAT              | LAX                   | 3327.5     | Demurrage    |
| DRYU2384952      | EGLV149201320665 | 4/8/2022  | 5/2/2022       | 680 - 680 SANTA FE SPRINGS, CA        | 5/2/2022  | 6/24/2022    | YAT              | LAX                   | 115        | Detention    |
| TLLU7965228      | EGLV149201320673 | 4/8/2022  | 5/2/2022       | 680 - 680 SANTA FE SPRINGS, CA        | 5/16/2022 | 8/22/2022    |                  |                       | 330        | Detention    |
| TLLU7965228      | EGLV149201320673 | 4/8/2022  | 5/2/2022       | 680 - 680 SANTA FE SPRINGS, CA        | 5/2/2022  | 5/13/2022    | YAT              | LAX                   | 3327.5     | Demurrage    |
| TLLU7965228      | EGLV149201320673 | 4/8/2022  | 5/2/2022       | 680 - 680 SANTA FE SPRINGS, CA        | 5/2/2022  | 6/24/2022    | YAT              | LAX                   | 155        | Detention    |

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| CONTAINER NUMBER | BL NUMBER REF    | POD ATA   | GATE OUT (OA) | DC                             | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|-----------|---------------|--------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| TRHU8709115      | EGLV149201653354 | 4/20/2022 | 5/4/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/30/2022 | 8/22/2022    |                  |                       | 605        | Detention    |
| TRHU8709115      | EGLV149201653354 | 4/20/2022 | 5/4/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/3/2022  | 5/13/2022    | YAT              | LAX                   | 1417.5     | Demurrage    |
| EGHU8362159      | EGLV149201653354 | 4/20/2022 | 5/3/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/2/2022  | 5/13/2022    | YAT              | LAX                   | 1223       | Demurrage    |
| EISU1845810      | EGLV149201653354 | 4/20/2022 | 5/5/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/2/2022  | 5/13/2022    | YAT              | LAX                   | 1436       | Demurrage    |
| TRHU8709115      | EGLV149201653354 | 4/20/2022 | 5/4/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/3/2022  | 5/13/2022    | YAT              | LAX                   | 375        | Detention    |
| EGHU8362159      | EGLV149201653354 | 4/20/2022 | 5/3/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/2/2022  | 5/13/2022    | YAT              | LAX                   | 191.25     | Detention    |
| EMCU1276876      | EGLV149201653362 | 4/20/2022 | 5/3/2022      | 680 - 680 SANTA FE SPRINGS, CA | 6/6/2022  | 8/22/2022    |                  |                       | 990        | Detention    |
| EISU1682707      | EGLV149201653362 | 4/20/2022 | 5/5/2022      | 680 - 680 SANTA FE SPRINGS, CA | 3/27/2022 | 10/6/2022    |                  |                       | 990        | Detention    |
| TGBU8652187      | EGLV149201653362 | 4/20/2022 | 5/4/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/4/2022  | 5/13/2022    | YAT              | LAX                   | 1478       | Demurrage    |
| EISU1682707      | EGLV149201653362 | 4/20/2022 | 5/5/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/3/2022  | 5/13/2022    | YAT              | LAX                   | 1436       | Demurrage    |
| FFAU2121196      | EGLV149201653362 | 4/20/2022 | 5/5/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/2/2022  | 5/13/2022    | YAT              | LAX                   | 1733       | Demurrage    |
| FSCU4971560      | EGLV149201653362 | 4/20/2022 | 5/3/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/2/2022  | 5/13/2022    | YAT              | LAX                   | 1162.5     | Demurrage    |
| EMCU1276876      | EGLV149201653362 | 4/20/2022 | 5/3/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/2/2022  | 5/13/2022    | YAT              | LAX                   | 1162.5     | Demurrage    |
| TGBU8652187      | EGLV149201653362 | 4/20/2022 | 5/4/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/4/2022  | 5/13/2022    | YAT              | LAX                   | 170        | Detention    |
| EISU1682707      | EGLV149201653362 | 4/20/2022 | 5/5/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/3/2022  | 5/20/2022    | YAT              | LAX                   | 191.25     | Detention    |
| FFAU2121196      | EGLV149201653362 | 4/20/2022 | 5/5/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/2/2022  | 6/24/2022    | YAT              | LAX                   | 155        | Detention    |
| EISU1682707      | EGLV149201653362 | 4/20/2022 | 5/5/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/3/2022  | 6/24/2022    | YAT              | LAX                   | 55         | Detention    |
| FSCU4971560      | EGLV149201653362 | 4/20/2022 | 5/3/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/2/2022  | 6/24/2022    | YAT              | LAX                   | 195        | Detention    |
| MAGU5280974      | EGLV149201653435 | 4/20/2022 | 5/2/2022      | 3601 - 3601 IMPORTS/SOUTHW EST | 5/20/2022 | 8/22/2022    |                  |                       | 385        | Detention    |
| MAGU5280974      | EGLV149201653435 | 4/20/2022 | 5/2/2022      | 3601 - 3601 IMPORTS/SOUTHW EST | 5/2/2022  | 5/10/2022    |                  |                       | 893.2      | Demurrage    |
| TGBU6781077      | EGLV149201653443 | 4/20/2022 | 5/3/2022      | 3601 - 3601 IMPORTS/SOUTHW EST | 5/14/2022 | 8/22/2022    |                  |                       | 275        | Detention    |
| TGBU6781077      | EGLV149201653443 | 4/20/2022 | 5/3/2022      | 3601 - 3601 IMPORTS/SOUTHW EST | 5/2/2022  | 5/10/2022    |                  |                       | 893.2      | Demurrage    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                             | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|--------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| TGBU6019890      | EGLV149201242249 | 5/3/2022   | 5/7/2022      | 3666 - 3666 IMPORTS/SOUTHEAST  | 6/29/2022 | 8/22/2022    |                  |                       | 110        | Detention    |
| EITU9298395      | EGLV149201242265 | 5/3/2022   | 5/6/2022      | 3666 - 3666 IMPORTS/SOUTHEAST  | 6/30/2022 | 8/22/2022    |                  |                       | 165        | Detention    |
| EGHU9539418      | EGLV149201965828 | 4/26/2022  | 5/9/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/9/2022  | 5/13/2022    | YAT              | LAX                   | 744.5      | Demurrage    |
| FCIU9465354      | EGLV149201965828 | 4/26/2022  | 5/9/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/9/2022  | 5/13/2022    | YAT              | LAX                   | 744.5      | Demurrage    |
| EGHU3911723      | EGLV149201965828 | 4/26/2022  | 5/5/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/5/2022  | 5/13/2022    | YAT              | LAX                   | 340        | Detention    |
| TCKU6040845      | EGLV149201965861 | 4/26/2022  | 5/7/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/7/2022  | 5/13/2022    | YAT              | LAX                   | 390        | Demurrage    |
| TGBU6993306      | EGLV149201965879 | 4/26/2022  | 5/5/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/5/2022  | 5/13/2022    | YAT              | LAX                   | 200        | Demurrage    |
| EGHU8230321      | EGLV149201965887 | 4/26/2022  | 5/6/2022      | 3601 - 3601 IMPORTS/SOUTHWEST  | 5/17/2022 | 8/22/2022    |                  |                       | 330        | Detention    |
| EGHU8230321      | EGLV149201965887 | 4/26/2022  | 5/6/2022      | 3601 - 3601 IMPORTS/SOUTHWEST  | 5/6/2022  | 5/10/2022    |                  |                       | 502.42     | Demurrage    |
| EGHU823032       | EGLV149201965887 | 04/26/2022 | 05/06/2022    | 3601 - 3601 IMPORTS/SOUTHWEST  | 5/6/2022  | 7/3/2022     |                  |                       | 126        | Detention    |
| HMCU9157979      | EGLV149201965895 | 4/26/2022  | 5/10/2022     | 3601 - 3601 IMPORTS/SOUTHWEST  | 5/18/2022 | 8/22/2022    |                  |                       | 330        | Detention    |
| HMCU9157979      | EGLV149201965895 | 4/26/2022  | 5/10/2022     | 3601 - 3601 IMPORTS/SOUTHWEST  | 5/6/2022  | 5/10/2022    |                  |                       | 502.42     | Demurrage    |
| HMCU9157979      | EGLV149201965895 | 4/26/2022  | 5/10/2022     | 3601 - 3601 IMPORTS/SOUTHWEST  | 5/9/2022  | 5/10/2022    |                  |                       | 563.15     | Demurrage    |
| HMCU9157979      | EGLV149201965895 | 4/26/2022  | 5/10/2022     | 3601 - 3601 IMPORTS/SOUTHWEST  | 5/10/2022 | 5/14/2022    | YAT              | LAX                   | 250.25     | Demurrage    |
| EGHU9164820      | EGLV149201965909 | 4/26/2022  | 5/6/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/6/2022  | 5/13/2022    | YAT              | LAX                   | 565        | Demurrage    |
| CAAU6009703      | EGLV149201965909 | 4/26/2022  | 5/5/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/5/2022  | 5/13/2022    | YAT              | LAX                   | 365        | Demurrage    |
| DFSU7237111      | EGLV149201966093 | 4/26/2022  | 5/10/2022     | 3601 - 3601 IMPORTS/SOUTHWEST  | 5/28/2022 | 8/22/2022    |                  |                       | 550        | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                             | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|--------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| DFSU7237111      | EGLV149201966093 | 4/26/2022  | 5/10/2022     | 3601 - 3601 IMPORTS/SOUTHWEST  | 5/6/2022  | 5/10/2022    |                  |                       | 337.47     | Demurrage    |
| DFSU723711       | EGLV149201966093 | 04/26/2022 | 05/10/2022    | 3601 - 3601 IMPORTS/SOUTHWEST  | 5/10/2022 | 8/24/2022    | YAT              | LAX                   | 200        | Detention    |
| DFSU7237111      | EGLV149201966093 | 4/26/2022  | 5/10/2022     | 3601 - 3601 IMPORTS/SOUTHWEST  | 5/10/2022 | 5/14/2022    | YAT              | LAX                   | 803        | Demurrage    |
| EMCU8056451      | EGLV149202567826 | 5/25/2022  | 6/2/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/4/2022  | 8/22/2022    |                  |                       | 55         | Detention    |
| EMCU805645       | EGLV149202567826 | 05/25/2022 | 06/02/2022    | 680 - 680 SANTA FE SPRINGS, CA | 6/2/2022  | 8/24/2022    | YAT              | LAX                   | 20         | Detention    |
| FFAU2103886      | EGLV149202094146 | 5/2/2022   | 5/11/2022     | 680 - 680 SANTA FE SPRINGS, CA | 5/11/2022 | 5/31/2022    |                  |                       | 167.48     | Demurrage    |
| MAGU5365285      | EGLV149202094146 | 5/2/2022   | 5/16/2022     | 680 - 680 SANTA FE SPRINGS, CA | 5/16/2022 | 5/19/2022    | YAT              | LAX                   | 742.5      | Demurrage    |
| EMCU8557155      | EGLV149202094154 | 5/2/2022   | 5/9/2022      | 680 - 680 SANTA FE SPRINGS, CA | 5/3/2022  | 8/22/2022    |                  |                       | 55         | Detention    |
| EGHU9880390      | EGLV149202094154 | 5/2/2022   | 5/18/2022     | 680 - 680 SANTA FE SPRINGS, CA | 5/13/2022 | 5/31/2022    |                  |                       | 168.74     | Demurrage    |
| EGHU9880390      | EGLV149202094154 | 5/2/2022   | 5/18/2022     | 680 - 680 SANTA FE SPRINGS, CA | 5/18/2022 | 5/31/2022    |                  |                       | 399.94     | Demurrage    |
| EGHU9880390      | EGLV149202094154 | 5/2/2022   | 5/18/2022     | 680 - 680 SANTA FE SPRINGS, CA | 5/18/2022 | 5/21/2022    |                  |                       | 552.75     | Demurrage    |
| TRHU5527251      | EGLV149202094197 | 5/2/2022   | 5/16/2022     | 680 - 680 SANTA FE SPRINGS, CA | 5/26/2022 | 8/22/2022    |                  |                       | 495        | Detention    |
| TRHU5527251      | EGLV149202094197 | 5/2/2022   | 5/16/2022     | 680 - 680 SANTA FE SPRINGS, CA | 5/12/2022 | 5/31/2022    |                  |                       | 167.48     | Demurrage    |
| TRHU552725       | EGLV149202094197 | 05/02/2022 | 05/16/2022    | 680 - 680 SANTA FE SPRINGS, CA | 5/16/2022 | 8/24/2022    | YAT              | LAX                   | 180        | Detention    |
| TRHU5527251      | EGLV149202094197 | 5/2/2022   | 5/16/2022     | 680 - 680 SANTA FE SPRINGS, CA | 5/16/2022 | 5/19/2022    | YAT              | LAX                   | 734.25     | Demurrage    |
| EGHU8505115      | EGLV149202094219 | 5/2/2022   | 5/11/2022     | 680 - 680 SANTA FE SPRINGS, CA | 5/11/2022 | 5/31/2022    |                  |                       | 167.48     | Demurrage    |
| EMCU9624108      | EGLV149202094227 | 5/2/2022   | 5/16/2022     | 680 - 680 SANTA FE SPRINGS, CA | 5/16/2022 | 5/19/2022    | YAT              | LAX                   | 742.5      | Demurrage    |
| EITU1893175      | EGLV149202094227 | 5/2/2022   | 5/16/2022     | 680 - 680 SANTA FE SPRINGS, CA | 5/16/2022 | 5/19/2022    | YAT              | LAX                   | 552.75     | Demurrage    |
| EMCU8354482      | EGLV149202480542 | 5/11/2022  | 5/16/2022     | 680 - 680 SANTA FE SPRINGS, CA | 5/31/2022 | 8/22/2022    |                  |                       | 605        | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                                    | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|---------------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| EGSU1002874      | EGLV149202480577 | 5/11/2022  | 5/23/2022     | 680 - 680 SANTA FE SPRINGS, CA        | 4/22/2022 | 10/6/2022    |                  |                       | 495        | Detention    |
| HMCU1060426      | EGLV149202480577 | 5/11/2022  | 5/17/2022     | 680 - 680 SANTA FE SPRINGS, CA        | 5/27/2022 | 8/22/2022    |                  |                       | 495        | Detention    |
| EGSU1002874      | EGLV149202480577 | 5/11/2022  | 5/23/2022     | 680 - 680 SANTA FE SPRINGS, CA        | 5/21/2022 | 5/31/2022    |                  |                       | 337.46     | Demurrage    |
| EGSU1002874      | EGLV149202480577 | 5/11/2022  | 5/23/2022     | 680 - 680 SANTA FE SPRINGS, CA        | 5/23/2022 | 5/31/2022    |                  |                       | 334.95     | Demurrage    |
| CAAU5481839      | EGLV149202480607 | 5/11/2022  | 5/17/2022     | 680 - 680 SANTA FE SPRINGS, CA        | 5/7/2022  | 8/22/2022    |                  |                       | 110        | Detention    |
| TEMU3955344      | EGLV149202480632 | 5/11/2022  | 5/20/2022     | 680 - 680 SANTA FE SPRINGS, CA        | 5/11/2022 | 8/22/2022    |                  |                       | 165        | Detention    |
| TEMU3955344      | EGLV149202480632 | 5/11/2022  | 5/20/2022     | 680 - 680 SANTA FE SPRINGS, CA        | 5/20/2022 | 5/31/2022    |                  |                       | 174.88     | Demurrage    |
| TEMU395534       | EGLV149202480632 | 05/11/2022 | 05/20/2022    | 680 - 680 SANTA FE SPRINGS, CA        | 5/20/2022 | 8/24/2022    | YAT              | LAX                   | 60         | Detention    |
| EGHU9689254      | EGLV146200421528 | 5/31/2022  | 6/6/2022      | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 6/23/2022 | 8/22/2022    |                  |                       | 1100       | Detention    |
| EMCU8417298      | EGLV146200368902 | 6/29/2022  | 7/2/2022      | 666 - 666 WORLD DISTRIBUTION SERVICES | 7/1/2022  | 8/22/2022    |                  |                       | 275        | Detention    |
| EITU9075088      | EGLV146200368902 | 6/29/2022  | 7/1/2022      | 666 - 666 WORLD DISTRIBUTION SERVICES | 4/27/2022 | 10/6/2022    |                  |                       | 275        | Detention    |
| HMCU1000263      | EGLV149202785742 | 5/18/2022  | 5/26/2022     | 680 - 680 SANTA FE SPRINGS, CA        | 5/5/2022  | 8/22/2022    |                  |                       | 55         | Detention    |
| EGHU8219744      | EGLV149202785840 | 5/18/2022  | 5/24/2022     | 3601 - 3601 IMPORTS/SOUTHWEST         | 6/11/2022 | 8/22/2022    |                  |                       | 1760       | Detention    |
| EITU9429052      | EGLV149202785874 | 5/18/2022  | 5/24/2022     | 3601 - 3601 IMPORTS/SOUTHWEST         | 5/21/2022 | 8/22/2022    |                  |                       | 385        | Detention    |
| TRHU6766986      | EGLV149202785882 | 5/18/2022  | 5/24/2022     | 3601 - 3601 IMPORTS/SOUTHWEST         | 5/22/2022 | 8/22/2022    |                  |                       | 385        | Detention    |
| TRHU5113523      | EGLV149202785939 | 5/18/2022  | 5/27/2022     | 680 - 680 SANTA FE SPRINGS, CA        | 5/8/2022  | 8/22/2022    |                  |                       | 110        | Detention    |
| TRHU511352       | EGLV149202785939 | 05/18/2022 | 05/27/2022    | 680 - 680 SANTA FE SPRINGS, CA        | 5/27/2022 | 8/24/2022    | YAT              | LAX                   | 40         | Detention    |
| EISU8209595      | EGLV140200811645 | 6/23/2022  | 6/27/2022     | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 6/24/2022 | 8/22/2022    |                  |                       | 1320       | Detention    |

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|------------------|------------------|-----------|---------------|------------------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| TCNU1404300      | EGLV140200811645 | 6/23/2022 | 6/28/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT  | 6/28/2022 | 7/22/2022    | TAO              | NYC                   | 100        | Detention    |
| MAGU5363873      | EGLV140200811645 | 6/23/2022 | 6/28/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT  | 6/28/2022 | 7/22/2022    | TAO              | NYC                   | 100        | Detention    |
| EITU1272455      | EGLV140200811645 | 6/23/2022 | 6/28/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT  | 6/28/2022 | 7/22/2022    | TAO              | NYC                   | 80         | Detention    |
| TLLU7505670      | EGLV140200811645 | 6/23/2022 | 6/27/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT  | 6/27/2022 | 7/22/2022    | TAO              | NYC                   | 100        | Detention    |
| EISU8209595      | EGLV140200811645 | 6/23/2022 | 6/27/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT  | 6/27/2022 | 7/22/2022    | TAO              | NYC                   | 100        | Detention    |
| EISU1732480      | EGLV149202265153 | 7/1/2022  | 7/5/2022      | 666 - 666 WORLD DISTRIBUTION<br>SERVICES | 7/2/2022  | 8/22/2022    |                  |                       | 385        | Detention    |
| TCLU4313911      | EGLV149203342119 | 6/23/2022 | 6/28/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT  | 6/28/2022 | 7/22/2022    | YAT              | NYC                   | 820        | Detention    |
| LTIU6049080      | EGLV140201004981 | 7/17/2022 | 7/22/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT  | 7/22/2022 | 8/2/2022     | TAO              | NYC                   | 390        | Detention    |
| EGHU9210464      | EGLV149203224213 | 6/3/2022  | 6/22/2022     | 680 - 680 SANTA FE SPRINGS, CA           | 6/22/2022 | 6/29/2022    | YAT              | LAX                   | 1936       | Demurrage    |
| BMOU5763120      | EGLV149203224213 | 6/3/2022  | 6/22/2022     | 680 - 680 SANTA FE SPRINGS, CA           | 6/22/2022 | 6/29/2022    | YAT              | LAX                   | 2843.5     | Demurrage    |
| FCIU9782003      | EGLV149203224213 | 6/3/2022  | 6/24/2022     | 680 - 680 SANTA FE SPRINGS, CA           | 6/24/2022 | 6/29/2022    | YAT              | LAX                   | 3327.5     | Demurrage    |
| MAGU5388465      | EGLV149203224213 | 6/3/2022  | 6/23/2022     | 680 - 680 SANTA FE SPRINGS, CA           | 6/23/2022 | 6/29/2022    | YAT              | LAX                   | 3085.5     | Demurrage    |
| HMCU9225081      | EGLV149203224213 | 6/3/2022  | 6/23/2022     | 680 - 680 SANTA FE SPRINGS, CA           | 6/23/2022 | 6/29/2022    | YAT              | LAX                   | 3085.5     | Demurrage    |
| EGHU9210464      | EGLV149203224213 | 6/3/2022  | 6/22/2022     | 680 - 680 SANTA FE SPRINGS, CA           | 6/22/2022 | 6/29/2022    | YAT              | LAX                   | 170        | Detention    |
| TXGU5588240      | EGLV149203224264 | 6/3/2022  | 6/23/2022     | 680 - 680 SANTA FE SPRINGS, CA           | 6/23/2022 | 6/29/2022    | YAT              | LAX                   | 3085.5     | Demurrage    |
| EMCU8581418      | EGLV149203224264 | 6/3/2022  | 6/24/2022     | 680 - 680 SANTA FE SPRINGS, CA           | 6/24/2022 | 6/29/2022    | YAT              | LAX                   | 3327.5     | Demurrage    |
| TCLU4971661      | EGLV149203224264 | 6/3/2022  | 6/23/2022     | 680 - 680 SANTA FE SPRINGS, CA           | 6/23/2022 | 6/29/2022    | YAT              | LAX                   | 3085.5     | Demurrage    |
| BSIU9245146      | EGLV149203224264 | 6/3/2022  | 6/22/2022     | 680 - 680 SANTA FE SPRINGS, CA           | 6/22/2022 | 6/29/2022    | YAT              | LAX                   | 2843.5     | Demurrage    |
| EISU1838209      | EGLV149203224345 | 6/3/2022  | 6/23/2022     | 680 - 680 SANTA FE SPRINGS, CA           | 6/23/2022 | 6/29/2022    | YAT              | LAX                   | 2843.5     | Demurrage    |
| EISU1838209      | EGLV149203224345 | 6/3/2022  | 6/23/2022     | 680 - 680 SANTA FE SPRINGS, CA           | 6/23/2022 | 6/29/2022    | YAT              | LAX                   | 340        | Detention    |

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| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                                      | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|-----------------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| EMCU1443119      | EGLV149203454812 | 6/26/2022  | 6/29/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 6/29/2022 | 7/22/2022    | YAT              | NYC                   | 820        | Detention    |
| HMCU1004762      | EGLV149203454812 | 6/26/2022  | 6/30/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 6/30/2022 | 7/22/2022    | YAT              | NYC                   | 700        | Detention    |
| EISU1841542      | EGLV149203693957 | 6/16/2022  | 6/24/2022     | 680 - 680 SANTA FE SPRINGS, CA          | 6/24/2022 | 7/11/2022    | YAT              | LAX                   | 200        | Demurrage    |
| FSCU4999757      | EGLV149203693965 | 6/16/2022  | 6/23/2022     | 680 - 680 SANTA FE SPRINGS, CA          | 6/23/2022 | 7/8/2022     | YAT              | LAX                   | 170        | Detention    |
| TCNU6379983      | EGLV149203694104 | 6/16/2022  | 6/28/2022     | 680 - 680 SANTA FE SPRINGS, CA          | 6/27/2022 | 6/28/2022    |                  |                       | 502.42     | Demurrage    |
| TLLU542294       | EGLV146200660484 | 07/04/2022 | 07/15/2022    | 680 - 680 SANTA FE SPRINGS, CA          | 7/15/2022 | 8/24/2022    | XMN              | LAX                   | 389        | Detention    |
| TEMU606182       | EGLV146200660506 | 07/04/2022 | 07/28/2022    | 680 - 680 SANTA FE SPRINGS, CA          | 7/28/2022 | 9/30/2022    | XMN              | LAX                   | 34         | Detention    |
| TEMU606182       | EGLV146200660506 | 07/04/2022 | 07/28/2022    | 680 - 680 SANTA FE SPRINGS, CA          | 7/28/2022 | 9/30/2022    | XMN              | LAX                   | 670        | Detention    |
| IMTU1072383      | EGLV140201130242 | 8/17/2022  | 8/22/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 8/22/2022 | 9/26/2022    | TAO              | NYC                   | 600        | Detention    |
| EISU8284768      | EGLV149204271941 | 7/23/2022  | 7/29/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 7/30/2022 | 8/20/2022    |                  |                       | 330        | Detention    |
| EITU1972274      | EGLV149204271941 | 7/23/2022  | 8/1/2022      | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 8/1/2022  | 8/20/2022    |                  |                       | 130        | Detention    |
| BMOU5774531      | EGLV149204271941 | 7/23/2022  | 8/1/2022      | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 8/1/2022  | 8/20/2022    |                  |                       | 130        | Detention    |
| TGBU7079126      | EGLV149204271941 | 7/23/2022  | 8/1/2022      | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 8/1/2022  | 8/20/2022    |                  |                       | 130        | Detention    |
| TXGU5635168      | EGLV149204271941 | 7/23/2022  | 7/29/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT | 7/29/2022 | 8/20/2022    |                  |                       | 520        | Detention    |
| EITU9331791      | EGLV149204287847 | 7/4/2022   | 7/22/2022     | 680 - 680 SANTA FE SPRINGS, CA          | 7/22/2022 | 7/23/2022    | YAT              | LAX                   | 250.25     | Demurrage    |
| EGHU9110737      | EGLV149204287847 | 7/4/2022   | 7/21/2022     | 680 - 680 SANTA FE SPRINGS, CA          | 7/21/2022 | 7/23/2022    | YAT              | LAX                   | 440        | Demurrage    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                             | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|--------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| EITU1271741      | EGLV149204287847 | 7/4/2022   | 7/20/2022     | 680 - 680 SANTA FE SPRINGS, CA | 7/20/2022 | 7/23/2022    | YAT              | LAX                   | 189.75     | Demurrage    |
| TLLU4034617      | EGLV149204287847 | 7/4/2022   | 7/18/2022     | 680 - 680 SANTA FE SPRINGS, CA | 7/18/2022 | 7/23/2022    | YAT              | LAX                   | 742.5      | Demurrage    |
| EISU854529       | EGLV149204287880 | 07/04/2022 | 07/14/2022    | 3601 - 3601 IMPORTS/SOUTHWEST  | 7/14/2022 | 10/20/2022   | YAT              | LAX                   | 1029       | Detention    |
| EMCU829932       | EGLV149204287898 | 07/04/2022 | 07/18/2022    | 3601 - 3601 IMPORTS/SOUTHWEST  | 7/18/2022 | 9/30/2022    | YAT              | LAX                   | 30         | Detention    |
| EMCU829932       | EGLV149204287898 | 07/04/2022 | 07/18/2022    | 3601 - 3601 IMPORTS/SOUTHWEST  | 7/18/2022 | 9/30/2022    | YAT              | LAX                   | 600        | Detention    |
| EMCU8299322      | EGLV149204287898 | 7/4/2022   | 7/18/2022     | 3601 - 3601 IMPORTS/SOUTHWEST  | 7/18/2022 | 7/23/2022    | YAT              | LAX                   | 742.5      | Demurrage    |
| EITU1371890      | EGLV149204287898 | 7/4/2022   | 7/16/2022     | 3601 - 3601 IMPORTS/SOUTHWEST  | 7/16/2022 | 7/23/2022    | YAT              | LAX                   | 379.5      | Demurrage    |
| EGHU388365       | EGLV149204287928 | 07/04/2022 | 07/13/2022    | 680 - 680 SANTA FE SPRINGS, CA | 7/13/2022 | 8/24/2022    | YAT              | LAX                   | 273        | Detention    |
| EISU174717       | EGLV149204287936 | 07/04/2022 | 07/20/2022    | 680 - 680 SANTA FE SPRINGS, CA | 7/20/2022 | 9/30/2022    | YAT              | LAX                   | 45         | Detention    |
| EISU174717       | EGLV149204287936 | 07/04/2022 | 07/20/2022    | 680 - 680 SANTA FE SPRINGS, CA | 7/20/2022 | 9/30/2022    | YAT              | LAX                   | 900        | Detention    |
| EISU1747177      | EGLV149204287936 | 7/4/2022   | 7/20/2022     | 680 - 680 SANTA FE SPRINGS, CA | 7/20/2022 | 7/23/2022    | YAT              | LAX                   | 189.75     | Demurrage    |
| BMOU479087       | EGLV149204287952 | 07/04/2022 | 07/14/2022    | 680 - 680 SANTA FE SPRINGS, CA | 7/14/2022 | 8/24/2022    | YAT              | LAX                   | 668        | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                             | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|--------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| BMOU490327       | EGLV149204287952 | 07/04/2022 | 07/21/2022    | 680 - 680 SANTA FE SPRINGS, CA | 7/21/2022 | 9/30/2022    | YAT              | LAX                   | 15         | Detention    |
| BMOU490327       | EGLV149204287952 | 07/04/2022 | 07/21/2022    | 680 - 680 SANTA FE SPRINGS, CA | 7/21/2022 | 9/30/2022    | YAT              | LAX                   | 300        | Detention    |
| TGBU689325       | EGLV149204287952 | 07/04/2022 | 07/15/2022    | 680 - 680 SANTA FE SPRINGS, CA | 7/15/2022 | 9/30/2022    | YAT              | LAX                   | 13         | Detention    |
| TGBU689325       | EGLV149204287952 | 07/04/2022 | 07/15/2022    | 680 - 680 SANTA FE SPRINGS, CA | 7/15/2022 | 9/30/2022    | YAT              | LAX                   | 260        | Detention    |
| EITU1485039      | EGLV149204287952 | 7/4/2022   | 7/28/2022     | 680 - 680 SANTA FE SPRINGS, CA | 7/28/2022 | 7/30/2022    | YAT              | LAX                   | 690.25     | Demurrage    |
| TRHU8136332      | EGLV149204287952 | 7/4/2022   | 7/21/2022     | 680 - 680 SANTA FE SPRINGS, CA | 7/21/2022 | 7/23/2022    | YAT              | LAX                   | 250.25     | Demurrage    |
| TGBU6893251      | EGLV149204287952 | 7/4/2022   | 7/15/2022     | 680 - 680 SANTA FE SPRINGS, CA | 7/15/2022 | 7/23/2022    | YAT              | LAX                   | 189.75     | Demurrage    |
| TLLU7780440      | EGLV149204288002 | 7/4/2022   | 7/12/2022     | 3601 - 3601 IMPORTS/SOUTHWEST  | 7/12/2022 | 7/21/2022    | YAT              | LAX                   | 297.5      | Detention    |
| TGBU6915290      | EGLV149204288002 | 7/4/2022   | 7/12/2022     | 3601 - 3601 IMPORTS/SOUTHWEST  | 7/12/2022 | 7/21/2022    | YAT              | LAX                   | 255        | Detention    |
| EITU114556       | EGLV149204288002 | 07/04/2022 | 07/14/2022    | 3601 - 3601 IMPORTS/SOUTHWEST  | 7/14/2022 | 9/30/2022    | YAT              | LAX                   | 980        | Detention    |
| EITU114556       | EGLV149204288002 | 07/04/2022 | 07/14/2022    | 3601 - 3601 IMPORTS/SOUTHWEST  | 7/14/2022 | 9/30/2022    | YAT              | LAX                   | 49         | Detention    |
| EMCU822352       | EGLV149204288002 | 07/04/2022 | 07/15/2022    | 3601 - 3601 IMPORTS/SOUTHWEST  | 7/15/2022 | 9/30/2022    | YAT              | LAX                   | 43         | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                                    | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|---------------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| EMCU822352       | EGLV149204288002 | 07/04/2022 | 07/15/2022    | 3601 - 3601 IMPORTS/SOUTHWEST         | 7/15/2022 | 9/30/2022    | YAT              | LAX                   | 860        | Detention    |
| EMCU8223522      | EGLV149204288002 | 7/4/2022   | 7/15/2022     | 3601 - 3601 IMPORTS/SOUTHWEST         | 7/15/2022 | 7/23/2022    | YAT              | LAX                   | 189.75     | Demurrage    |
| TGBU8041362      | EGLV149204366305 | 9/15/2022  | 9/16/2022     | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991  | 2/28/2023    |                  |                       | 1690       | Detention    |
| TGBU8634481      | EGLV149203931042 | 7/10/2022  | 8/2/2022      | 680 - 680 SANTA FE SPRINGS, CA        | 1/1/1991  | 8/8/2022     | YAT              | LAX                   | 240.55     | Detention    |
| HMCU1095660      | EGLV149203931114 | 7/10/2022  | 7/21/2022     | 680 - 680 SANTA FE SPRINGS, CA        | 7/21/2022 | 7/29/2022    | YAT              | LAX                   | 85         | Detention    |
| TRHU7195500      | EGLV149204457599 | 7/16/2022  | 7/27/2022     | 680 - 680 SANTA FE SPRINGS, CA        | 1/1/1991  | 8/5/2022     | YAT              | LAX                   | 425        | Detention    |
| EGHU9479896      | EGLV149204457599 | 7/16/2022  | 7/25/2022     | 680 - 680 SANTA FE SPRINGS, CA        | 1/1/1991  | 8/5/2022     | YAT              | LAX                   | 425        | Detention    |
| TXGU6624682      | EGLV149204457629 | 7/16/2022  | 7/25/2022     | 3601 - 3601 IMPORTS/SOUTHWEST         | 1/1/1991  | 7/29/2022    | YAT              | LAX                   | 340        | Detention    |
| EGHU9618517      | EGLV149204457629 | 7/16/2022  | 7/25/2022     | 3601 - 3601 IMPORTS/SOUTHWEST         | 1/1/1991  | 9/2/2022     | YAT              | LAX                   | 127.5      | Detention    |
| EITU9371140      | EGLV149204415616 | 8/25/2022  | 9/22/2022     | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991  | 9/22/2022    | YAT              | SAV                   | 3273.38    | Demurrage    |
| EGHU9569536      | EGLV149204415616 | 8/25/2022  | 9/22/2022     | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991  | 9/22/2022    | YAT              | SAV                   | 4173.56    | Demurrage    |
| TGBU6607506      | EGLV149204415616 | 8/25/2022  | 9/22/2022     | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991  | 9/22/2022    | YAT              | SAV                   | 3273.38    | Demurrage    |
| TEMU6450021      | EGLV149204415616 | 8/25/2022  | 9/22/2022     | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991  | 9/22/2022    | YAT              | SAV                   | 3273.38    | Demurrage    |
| FCIU7248730      | EGLV149204415616 | 8/25/2022  | 9/22/2022     | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991  | 9/22/2022    | YAT              | SAV                   | 3273.38    | Demurrage    |
| EGHU9569536      | EGLV149204415616 | 8/25/2022  | 9/22/2022     | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991  | 1/30/2023    |                  |                       | 1540       | Detention    |
| EITU9371140      | EGLV149204415616 | 8/25/2022  | 9/22/2022     | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991  | 1/30/2023    |                  |                       | 1540       | Detention    |
| TGBU6607506      | EGLV149204415616 | 8/25/2022  | 9/22/2022     | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991  | 1/30/2023    |                  |                       | 2270       | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA   | GATE OUT (OA) | DC                                       | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|-----------|---------------|------------------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| TLLU4750268      | EGLV149204415462 | 8/12/2022 | 8/15/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT  | 8/15/2022 | 9/26/2022    | YAT              | NYC                   | 2980       | Detention    |
| TEMU7158077      | EGLV149204614813 | 7/23/2022 | 8/9/2022      | 3601 - 3601 IMPORTS/SOUTHW<br>EST        | 1/1/1991  | 9/19/2022    | YAT              | LAX                   | 935        | Demurrage    |
| EGHU9605593      | EGLV149204607931 | 8/24/2022 | 9/1/2022      | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT  | 1/1/1991  | 9/8/2022     | YAT              | NYC                   | 447.11     | Demurrage    |
| TGBU6580750      | EGLV140201456962 | 9/16/2022 | 9/19/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT  | 9/19/2022 | 10/19/2022   | TAO              | NYC                   | 130        | Detention    |
| TGBU4291846      | EGLV140201456962 | 9/16/2022 | 9/19/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT  | 9/19/2022 | 10/19/2022   | TAO              | NYC                   | 260        | Detention    |
| TLLU7501438      | EGLV140201486811 | 9/16/2022 | 9/19/2022     | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT  | 9/19/2022 | 10/19/2022   | TAO              | NYC                   | 130        | Detention    |
| EISU1758947      | EGLV149204968241 | 8/9/2022  | 8/15/2022     | 3601 - 3601 IMPORTS/SOUTHW<br>EST        | 1/1/1991  | 8/22/2022    | YAT              | LAX                   | 148.75     | Detention    |
| EISU1737353      | EGLV003201911031 | 9/17/2022 | 9/27/2022     | 666 - 666 WORLD DISTRIBUTION<br>SERVICES | 1/1/1991  | 1/30/2023    |                  |                       | 940        | Detention    |
| TCNU3110732      | EGLV003201911082 | 9/17/2022 | 9/22/2022     | 666 - 666 WORLD DISTRIBUTION<br>SERVICES | 1/1/1991  | 1/30/2023    |                  |                       | 1540       | Detention    |
| EGHU9345855      | EGLV003201911112 | 9/8/2022  | 9/9/2022      | 1590 - 1590 NE IMPORT<br>TRANSLOAD VIRT  | 9/9/2022  | 10/19/2022   | TXG              | NYC                   | 390        | Detention    |
| LTIU8014015      | EGLV149205110542 | 9/17/2022 | 9/27/2022     | 666 - 666 WORLD DISTRIBUTION<br>SERVICES | 1/1/1991  | 1/31/2023    |                  |                       | 5190       | Detention    |
| EGHU1054920      | EGLV149205110542 | 9/17/2022 | 9/22/2022     | 666 - 666 WORLD DISTRIBUTION<br>SERVICES | 1/1/1991  | 1/30/2023    |                  |                       | 4140       | Detention    |
| TGBU8676785      | EGLV149205426166 | 9/17/2022 | 9/27/2022     | 3666 - 3666 IMPORTS/SOUTHEA<br>ST        | 1/1/1991  | 1/31/2023    |                  |                       | 4390       | Detention    |
| EISU1830342      | EGLV149205426174 | 9/17/2022 | 9/22/2022     | 3666 - 3666 IMPORTS/SOUTHEA<br>ST        | 1/1/1991  | 1/30/2023    |                  |                       | 1840       | Detention    |
| FCIU9176120      | EGLV149205426182 | 9/17/2022 | 9/21/2022     | 3666 - 3666 IMPORTS/SOUTHEA<br>ST        | 1/1/1991  | 1/30/2023    |                  |                       | 2440       | Detention    |
| EITU1839739      | EGLV149205426191 | 9/17/2022 | 9/22/2022     | 3666 - 3666 IMPORTS/SOUTHEA<br>ST        | 1/1/1991  | 1/30/2023    |                  |                       | 1840       | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                                    | SHIP DATE  | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|---------------------------------------|------------|--------------|------------------|-----------------------|------------|--------------|
| TEMU8804696      | EGLV149205904352 | 10/23/2022 | 10/26/2022    | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991   | 1/13/2023    |                  |                       | 1080       | Detention    |
| EISU1830846      | EGLV149206251424 | 11/24/2022 | 11/28/2022    | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991   | 12/20/2022   |                  |                       | 310        | Detention    |
| TXGU5696775      | EGLV149206251424 | 11/24/2022 | 11/28/2022    | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991   | 12/20/2022   |                  |                       | 310        | Detention    |
| MAGU2170166      | EGLV149206349726 | 11/24/2022 | 11/28/2022    | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991   | 12/20/2022   |                  |                       | 310        | Detention    |
| EISU1799674      | EGLV149206394136 | 11/24/2022 | 11/28/2022    | 666 - 666 WORLD DISTRIBUTION SERVICES | 1/1/1991   | 12/20/2022   |                  |                       | 310        | Detention    |
| EMCU8024114      | EGLV142254039050 | 11/25/2022 | 11/28/2022    | 3666 - 3666 IMPORTS/SOUTHEAST         | 1/1/1991   | 12/20/2022   |                  |                       | 310        | Detention    |
| BMOU577868       | EGLV235201659359 | 12/11/2022 | 12/13/2022    | 3620 - 3620 ZENITH RIVERSIDE, CA      | 12/13/2022 | 2/21/2023    |                  |                       | 1250       | Detention    |
| IMTU906989       | EGLV235201659359 | 12/11/2022 | 12/13/2022    | 3620 - 3620 ZENITH RIVERSIDE, CA      | 12/13/2022 | 2/21/2023    |                  |                       | 1260       | Detention    |
| IMTU1087444      | EGLV149207623350 | 12/10/2022 | 12/13/2022    | 680 - 680 SANTA FE SPRINGS, CA        | 1/1/1991   | 12/15/2022   |                  |                       | 85         | Detention    |
| IMTU9025623      | EGLV149207623350 | 12/10/2022 | 12/13/2022    | 680 - 680 SANTA FE SPRINGS, CA        | 1/1/1991   | 12/15/2022   |                  |                       | 340        | Detention    |
| IMTU1033216      | EGLV149207623350 | 12/10/2022 | 12/14/2022    | 680 - 680 SANTA FE SPRINGS, CA        | 1/1/1991   | 12/15/2022   |                  |                       | 340        | Detention    |
| EITU014395       | EGLV148200321929 | 01/02/2023 | 01/06/2023    | 680 - 680 SANTA FE SPRINGS, CA        | 1/6/2023   | 2/21/2023    |                  |                       | 158        | Detention    |
| TGBU7029038      | EGLV143266058222 | 12/12/2022 | 12/14/2022    | 680 - 680 SANTA FE SPRINGS, CA        | 1/1/1991   | 12/20/2022   |                  |                       | 382.5      | Detention    |
| IMTU1045238      | EGLV140202312328 | 1/3/2023   | 1/11/2023     | 1590 - 1590 NE IMPORT TRANSLOAD VIRT  | 1/1/1991   | 1/30/2023    |                  |                       | 90         | Detention    |
| FSCU7082993      | EGLV143266061673 | 12/15/2022 | 12/19/2022    | 680 - 680 SANTA FE SPRINGS, CA        | 1/1/1991   | 12/20/2022   |                  |                       | 212.5      | Detention    |
| TCLU4366110      | EGLV140202331641 | 1/3/2023   | 1/4/2023      | 680 - 680 SANTA FE SPRINGS, CA        | 1/1/1991   | 1/5/2023     |                  |                       | 206.55     | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                             | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|--------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| DRYU958058       | EGLV235201735080 | 01/02/2023 | 01/10/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/10/2023 | 2/21/2023    |                  |                       | 473        | Detention    |
| EISU826427       | EGLV235201735080 | 01/02/2023 | 01/10/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/10/2023 | 2/21/2023    |                  |                       | 630        | Detention    |
| HMCU919593       | EGLV235201735098 | 01/02/2023 | 01/10/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/10/2023 | 2/21/2023    |                  |                       | 473        | Detention    |
| BMOU544904       | EGLV235201835319 | 01/26/2023 | 02/07/2023    | 3601 - 3601 IMPORTS/SOUTHWEST  | 2/7/2023  | 4/6/2023     |                  |                       | 315        | Detention    |
| EMCU803998       | EGLV140202541742 | 01/17/2023 | 01/24/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/24/2023 | 4/6/2023     |                  |                       | 116        | Detention    |
| EGHU101305       | EGLV143266063854 | 01/11/2023 | 01/19/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/19/2023 | 4/6/2023     |                  |                       | 5313       | Detention    |
| EISU182636       | EGLV143266063854 | 01/11/2023 | 01/18/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/18/2023 | 4/6/2023     |                  |                       | 4526       | Detention    |
| EISU934873       | EGLV143266063854 | 01/11/2023 | 01/19/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/19/2023 | 4/6/2023     |                  |                       | 4956       | Detention    |
| EITU940703       | EGLV143266063854 | 01/11/2023 | 01/18/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/18/2023 | 4/6/2023     |                  |                       | 4956       | Detention    |
| EMCU843422       | EGLV143266063854 | 01/11/2023 | 01/19/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/19/2023 | 4/6/2023     |                  |                       | 4526       | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                             | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|--------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| GAOU632027       | EGLV143266063854 | 01/11/2023 | 01/17/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/17/2023 | 4/6/2023     |                  |                       | 4799       | Detention    |
| TGBU991125       | EGLV143266063854 | 01/11/2023 | 01/18/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/18/2023 | 4/6/2023     |                  |                       | 4683       | Detention    |
| EGSU101310       | EGLV143266063862 | 01/11/2023 | 01/18/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/18/2023 | 4/6/2023     |                  |                       | 5849       | Detention    |
| EMCU143470       | EGLV143266063862 | 01/11/2023 | 01/19/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/19/2023 | 4/6/2023     |                  |                       | 4998       | Detention    |
| HMCU101702       | EGLV143266063862 | 01/11/2023 | 01/19/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/19/2023 | 4/6/2023     |                  |                       | 5156       | Detention    |
| EGHU823125       | EGLV235201849182 | 01/22/2023 | 01/31/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/31/2023 | 4/6/2023     |                  |                       | 2478       | Detention    |
| HMCU103318       | EGLV140202562405 | 01/23/2023 | 01/27/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/27/2023 | 4/6/2023     |                  |                       | 2993       | Detention    |
| EMCU806905       | EGLV143266074228 | 01/17/2023 | 01/27/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/27/2023 | 4/6/2023     |                  |                       | 2993       | Detention    |
| EITU129740       | EGLV146201494618 | 01/28/2023 | 02/03/2023    | 680 - 680 SANTA FE SPRINGS, CA | 2/3/2023  | 4/6/2023     |                  |                       | 2363       | Detention    |
| EISU167162       | EGLV146201494634 | 01/28/2023 | 02/02/2023    | 680 - 680 SANTA FE SPRINGS, CA | 2/2/2023  | 4/6/2023     |                  |                       | 2520       | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                             | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|--------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| IMTU106769       | EGLV146201494634 | 01/28/2023 | 02/03/2023    | 680 - 680 SANTA FE SPRINGS, CA | 2/3/2023  | 4/6/2023     |                  |                       | 2363       | Detention    |
| DRYU416470       | EGLV142255039118 | 01/23/2023 | 01/31/2023    | 3601 - 3601 IMPORTS/SOUTHWEST  | 1/31/2023 | 4/6/2023     |                  |                       | 2793       | Detention    |
| EISU172689       | EGLV142255039118 | 01/23/2023 | 01/30/2023    | 3601 - 3601 IMPORTS/SOUTHWEST  | 1/30/2023 | 4/6/2023     |                  |                       | 3308       | Detention    |
| EISU183761       | EGLV142255039118 | 01/23/2023 | 01/30/2023    | 3601 - 3601 IMPORTS/SOUTHWEST  | 1/30/2023 | 4/6/2023     |                  |                       | 2993       | Detention    |
| EISU187857       | EGLV142255039118 | 01/23/2023 | 01/31/2023    | 3601 - 3601 IMPORTS/SOUTHWEST  | 1/31/2023 | 4/6/2023     |                  |                       | 2793       | Detention    |
| EITU105444       | EGLV142255039134 | 01/23/2023 | 01/30/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/30/2023 | 4/6/2023     |                  |                       | 3465       | Detention    |
| EMCU889331       | EGLV142255039134 | 01/23/2023 | 01/31/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/31/2023 | 4/6/2023     |                  |                       | 3266       | Detention    |
| DRYU942819       | EGLV142255039142 | 01/23/2023 | 01/31/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/31/2023 | 4/6/2023     |                  |                       | 3171       | Detention    |
| EISU838285       | EGLV142255039151 | 01/23/2023 | 01/30/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/30/2023 | 4/6/2023     |                  |                       | 3465       | Detention    |
| FCIU932052       | EGLV142255039151 | 01/23/2023 | 01/31/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/31/2023 | 4/6/2023     |                  |                       | 3885       | Detention    |

## PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

| CONTAINER NUMBER | BL NUMBER REF    | POD ATA    | GATE OUT (OA) | DC                             | SHIP DATE | INVOICE DATE | PORT CODE ORIGIN | PORT CODE DESTINATION | TOTAL PAID | Charge Group |
|------------------|------------------|------------|---------------|--------------------------------|-----------|--------------|------------------|-----------------------|------------|--------------|
| GAOU626244       | EGLV142255039169 | 01/23/2023 | 01/27/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/27/2023 | 4/6/2023     |                  |                       | 2993       | Detention    |
| EISU804331       | EGLV142255046319 | 01/23/2023 | 01/27/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/27/2023 | 4/6/2023     |                  |                       | 4095       | Detention    |
| TRHU284221       | EGLV149208696156 | 01/25/2023 | 02/01/2023    | 680 - 680 SANTA FE SPRINGS, CA | 2/1/2023  | 4/6/2023     |                  |                       | 2856       | Detention    |
| EMCU892417       | EGLV149208723650 | 01/25/2023 | 01/27/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/27/2023 | 4/6/2023     |                  |                       | 2993       | Detention    |
| HMCU918550       | EGLV149208723650 | 01/25/2023 | 01/27/2023    | 680 - 680 SANTA FE SPRINGS, CA | 1/27/2023 | 4/6/2023     |                  |                       | 2993       | Detention    |
| EGHU924600       | EGLV149208723676 | 01/25/2023 | 01/31/2023    | 3601 - 3601 IMPORTS/SOUTHW EST | 1/31/2023 | 4/6/2023     |                  |                       | 2951       | Detention    |
| EGHU940445       | EGLV149208723684 | 01/25/2023 | 02/01/2023    | 3601 - 3601 IMPORTS/SOUTHW EST | 2/1/2023  | 4/6/2023     |                  |                       | 2678       | Detention    |
| TCNU155672       | EGLV149208723684 | 01/25/2023 | 02/02/2023    | 3601 - 3601 IMPORTS/SOUTHW EST | 2/2/2023  | 4/6/2023     |                  |                       | 2835       | Detention    |
| MAGU216972       | EGLV143266079548 | 02/07/2023 | 02/10/2023    | 680 - 680 SANTA FE SPRINGS, CA | 2/10/2023 | 4/6/2023     |                  |                       | 2678       | Detention    |

Before the  
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 24-12

20230930-DK-BUTTERFLY-1, INC., f/k/a BED BATH & BEYOND INC. v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of  
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,  
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., AND  
EVERGREEN MARINE (SINGAPORE) PTE. LTD.

**DECLARATION OF MOHINI PRIYA REGARDING  
GOOD FAITH EFFORTS TO AVOID MOTION PRACTICE**

The undersigned, Mohini Priya a/k/a Mohini P.B. Rarrick, declares and certifies:

1. I represent Complainant (“BBBY”) in this proceeding. I am an attorney duly licensed to practice law in the State of New York and the District of Columbia, and I work for the law firm Huth Reynolds LLP. I am fully familiar with the facts of this case and the exhibits attached hereto.
2. I make this Declaration in opposition to Respondents’ motion to compel BBBY to provide responsive interrogatory answers to Respondents’ First Interrogatories.
3. My colleagues and I have repeatedly made offers to counsel for Respondents to allow for a meet and confer to discuss Complainant’s Supplemental Responses to Respondents’ First set of Interrogatories, to no avail.
4. Respondents’ counsel sent a letter on July 28, 2025, during the deposition of Paul Pastor, outlining their perceived deficiencies in Complainant’s responses to the First Interrogatories. That letter was duly responded to within two days, on July 30, 2025 due to

Respondents' threat to file a motion to compel and Complainant's desire to avoid motion practice. A true and correct copy of the letter that was sent to Respondents' counsel was attached to Mr. Betancourt's Declaration on Good Faith as Exhibit B, pages 9-14 of the PDF.

5. I received a phone call from Mr. Betancourt on August 1, 2025 to primarily discuss his suggestion for a mandarin translator for Evergreen deponents who require translation. We discussed how Mr. Betancourt had worked with this person and how their suggested translator was court-certified. Mr. Betancourt then asked if we should discuss the interrogatory responses and I mentioned that we could arrange for a call to include my colleagues and that we were available to discuss. Mr. Betancourt stated that there was probably no point to meet since Complainant's position was unchanged, meaning the responses were not deficient. I did not agree, and offered again to meet to walk Respondents' counsel through our documents to the extent that would be helpful through a meet and confer so that they could best utilize the documents during depositions and so both parties could avoid motion practice.

6. Following the phone discussion on August 1, 2025, I followed up via email with Respondents' counsel with typed notes. Attached hereto as Exhibit 1 is the email that I sent to Mr. Betancourt on August 1, 2025, to which I did not receive any response. Within this email, I mentioned specifically that "[r]egarding the Interrogatory responses, we remain available for a call to discuss the materials we provided. If you want to meet Monday morning, please let me know what time is best." I specifically followed up our call with this email to reiterate Complainant's intention and availability to meet and confer on this matter and to provide Respondents' counsel with a walkthrough of any documents referenced in our responses to the First Interrogatories.

I certify under penalty of perjury that the foregoing is true and correct.

Executed on August 27, 2025.

*Mohini Priya Banerjee Rarrick*  
Mohini P.B. Rarrick  
Counsel for Complainant 20230930-  
DK-BUTTERFLY-1, Inc.

# **EXHIBIT 1**

**Subject:** Re: BBB v. Evergreen  
**Date:** Friday, August 1, 2025 at 13:43:59 Eastern Daylight Time  
**From:** Mohini Priya  
**To:** Ron Betancourt  
**CC:** Gregory Crapanzano, AJ Evans, Matthew Reynolds  
**Attachments:** image001.png

Dear Ron,

Thanks for the call earlier, to recap for everyone:

- You offered to provide us with the contact information regarding a Mandarin translator who is a court-approved translator that you have had a good working relationship with.
- We have used Transperfect translators in the past for Mandarin and Cantonese, and I will confirm whether their translator services are also court-approved.
- Regarding the Interrogatory responses, we remain available for a call to discuss the materials we provided. If you want to meet Monday morning, please let me know what time is best.

On depositions, below are a couple updates/questions:

- Mr. Hackett confirmed that he will also be located in New Jersey.
- Can you please also confirm if Mr. Kastin is being sought for deposition on August 8<sup>th</sup>? As discussed, he will be made available on August 15<sup>th</sup> for the corporate deposition. We would appreciate if the personal deposition could be combined on the 15<sup>th</sup> and that he could avoid being called twice, unless absolutely necessary.
- Is it possible for you to confirm the dates with Yusen that might work for their depositions or provide a timeline by which you need the documents to then schedule?

Thank you,  
Mohini

**Mohini Priya**  
(a/k/a Mohini P.B. Rarrick)  
Counsel  
Huth Reynolds LLP  
(818) 235-9753  
[mpriya@huthreynolds.com](mailto:mpriya@huthreynolds.com)  
pronouns: they/them, she/her

*This email from Huth Reynolds LLP may contain confidential information, attorney-client privileged communications, and/or attorney work product. If you are not the intended recipient, please advise by return email and delete immediately without reading or forwarding to others. Thank you.*

**From:** Ron Betancourt <[RBetancourt@bge-law.com](mailto:RBetancourt@bge-law.com)>

**Date:** Thursday, July 31, 2025 at 18:33

**To:** Mohini Priya <[Mpriya@huthreynolds.com](mailto:Mpriya@huthreynolds.com)>

**Cc:** Gregory Crapanzano <[gcrapanzano@huthreynolds.com](mailto:gcrapanzano@huthreynolds.com)>, AJ Evans <[aevans@bge-law.com](mailto:aevans@bge-law.com)>

**Subject:** BBB v. Evergreen

Hi Mohini,

Are you available sometime tomorrow to generally discuss interpreter needs in this case?

Best regards,  
Ron Betancourt



**Ronald Betancourt**

**BETANCOURT, GRECO & EVANS LLC**

151 Bodman Place, Suite 200 | Red Bank, New Jersey 07701

**Phone:** (732) 530-4646 **Fax:** (732) 530-9536

**Email:** [rbetancourt@bge-law.com](mailto:rbetancourt@bge-law.com) [www.bge-law.com](http://www.bge-law.com)

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